Child Care and Development Fund (CCDF) Plan
For
Wyoming
FFY 2019-2021

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1 Define CCDF Leadership and Coordination with Relevant Systems

This section identifies the leadership for the CCDF program in each Lead Agency and the entities and individuals who will participate in the implementation of the program. It also identifies the stakeholders that were consulted to develop the Plan and who the Lead Agency collaborates with to implement services. In this section respondents are asked to identify how match and maintenance-of-effort (MOE) funds are identified. Lead Agencies explain their coordination with child care resource and referral (CCR&R) systems, and outline the work they have done on their disaster preparedness and response plans.

1.1 CCDF Leadership

The Governor of a State or Territory shall designate an agency (which may be an appropriate collaborative agency), or establish a joint inter-agency office, to represent the State (or Territory) as the Lead Agency. The Lead Agency agrees to administer the program in accordance with applicable Federal laws and regulations and the provisions of this Plan, including the assurances and certifications appended hereto. (658D, 658E(c)(1)).Note: An amendment to the CCDF State Plan is required if the Lead Agency changes or if the Lead Agency official changes.

1.1.1 Which Lead Agency is designated to administer the CCDF program?

Identify the Lead Agency or joint interagency office designated by the state or territory. ACF will send official grant correspondence, such as grant awards, grant adjustments, Plan approvals, and disallowance notifications, to the designated contact identified here (658D(a)).

Effective Date: 10/01/2018

a) Lead Agency or Joint Interagency Office Information:

Name of Lead Agency: Wyoming Department of Family Services

Street Address: 2300 Capitol Avenue, 3rd Floor

City: Cheyenne

State: WY

ZIP Code: 82002

Web Address for Lead Agency: http://dfsweb.wyo.gov/

b) Lead Agency or Joint Interagency Official Contact Information:

Lead Agency Official First Name: Thomas O.

Lead Agency Official Last Name: Forslund

Title: Director

Phone Number: 307-777-6778

Email Address: tom.forslund@wyo.gov

1.1.2 Who is the CCDF Administrator?

Identify the CCDF Administrator designated by the Lead Agency, the day-to-day contact, or the person with responsibility for administering the state's or territory's CCDF program. ACF will send programmatic communications, such as program announcements, program instructions, and data collection instructions, to the designated contact identified here. If there is more than one designated contact with equal or shared responsibility for administering the CCDF program, please identify the Co-Administrator or the person with administrative responsibilities and include his or her contact information.

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a) CCDF Administrator Contact Information:

CCDF Administrator First Name: Corrine

CCDF Administrator Last Name: Livers

Title of the CCDF Administrator: Economic Security Programs Administrator

Phone Number: 307-777-6068

Email Address: corrine.livers@wyo.gov

Address for the CCDF Administrator (if different from the Lead Agency):

Street Address:

City:

State:

ZIP Code:

b) CCDF Co-Administrator Contact Information (if applicable):

CCDF Co-Administrator First Name: Nichole

CCDF Co-Administrator Last Name: Anderson

Title of the CCDF Co-Administrator: Child Caring Facility Licensing Program Manager

Description of the role of the Co-Administrator: Co-Administrator shares responsibility for administering the State's CCDF program with the CCDF Administrator

Phone Number: 307-777-8539

Email Address: nichole.anderson@wyo.gov

Address for the CCDF Co-Administrator (if different from the Lead Agency):

Street Address:

City:

State:

ZIP Code:

1.2 CCDF Policy Decision Authority

The Lead Agency has broad authority to administer (i.e., establish rules) and operate (i.e., implement activities) the CCDF program through other governmental, non-governmental, or public or private local agencies as long as it retains overall responsibility for the administration of the program (658D(b)). Administrative and implementation responsibilities undertaken by agencies other than the Lead Agency must be governed by written agreements that specify the mutual roles and responsibilities of the Lead Agency and other agencies in meeting the program requirements.

1.2.1 Which of the following CCDF program rules and policies are administered (i.e., set or established) at the state or territory level or local level? Identify whether CCDF program rules and policies are established by the state or territory (even if operated locally) or whether the CCDF policies or rules are established by local entities, such as counties or workforce boards (98.16(i)(3)). Check one.

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- [x] All program rules and policies are set or established at the state or territory level. If checked, skip to question 1.2.2.
- [ ] Some or all program rules and policies are set or established by local entities. If checked, indicate which entities establish the following policies. Check all that apply.

1. Eligibility rules and policies (e.g., income limits) are set by the:
   - [ ] State or territory
   - [ ] Local entity (e.g., counties, workforce boards, early learning coalitions).

   If checked, identify the entity and describe the type of eligibility policies the local entity(ies) can set.

   - [ ] Other.

   Describe:

2. Sliding-fee scale is set by the:

- [ ] State or territory
- [ ] Local entity (e.g., counties, workforce boards, early learning coalitions).

If checked, identify the entity and describe the type of eligibility policies the local entity(ies) can set.

- [ ] Other.

Describe:

3. Payment rates are set by the:

- [ ] State or territory
- [ ] Local entity (e.g., counties, workforce boards, early learning coalitions).

If checked, identify the entity and describe the type of eligibility policies the local entity(ies) can set.

- [ ] Other.

Describe:

4. Other. List and describe other program rules and policies and describe (e.g., quality rating and improvement systems [QRIS], payment practices):

1.2.2 How is the CCDF program operated? In other words, which entity(ies) implement or perform these CCDF services? Check all that apply

Effective Date: 10/01/2018

a) Who conducts eligibility determinations?

- [x] CCDF Lead Agency
- [ ] Temporary Assistance for Needy Families (TANF) agency

- [ ] Other state or territory agency
- [ ] Local government agencies, such as county welfare or social services departments
- [ ] Child care resource and referral agencies
- [ ] Community-based organizations
- [ ] Other.

Describe

b) Who assists parents in locating child care (consumer education)?

- [x] CCDF Lead Agency
- [ ] TANF agency
- [ ] Other state or territory agency
- [ ] Local government agencies, such as county welfare or social services departments
- [ ] Child care resource and referral agencies
- [ ] Community-based organizations
- [ ] Other.

Describe

c) Who issues payments?

- [x] CCDF Lead Agency
- [ ] TANF agency
- [ ] Other state or territory agency
- [ ] Local government agencies, such as county welfare or social services departments
- [ ] Child care resource and referral agencies
- [ ] Community-based organizations
- [ ] Other.

Describe

1.2.3 Describe the processes the Lead Agency uses to monitor CCDF administration and implementation responsibilities performed by other agencies as reported above in 1.2.2, including written agreements, monitoring and auditing procedures, and indicators or measures to assess performance of those agencies (98.16(b)). Note : The contents of the written agreement may vary based on the role the agency is asked to assume or type of project, but must include at a minimum, tasks to be performed, schedule for completing tasks, budget which itemizes categorical expenditures in accordance with CCDF requirements, and indicators or measures to assess performance (98.11(a)(3)).

Effective Date: 10/01/2018

The Department contracts with Western States Learning Corporation, dba Align for management, coordination and operation of the Wyoming Statewide Training and Resource System (STARS) for early childhood professionals as well as coordination between the new STARS registry that integrates with the Department child care licensing and Child Care Resource & Referral systems. Align is responsible for the following deliverables: track early care and educator training hours based on credentials, required Child Care Development Block Grant (CCDBG) health and safety trainings, Wyoming Early Learning Guidelines (ELG) and Foundations (ELF) and areas of knowledge as specified; provide training records to child care licensers, facilities and providers as needed; report to Department of number and names of providers in each level on the career ladder and Infant Toddler Director Credential; maintain functional database (access to view trainings and provide support on navigating new registry database); maintain a current training calendar and provide assistance to sponsors and/or instructors for adding courses to the calendar; strategically approve and evaluate training materials and trainers for STARS credit within 14 days of submittal and based on a rubric of specific criteria, including CCDBG trainings, ELG and ELF trainings; coordination with libraries for clearinghouse materials and/or development of the materials at the library; attendance at trainings with the National Workforce Registry and/or other relevant entities; provide assistance to providers on submitting trainings records for the Child Development Associate (CDA) Certificate. The Department requires a monthly detailed invoice for payment as well as an on-site visit by the Contract manager. The on-site visit includes, but is not limited to: review of all requests to STARS and subsequent responses, review of the timelines related to approval and evaluation of training material and trainers, and review of the training calendar. In addition, the Department has developed a complaint

resolution process, and all complaints received are reviewed with the STARS leadership team.

1.2.4 Lead Agencies must assure that, to the extent practicable and appropriate, any code or software for child care information systems or information technology for which a Lead Agency or other agency expends CCDF funds to develop must be made available on request to other public agencies, including public agencies in other States, for their use in administering child care or related programs (98.15(a)(11)).

Effective Date: 10/01/2018

Assure by describing how the Lead Agency makes child care information systems available to public agencies in other states to the extent practicable and appropriate.

Upon request, the Department will facilitate with the requesting state and the Department vendor when practicable and appropriate.

Effective Date: 10/01/2018

1.2.5 Lead Agencies must have in effect policies to govern the use and disclosure of confidential and personally identifiable information about children and families receiving CCDF assistance and child care providers receiving CCDF funds (98.15(b)(13)).

Effective Date: 10/01/2018

Certify by describing the Lead Agency's policies related to the use and disclosure of confidential and personally identifiable information.

Wyoming Child Care Licensing Rules For All Facility Types, Chapter 4, Section 12: (a) The Department records concerning the licensing of facilities are open to public inspection with some exceptions as stated in this section. (b) Anyone wishing to read or obtain information from a record not available on the Department’s website, shall make a written request to the

Department. Parts of the record that are not available for public inspection are: (i) Names and personal information of children or their relatives, and names of complainants. (ii) Personal information of the provider and/or director and staff, such as, but not limited to: A. social security numbers, dates of birth, background check results, physician's statements; and (iii) Any information that is confidential by law. All Department public records requests for Child Care Licensing are reviewed by the Wyoming Attorney General's Office. The Wyoming Attorney General's Office informs the Department what information is required to be sumitted to their office, at which time the AG representative "sanitizes" the information based on child care licensing rules regarding what is public information and what is not.Child Care Purchase of Service Policy, Chapter 1, Section 403: Confidential Information (C) Hold confidential and do not release any information that can be identified as relating to a specific individual except as specified below. (D) Consider the following as confidential: 1. The names and addresses of applicants and recipients and amounts of cash assistance provided; 2. Documents naming a specific individual(s); 3. The fact of the existence of documents naming a specific individual(s); 4. Personal facts relating to specific individual(s); 5. The fact of application for or receipt of a program or service through DFS; 6. Information relating to the social and economic conditions or circumstance of a particular individual including information obtained from IRS and SSA which must be safeguarded in accordance with procedures set forth by those agencies; and 7. Any information known about a specific individual but not part of a case record or document.

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1.3 Consultation in the Development of the CCDF Plan

The Lead Agency is responsible for developing the CCDF plan, which serves as the application for a 3-year implementation period. As part of the Plan development process, Lead Agencies must consult with the following:

(1) Appropriate representatives of units of general purpose local government-(658D(b)(2); 98.10(c); 98.12(b); 98.14(b)). General purpose local governments are defined by the U.S.

Census at
https://www.census.gov/newsroom/cspan/govts/20120301_cspan_govts_def_3.pdf.

(2) The State Advisory Council (SAC) on Early Childhood Education and Care (pursuant to 642B(b)(I)(A)(i) of the Head Start Act) (658E(c)(2)(R); 98.15(b)(1)) or similar coordinating body pursuant to 98.14(a)(1)(vii).

(3) Indian tribe(s) or tribal organization(s) within the state. This consultation should be done in a timely manner and at the option of the Indian tribe(s) or tribal organization(s) (658D(b)(1)(E)).

Consultation
involves meeting with or otherwise obtaining input from an appropriate agency in the development of the state or territory CCDF Plan. Describe the partners engaged to provide services under the CCDF program in question 1.4.1.

1.3.1 Describe the Lead Agency's consultation in the development of the CCDF plan.

Effective Date: 10/01/2018

a) Describe how the Lead Agency consulted with appropriate representatives of general purpose local governments.

The Councils and Boards referenced below are made up of representatives from across the State including representatives from local governments. The Department has an ongoing relationship with local governments across the state who were invited to provide feedback regarding the development of the Wyoming CCDF 3-Year Plan, however the Department did not receive interest from the parties to participate.

b) Describe how the Lead Agency consulted with the State Advisory Council or similar coordinating body.

Members of the Wyoming Early Childhood State Advisory Council were identified by expertise to focus on specific areas of the State Plan and were provided the opportunity to contribute to the content and review the final draft. Communication on the development of the Plan was via email and we received written recommendations from several individuals. In addition, the Department hosted three (3) teleconferences to review and take comments from Council members and received numerous comments of

which many suggestions and changes were implemented in the CCDF Plan.

c) Describe, if applicable, how the Lead Agency consulted with Indian tribes(s) or tribal organizations(s) within the state. Note: The CCDF regulations recognize the need for States to conduct formal, structured consultation with Tribal governments, including Tribal leadership. Many States and Tribes have consultation policies and procedures in place.

The Department makes its plan available to the Eastern Shoshone and the Northern Arapaho Tribes and solicits input to the plan. Both tribal entities were contacted via email and telephone on two occasions to discuss and review the Plan. Following requested assistance from our Region VIII federal partners, the Department met with the Eastern Shoshone 477 program to consult on child care subsidy, background check requirements and training. In addition, the DRAFT State Plan was reviewed. The Northern Arapaho child care program staff were unable to attend this meeting.

d) Describe any other entities, agencies, or organizations consulted on the development of the CCDF plan.

NA

1.3.2 Describe the statewide or territory-wide public hearing process held to provide the public with an opportunity to comment on the provision of child care services under this Plan (658D(b)(1)(C); 98.16(f)).

Reminder:
Lead Agencies are required to hold at least one public hearing in the state or territory, with sufficient statewide or territory-wide distribution of notice prior to such a hearing to enable the public to comment on the provision of child care services under the CCDF Plan. At a minimum, this description must include:

Effective Date: 10/01/2018

a) Date of the public hearing. 05/15/2018

Reminder: Must be no earlier than January 1, 2018, which is 9 months prior to the October 1, 2018, effective date of the Plan. If more than one public hearing was held, please enter one date (e.g. the date of the first hearing, the most recent hearing or any

hearing date that demonstrates this requirement).

b) Date of notice of public hearing (date for the notice of public hearing identified in (a).
04/25/2018

Reminder: Must be at least 20 calendar days prior to the date of the public hearing. If more than one public hearing was held, enter one date of notice (e.g. the date of the first notice, the most recent notice or any date of notice that demonstrates this requirement).

c) How was the public notified about the public hearing? Please include specific website links if used to provide notice.

The Department sent an e-blast to all providers. The Department also emailed notification to all providers, stakeholders, parents, other State agencies and public/private entities. Finally, the Department posted notification in the statewide newspaper and on the Department's website.

d) Hearing site or method, including how geographic regions of the state or territory were addressed. The Department set up a call-in line for a conference call on May 15 and 16, 2018. Due to the conference call format for the hearings, all geographic regions were included.

e) How the content of the Plan was made available to the public in advance of the public hearing. (e.g. the Plan was made available in other languages, in multiple formats, etc.)
The State Plan was sent electronically to providers, stakeholders, parents, other State agencies, and public/private entities and posted on the Department¿s website. An email address was established as a means to gather input. The option of obtaining a written draft State Plan and submitting copies via hard copy mail was given with all notices and on the Department¿s website.

f) How was the information provided by the public taken into consideration regarding the provision of child care services under this Plan? The Department works collaboratively with partners on an ongoing basis. In addition, the Department reviewed all comments submitted and thoughtfully considered changes to the State Plan. The State Plan is a reflection of the work within the State¿s Early Childhood industry and public opinion.

1.3.3 Lead Agencies are required to make the submitted and final Plan, any Plan amendments, and any approved requests for temporary relief (i.e., waivers) publicly available on a website (98.14(d)). Please note that a Lead Agency must submit Plan amendments within 60 days of a substantial change in the Lead Agency's program. (Additional information may be found here: https://www.acf.hhs.gov/occ/resource/pi-

2009-01)

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a) Provide the website link to where the Plan, any Plan amendments, and/or waivers are available. Note: A Plan amendment is required if the website address where the Plan is posted is changed.

http://dfsweb.wyo.gov/

b) Describe any other strategies that the Lead Agency uses to make the CCDF Plan and Plan amendments available to the public (98.14(d)). Check all that apply and describe the strategies below, including any relevant website links as examples.

☑ Working with advisory committees.

Describe:

The Department has administrative staff who provide support to the Wyoming Early Childhood State Advisory Council and has an appointed member on the advisory council. The Department coordinates with the elected chair person to ensure any CCDF Plan amendments are an agenda topic at an advisory council meeting. The Department ensures that the members of the Wyoming Early Childhood State Advisory Council receives, via email, a copy of the CCDF Plan and any amendments for review prior to the scheduled advisory council meeting.

☐ Working with child care resource and referral agencies.

Describe:

☐ Providing translation in other languages.

Describe:

☐ Sharing through social media (e.g., Twitter, Facebook, Instagram, email).

Describe:

☑ Providing notification to stakeholders (e.g., provider groups, parent groups).

Describe:

The Department uses different formats to notify stakeholders of the CCDF Plan and

amendments including email eblast, the Department website, and the WY Quality Counts! newsletter. In addition, partner agencies (including Wyoming Department of Health, Wyoming Department of Edcuation, Head Start Collab office, etc.) share the information with their stakeholder groups.

☐ Other.

Describe:

1.4 Coordination with Partners to Expand Accessibility and Continuity of Care

Lead Agencies are required to describe how the state or territory will efficiently, and to the extent practicable, coordinate child care services supported by CCDF with programs operating at the federal, state/territory, and local levels for children in the programs listed below. This includes programs for the benefit of Indian children, infants and toddlers, children with disabilities, children experiencing homelessness, and children in foster care (98.14(a)(1)).

1.4.1 Describe how the Lead Agency coordinates the provision of child care services with the following programs to expand accessibility and continuity of care and to assist children enrolled in early childhood programs in receiving full-day services that meet the needs of working families (658E(c)(2)(O); 98.12(a); 98.14(a)).

This list includes agencies or programs required by law or rule, along with a list of optional partners that Lead Agencies potentially would coordinate with over the next 3 years to expand accessibility and continuity of care and to assist children enrolled in early childhood programs in receiving full-day services.

Include in the descriptions the goals of this coordination, such as:
-- extending the day or year of services for families;
-- smoothing transitions for children between programs or as they age into school;
-- enhancing and aligning the quality of services for infants and toddlers through school-age children;
-- linking comprehensive services to children in child care or school age settings; or
-- developing the supply of quality care for vulnerable populations (as defined by the Lead

Agency) in child care and out-of-school time settings

Check the agencies or programs the Lead Agency will coordinate with and describe all that apply.

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☑ (REQUIRED) Appropriate representatives of the general purpose local government, which can include counties, municipalities, or townships/towns.

Describe the coordination goals and process:

The Department engages with the local county government in regards to Child Care Licensing. Over the next 3 years, the Department will be working closely with the local county health department's and the Wyoming Department of Agriculture on the goal to transition food safety and sanitation inspections from the local and state government to the Child Care Licensing program. The coordination will involve revision of the Child Care Licensing Rules, revision of Department of Agriculture Food Safety Rules, revision of county health department's inspection tools, and staff training.

☑ (REQUIRED) State Advisory Council on Early Childhood Education and Care (or similar coordinating body) (pursuant to 642B(b)(I)(A)(i) of the Head Start Act).

Describe the coordination goals and process:

The Wyoming Early Childhood State Advisory Council has been working with the sitting Governor's office to refine the executive order formally re-establishing the Council. The Executive Order will identify the collective goals of the Council's work in the State and will align goals with the work of other early childhood entities. There has been turnover in the Governor's Office and this effort has been delayed accordingly. However, it is the intention of the Department, Governor's Office and Council to ensure the Executive Order, aligning early childhood goals, is formalized to support the work. The Wyoming Early Childhood State Advisory Council is made up of representatives from across the State including representatives from state and local governments. The Department is an active participant with the Council. The Wyoming Early Childhood State Advisory Council has taken the lead in Wyoming, with support from the Department, on developing the Wyoming Quality Program Standards for Early Childhood Settings. It is the intention of the Council to develop a release and implementation plan for utilization of the Quality Program Standards. In addition, the Council has taken the lead on development of a State policy on expulsion and the resources available to support providers when implementing policies. Members from

the Wyoming Early Childhood State Advisory Council and the Department were accepted to participate in the federal Peer Learning Group: Effective Technical Assistance Systems in QRIS. The Council, with support from the Department, is interested in how Wyoming might approach development of benchmarks of a QRIS and will focus on this objective over the next three (3) years.

☑ Check here if the Lead Agency has official representation and a decision-making role in the State Advisory Council or similar coordinating body.

☑ (REQUIRED) Indian tribe(s) and/or tribal organization(s), at the option of individual tribes.

Describe the coordination goals and process, including which tribe(s) was consulted:

The Department makes its plan available to the Eastern Shoshone and the Northern Arapaho Tribes and solicits input to the plan. Both tribal entities were contacted via email and telephone on two occasions to discuss and review the Plan. Following requested assistance from our Region VIII federal partners, the Department met with the Eastern Shoshone 477 program to consult on child care subsidy, background check requirements and training. In addition, the DRAFT State Plan was reviewed. The Northern Arapaho child care program staff were unable to attend this meeting. As a result of the face-to-face meeting, the following areas were identified as future areas of collaboration with the Eastern Shoshone and the Northern Arapaho Tribes: Background check processes and professional development for tribal staff and child care providers. The Department will continue to reach out to the tribal programs to ensure collaboration on the above listed areas.

☐ N/A-There are no Indian tribes and/or tribal organizations in the State.

☑ (REQUIRED) State/territory agency(ies) responsible for programs for children with special needs, including early intervention programs authorized under the Individuals with Disabilities Education Act (Part C for infants and toddlers and and Part B, Section 619 for preschool).

Describe the coordination goals and process:

The Wyoming Department of Health administers IDEA Part B and Part C. The Department and the Wyoming Department of Health will collaborate on consumer education regarding services offered by Child Development Centers across the state, identification of possible eligible children, and referral for services through child care licensers, Child Care Resource and Referral, and child care eligibility workers. The

Department provides information regarding services offered from the network of Child Development Centers across the state to parents, providers and other consumers. In addition, the Wyoming Early Intervention and Education Program's manager is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department on developing the Wyoming Quality Program Standards for Early Childhood Settings. It is the intention of the Council to develop a release and implementation plan for utilization of the Quality Program Standards and will focus on this objective over the next three (3) years.

☑ (REQUIRED) State/territory office/director for Head Start state collaboration.

Describe the coordination goals and process:

The Wyoming Head Start state collaboration director is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department on developing the Wyoming Quality Program Standards for Early Childhood Setting to ensure alignment with applicable Head Start Program Performance Standards. It is the intention of the Council to develop a release and implementation plan for utilization of the Quality Program Standards and will focus on this objective over the next three (3) years. In addition, the Department and the Head Start State Collaboration Director and the Head Start Directors Association will collaborate on solutions to the barriers to employment in light of the new federal requirements related to background checks. The Department has participated in face-to-face meetings with the Head Start Directors Association and will continue over the next 3 years.

☑ (REQUIRED) State agency responsible for public health, including the agency responsible for immunizations.

Describe the coordination goals and process:

The Department partners with public health to ensure the Wyoming Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), and Child Care Centers (CCC) reflect the current requirements of the Wyoming Department of Health, Public Health. Specifically, the public health division staff consult with the Department on requirements regarding immunizations and TB testing and other health related content in the Rules. The Department is in the process of revising the Wyoming Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC) and Child Care Center (CCC) which will required

coordination with the Wyoming Department of Public Heath, Public Health to ensure the rules reflect the most current Health requirements, over the next 3 years. In addition, a representative from the public health division is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department on developing the Wyoming Quality Programs Standards for Early Childhood Settings. It is the intention of the Council to develop a release and implementation plan for utilization of the Quality Program Standards and will focus on this objective over the next three (3) years.

☑ (REQUIRED) State/territory agency responsible for employment services/workforce development.

Describe the coordination goals and process:

The Department collaborates with the Wyoming Department of Workforce Services regarding job search for recipients of the child care subsidy program. This involves referral to a Workforce Employment Center for consultation with a job search specialist. The Department and Wyoming Department of Workforce Services will focus on streamling the referral process over the next 3 years. A Wyoming Department of Workforce Services Administrator is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department on developing the Wyoming Quality Program Standards for Early Childhood Settings. It is the intention of the Council to develop a release and implementation plan for utilization of the Quality Program Standards and will focus on this objective over the next three (3) years.

☑ (REQUIRED) State/territory agency responsible for public education, including prekindergarten (preK).

Describe the coordination goals and process:

A Wyoming Department of Education program manager is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department on developing the Wyoming Quality Program Standards for Early Childhood Settings. It is the intention of the Council to develop a release and implementation plan for utilization of the Quality Program Standards. In addition, the Council has taken the lead on development of a State policy on expulsion and the resources available to support providers when implementing policies. Members from the Wyoming Early Childhood State Advisory Council and the Department were

accepted to participate in the federal Peer Learning Group: Effective Technical Assistance Systems in QRIS. The Council, with support from the Department, is interested in how Wyoming might approach development of benchmarks of a QRIS and will focus on this objective over the next three (3) years. The Wyoming Department of Education partners with the Department's Economic Security Division on implementation of TANF Preschools and the Community Partnership grants.

☑ (REQUIRED) State/territory agency responsible for child care licensing.

Describe the coordination goals and process:

The Department is responsible for child care licensing.

☑ (REQUIRED) State/territory agency responsible for the Child and Adult Care Food Program (CACFP) and other relevant nutrition programs.

Describe the coordination goals and process:

The Department partners with Wyoming Department of Education, Nutrition Program, to ensure the Wyoming Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), and Child Care Centers (CCC) reflect the current requirements of the Wyoming Department of Education, Nutrition Program. In addition, information regarding licensure status is provided to the Nutrition Program State Director, as changes in programs are received by Child Care Licensing to ensure only eligible programs are receiving assistance through CACFP. The Department provides notification to the CACFP program manager of health and safety violations which result in negative action, for all licensed Family Child Care Homes (FCCH), Family Child Care Centers (FCCC), and Child Care Centers (CCC).

☑ (REQUIRED) McKinney-Vento state coordinators for homeless education and other agencies providing services for children experiencing homelessness and, to the extent practicable, local McKinney-Vento liaisons.

Describe the coordination goals and process:

The Department oversees the Wyoming State Homeless Program and works with the Wyoming Department of Education's McKinney-Vento Coordinator and the Homelessness Collaborative. Iit is the intent that coordination between the Department and homelessness programs will result in identification of children and families who may be eligible for services, including child care and other early childhood programs.

☑ (REQUIRED) State/territory agency responsible for the Temporary Assistance for Needy Families program.

Describe the coordination goals and process:

The Department is responsible for TANF. The CCDF Co-Administrator is the Department's TANF Administrator and communicates and coordinates across both programs to ensure priorities align and there is transparency. The programs will collaborate on streamling the application process across programs and shared referrals over the next 3 years.

☑ (REQUIRED) Agency responsible for Medicaid and the state Children's Health Insurance Program.

Describe the coordination goals and process:

The Department and the Wyoming Department of Health coordinate provision of information regarding Medicaid and CHIP to parents, providers and other consumers. The information is included in the Department's Family Resource sheet, website and the consumer education website, as well as flyers posted at all Department field offices across the state. The two programs coordinate to ensure the Department has the most current program information to share with providers, parents and other consumers. This collarboration and coordination will be the focus over the next 3 years. The Wyoming Department of Health is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department on developing the Wyoming Quality Program Standards for Early Childhood Settings. It is the intention of the Council to develop a release and implementation plan for utilization of the Quality Program Standards and will focus on this objective over the next three (3) years.

☑ (REQUIRED) State/territory agency responsible for mental health

Describe the coordination goals and process:

The Department will consult and collaborate with the Wyoming Department of Heatlh in regards to children's mental health consultation across the state as a resource to providers as they work to implement an expulsion policy based on the State policy statement, over the next 3 years. The Wyoming Department of Health is a member of the Wyoming Early Childhood State Advisory Council and has been active in their work with the Department on developing the Wyoming Quality Program Standards for

Early Childhood Settings. It is the intention of the Council to develop a release and implementation plan for utilization of the Quality Program Standards and will focus on this objective over the next 3 years.

☑ (REQUIRED) Child care resource and referral agencies, child care consumer education organizations, and providers of early childhood education training and professional development.

Describe the coordination goals and process:

The Department is responsible for Child Care Resource & Referral. The CCDF Co-Administrator supervises the CCR&R program staff. The CCR&R program staff is included in all program development and implementation meetings. In addition, the CCR&R program staff provides monitoring and oversight of the professional development Registry vendor and reports to the CCDF C0-Administrator weekly. As a benefit to having CCR&R responsibilities, the Department has data regarding providers, utilization of child care services, and needs of families readily accessible.

☑ (REQUIRED) Statewide afterschool network or other coordinating entity for out-of-school time care (if applicable).

Describe the coordination goals and process:

The Department collaborates and consults with the Wyoming Afterschool Alliance, affiliated with the Mott Statewide Afterschool Network. The focus of the collaboration and coordination over the next 3 years will be on professional development for early childhood professionals, including child care providers. Representatives from the Department and the Wyoming Afterschool Alliance participated in the Infant/Toddler and Afterschool Institute in 2018 and will identify areas for coordination and ongoing work. In addition, the Department will have regular meetings the Executive Director of the Wyoming Afterschool Alliance to discuss other opportunities for coordination of efforts.

☑ (REQUIRED) Agency responsible for emergency management and response.

Describe the coordination goals and process:

The Department takes the whole community approach to crisis and emergency management. The Department coordinates planning, training, response coordination with each Wyoming county emergency management coordinator, public health response coordinator, state agencies (ie. Wyoming Homeland Security, US

Homeland Security, and Wyoming Department of Health), and non-government organizations (ie. Red Cross and Wyoming Volunteer Organizations After A Disaster). The intent of the ongoing coordination between all mentioned entities is to ensure Emergency Response and Preparedness plans are current and in alignment with FEMA goals. In addition, the Department provides access to critical location identification information for emergency response during an emergency or disaster. The Department has developed and manages location maps identifying the at risk populations overseen by the Department in addition to community services resources map and list. The Department distributes these lists and the information is also available on emergency management shared data drives.

The following are examples of optional partners a state might coordinate with to provide services. Check all that apply.

☐ State/territory/local agencies with Early Head Start - Child Care Partnership grants.

Describe

☐ State/territory institutions for higher education, including community colleges

Describe

☐ Other federal, state, local, and/or private agencies providing early childhood and school-age/youth-serving developmental services.

Describe

☐ State/territory agency responsible for implementing the Maternal and Child Home Visitation programs grant.

Describe

☐ Agency responsible for Early and Periodic Screening, Diagnostic, and Treatment.

Describe

☐ State/territory agency responsible for child welfare.

Describe

☐ State/territory liaison for military child care programs.

Describe

☐ Provider groups or associations.

Describe

☐ Parent groups or organizations.

Describe

☐ Other.

Describe

1.5 Optional Use of Combined Funds, CCDF Matching and Maintenance-of-Effort Funds

Optional Use of Combined Funds:
States and territories have the option to combine CCDF funds with any program identified as required in 1.4.1. These programs include those operating at the federal, state, and local levels for children in preschool programs, tribal early childhood programs, and other early childhood programs, including those serving infants and toddlers with disabilities, children experiencing homelessness, and children in foster care (658E(c)(2)(O)(ii)). Combining funds could include blending multiple funding streams, pooling funds, or layering funds together from multiple funding streams to expand and/or enhance services for infants, toddlers, preschoolers and school-age children and families to allow for the delivery of comprehensive quality care that meets the needs of children and families. For example, state/territory agencies may use multiple funding sources to offer grants or contracts to programs to deliver services; a state/territory may allow a county/local government to use coordinated funding streams; or policies may be in place that allow local programs to layer CCDF funds with additional funding sources to pay for full-day, full-year child care that meets Early Head Start/Head Start Program Performance Standards or state/territory prekindergarten requirements in addition to state/territory child care licensing requirements.

As a reminder, CCDF funds may be used in collaborative efforts with Head Start programs to provide comprehensive child care and development services for children who are eligible for both programs. In fact, the coordination and collaboration between Head Start and CCDF is strongly encouraged by sections 640(g)(1)(D) and (E); 640(h); 641(d)(2)(H)(v); and 642(e)(3) of the Head Start Act in the provision of full working day, full calendar year comprehensive services. To implement such collaborative programs, which share, for example, space, equipment, or materials, grantees may layer several funding streams so that seamless services are provided (Policy and Program Guidance for the Early Head Start ' Child Care Partnerships:

https://www.acf.hhs.gov/sites/default/files/occ/acf_im_ohs_15_03.pdf
).

1.5.1 Does the Lead Agency choose to combine funding for CCDF services for any required early childhood program (98.14(a)(3))?

Effective Date: 10/01/2018

- [x] No (If no, skip to question 1.5.2)
- [ ] Yes. If yes, describe at a minimum:

a) How you define "combine"

b) Which funds you will combine

c) Your purpose and expected outcomes for combining funds, such as extending the day or year of services available (i.e., full-day, full-year programming for working families), smoothing transitions for children, enhancing and aligning quality of services, linking comprehensive services to children in child care or developing the supply of child care for vulnerable populations

d) How you will be combining multiple sets of funding, such as at the State/Territory level, local level, program level?

e) How are the funds tracked and method of oversight

1.5.2 Which of the following funds does the Lead Agency intend to use to meet the CCDF matching and MOE requirements described in 98.55(e) and 98.55(h)?

Note:
The Lead Agency must check at least public and/or private funds as matching, even if preK funds also will be used.

Use of PreK for Maintenance of Effort: The CCDF final rule clarifies that public preK funds may also serve as maintenance-of-effort funds as long as the state/territory can describe how it will coordinate preK and child care services to expand the availability of child care while using public preK funds as no more than 20 percent of the state's or territory's maintenance of effort or 30 percent of its matching funds in a single fiscal year (FY) (98.55(h)). If expenditures for preK services are used to meet the maintenance-of-effort requirement, the state/territory must certify that it has not reduced its level of effort in full-day/full-year child care services (98.55(h)(1); 98.15(a)(6)).

Use of Private Funds for Match or Maintenance of Effort: Donated funds do not need to be under the administrative control of the Lead Agency to qualify as an expenditure for federal match. However, Lead Agencies do need to identify and designate in the state/territory Plan the donated funds given to public or private entities to implement the CCDF child care program (98.55(f)).

Effective Date: 10/01/2018

- ☐ N/A - The territory is not required to meet CCDF matching and MOE requirements
- ☑ Public funds are used to meet the CCDF matching fund requirement. Public funds may include any general revenue funds, county or other local public funds, state/territory-specific funds (tobacco tax, lottery), or any other public funds.

  -- If checked, identify the source of funds:

  State General Funds

  -- If known, identify the estimated amount of public funds that the Lead Agency will receive: $ 15 million over 3 years

☐ Private donated funds are used to meet the CCDF matching funds requirement. Only private funds received by the designated entities or by the Lead Agency may be counted for match purposes (98.53(f)).
-- If checked, are those funds:

☐ donated directly to the State?

☐ donated to a separate entity(ies) designated to receive private donated funds?

-- If checked, identify the name, address, contact, and type of entities designated to receive private donated funds:

-- If known, identify the estimated amount of private donated funds that the Lead Agency will receive: $

☐ State expenditures for preK programs are used to meet the CCDF matching funds requirement.

If checked, provide the estimated percentage of the matching fund requirement that will be met with preK expenditures (not to exceed 30 percent):

-- If the percentage is more than 10 percent of the matching fund requirement, describe how the State will coordinate its preK and child care services:

-- If known, identify the estimated amount of preK funds that the Lead Agency will receive for the matching funds requirement: $

-- Describe the Lead Agency efforts to ensure that preK programs meet the needs of working parents:

☐ State expenditures for preK programs are used to meet the CCDF maintenance-of-effort requirements. If checked,
-- The Lead Agency assures that its level of effort in full-day/full-year child care services has not been reduced, pursuant to 98.55(h)(1) and 98.15(6).

☐ No

☐ Yes

-- Describe the Lead Agency efforts to ensure that preK programs meet the needs of working parents:

-- Estimated percentage of the MOE Fund requirement that will be met with preK expenditures (not to exceed 20 percent):

-- If the percentage is more than 10 percent of the MOE requirement, describe how the State will coordinate its preK and child care services to expand the availability of child care:

-- If known, identify the estimated amount of preK funds that the Lead Agency will receive for the MOE Fund requirement: $

1.6 Public-Private Partnerships

Lead Agencies are required to describe how they encourage public-private partnerships among other public agencies, tribal organizations, private entities, faith-based organizations, businesses or organizations that promote business involvement, and/or community-based organizations to leverage existing service delivery (i.e., cooperative agreement among providers to pool resources to pay for shared fixed costs and operation) (658E(c)(2)(P)). ACF expects these types of partnerships to leverage public and private resources to further the goals of the CCDBG Act. Lead Agencies are required to demonstrate how they encourage public-private partnerships to leverage existing child care and early education service-delivery systems and to increase the supply and quality of child care services for children younger than age 13, for example, by implementing voluntary shared service alliance models (98.14(a)(4)).

1.6.1 Identify and describe the entities with which and the levels at which the state/territory is partnering (level-state/territory, county/local, and/or programs), the goals of the partnerships, the ways that partnerships are expected to leverage existing service-delivery systems, the method of partnering, and examples of activities that have resulted from these partnerships (98.16(d)(2)).

The Department has several partnerships among state agencies, local public agencies, private entities, and community-based organizations to leverage existing service delivery systems. The following describes those partnerships and outlines the goals of the partnerships: the Department and the WY Quality Counts! program partner to provide parents, providers and consumers current information related to early care and learning. This effort ensures the federal requirements are met by the state. The Department is involved with the Wyoming Department of Health on a project related to obesity prevention

with a goal to enhance provider awareness by providing information and training and enhancing the Child Care Licensing rules to support healthy eating and physical activity. In addition, the Department engages with the local county government in regards to Child Care Licensing. Over the next 3 years, the Department will be working closely with the local county health department's and the Wyoming Department of Agriculture on the goal to transition food safety and sanitation inspections from the local and state government to the Child Care Licensing program. The coordination will involve revision of the Child Care Licensing Rules, revision of Department of Agriculture Food Safety Rules, revision of county health department's inspection tools, and staff training. The Department is involved with the University of Wyoming, Early Childhood program, to provide Early Learning Guidelines and Early Learning Foundations training and support to child care providers across the state.The Department is involved with federal TA staff, providers and other early childhood professionals across the state to identify opportunities for providers and staff to receive Infant and Toddler training to meet the Infant and Toddler Director Credential requirements.

Effective Date: 10/01/2018

1.7 Coordination With Local or Regional Child Care Resource and Referral Systems

Lead Agencies may use CCDF funds to establish or support a system of local or regional child care resource and referral (CCR&R) organizations that is coordinated, to the extent determined by the state/territory, by a statewide public or private non-profit, community-based or regionally based, lead child care resource and referral organization (such as a statewide CCR&R network) (658E(c)(3)(B)(iii); 98.52).

- If Lead Agencies use CCDF funds for local CCR&R organizations, the local or regional CCR&R organizations supported by those funds must, at the direction of the Lead Agency, provide parents in the State with consumer education information concerning the full range of child care options (including faith-based and community-based child care providers), analyzed by provider, including child care provided during non-traditional hours and through emergency child care centers, in their area.

- To the extent practicable, work directly with families who receive assistance to offer the families support and assistance to make an informed decision about which child care providers they will use to ensure that the families are enrolling their children in the most appropriate child care setting that suits their needs and one that is of high quality (as determined by the Lead Agency).

- Collect data and provide information on the coordination of services and supports, including services under Section 619 and Part C of the Individuals with Disabilities Education Act;

- Collect data and provide information on the supply of and demand for child care services in areas of the state and submit the information to the State;

- Work to establish partnerships with public agencies and private entities, including faith- based and community-based child care providers, to increase the supply and quality of child care services in the state and, as appropriate, coordinate their activities with the activities of the state Lead Agency and local agencies that administer funds made available through CCDF (98.52(b)).

Nothing in the statute or rule prohibits States from using CCR&R agencies to conduct or provide additional services beyond those required by statute or rule.

Note: Use 1.7.1 to address if a state/territory funds a CCR&R organization, what services are provided and how it is structured and use section 7.6.1 to address the indicators of progress met by CCR&R organizations if they are funded by quality set-aside funds.

1.7.1 Does the Lead Agency fund a system of local or regional CCR&R organizations?

Effective Date: 10/01/2018

☐ No. The state/territory does not fund a CCR&R organization(s) and has no plans to establish one.

☑ Yes. The state/territory funds a CCR&R system. If yes, describe the following:

a) What services are provided through the CCR&R organization?

CCR&R is available to assist families in selecting child care providers who best meet the needs of a child and their family, by providing information concerning the full range of child care options in the state. CCR&R also provides resources and consultation to licensed child care providers. CCR&R program staff collects data including the demand for child care services in the state. CCR&R offers to: Families: Information

about child care options, quality, and referrals to child care programs that are licensed, certified or registered; Questionnaire resource for guidance for selecting quality child care; newsletters; Information about financial assistance; and Health and Social Services resources and information. Providers: Listing on the CCR&R referral database; Referrals to program; Help with business, child care, and regulatory questions; Information about professional development opportunities; Technical assistance consultants; and Statewide training. In addition, the CCR&R collects data regarding the demand for child care across the state, including ages of children needing care, setting, hours, etc. The Department uses the data to work with child care licensers and others in the local Department field offices to develop strategies to meet the identified needs of consumers.

b) How are CCR&R services organized, include how many agencies, if there is a statewide network and if the system is coordinated?

The Department is responsible for Child Care Resource & Referral. How the CCR&R system is operated, including how many agencies and if there is a statewide network and how the system is coordinated. The Department serves as the statewide Child Care Resource and Referral agency utilizing one (1) Full Time Employee (FTE) to provide resources and referrals to parents, providers and other consumers and stakeholders.

1.8 Disaster Preparedness and Response Plan

Lead Agencies are required to establish a Statewide Child Care Disaster Plan (658E(c)(2)(U)). They must demonstrate how they will address the needs of children'including the need for safe child care, before, during, and after a state of emergency declared by the Governor or a major disaster or emergency (as defined by Section 102 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act, 42 U.S.C. 5122)'through a Statewide Disaster Plan that, for a State, is developed in collaboration with the State human services agency, the State emergency management agency, the State licensing agency, the State health department or public health department, local and State child care resource and referral agencies, and the State Advisory Council on Early Childhood Education and Care (designated or established pursuant to section 642B(b)(I)(A)(i) of the Head Start Act (42 U.S.C. 9837b(b)(1)(A)(i))) or similar coordinating body (98.16(aa)).

1.8.1 Describe how the Statewide Child Care Disaster Plan was developed in collaboration with the State human services agency, the State emergency management agency, the State licensing agency, the State health department or public health department, local and State child care resource and referral agencies, and the State Advisory Council on Early Childhood Education and Care or similar coordinating body:

During the development of the Statewide Child Care Disaster Plan, the Department (the state human service agency) staff met with Emergency Support Function partners, other local and state agencies (including the Wyoming Department of Health), NGOs and State emergency preparedness task forces for input on the Plan. Additionally, Plan drafts with revisions were sent to State partners, agencies and others; including, but not limited to, the Wyoming Office Of Homeland Security, Emergency Management Coordinators, Public Health Response Coordinators, WY Department of Health, NGOs, child care professionals, child care organizations/associations and WY Volunteer Organizations After Disaster (VOAD), and Wyoming Early Childhood State Advisory Council. The Department has responsibility for Child Care Licensing and Child Care Resource & Referral, and program staff from each of the programs were involved in the development of the Disaster Plan. In addition, monthly calls are conducted involving the Department and federal, state, and local partners to discuss disaster preparedness and response (monthly calls include calls with WOHS with coordinators, map coordination, Wyoming All-Hazard Association and Wyoming Department of Health Emergency Preparedness). These calls may require updates or changes to the state Disaster Plan.

Effective Date: 10/01/2018

1.8.2 Describe how the Statewide Disaster Plan includes the Lead Agency's guidelines for the continuation of child care subsidies and child care services, which may include the provision of emergency and temporary child care services during a disaster and temporary operating standards for child care after a disaster:

The Wyoming Statewide Disaster Plan includes provisions for the continuation of child care subsidies, extending emergency care beyond the 30 days and enrollment of new providers

on a temporary basis by creating a specialized Disaster Assistance application and procedures for quickly assisting families in need. Additionally, the Department has established Rules for Variances and basic disaster related Rules to assist child care professionals, impacted by a disaster, who may be unable to meet general Child Care Licensing Rules or Exempt provider guidelines. The Department has the ability to temporarily increase a licensed capacity as well as provide a Variance for a non-critical health and safety Rule. The Department has provided disaster specific training to child care professionals statewide. The Department continues to coordinate and outline procedures for temporary emergency care with Emergency Management Coordinators, American Red Cross, WY and other VOADs. In addition, the Department works directly with the Wyoming Office of Homeland Security, Individual and Public Assistance Coordinators, for procedures relating to additional support during a Presidential Disaster Declaration to assist Wyoming families and child care professionals, including for profit and non-profit facilities.

Effective Date: 10/01/2018

1.8.3 Describe Lead Agency procedures for the coordination of post-disaster recovery of child care services:

The Wyoming Statewide Disaster Plan includes provisions for a whole community approach with the support of our Emergency Support Function partners, Emergency Management Coordinators, Wyoming Office of Homeland Security, NGOs and WY VOAD to coordinate recovery efforts. The Department has developed a child care disaster assessment for child care professionals to complete and return to the Department to better assess recovery efforts needed. The Department continues to raise awareness and coordination with a variety of partners in an effort to address the needs of children after a disaster. The Department will request recovery support from the local Emergency Management Coordinator and/or Incident Command. If support or resources are unavailable at a local level, the Department will request, through the Emergency Management Coordinator and/or Incident Command, that the Wyoming Office of Homeland Security provide assistance. The Department maintains and shares Google Maps for location identification of licensed and exempt child care professionals in relation to the disaster area with Emergency Management Coordinators, Public Health Response Coordinators, Law Enforcement Agencies and the

Wyoming Department of Health, Public Health Emergency Preparedness Unit. The Department has been granted access to a Google Map of potential shelters available across the State and has begun the process of designing a communication plan with the Wyoming Chapter of Red Cross.

Effective Date: 10/01/2018

1.8.4 Describe how the Lead Agency ensures that providers who receive CCDF funds have the following procedures in place-evacuation; relocation; shelter-in-place; lockdown; communications with and reunification of families; continuity of operations; and accommodations for infants and toddlers, children with disabilities, and children with chronic medical conditions:

For licensed CCDF providers, the Department's Child Care Licensing Rules, includes the following requirements (Chapter 4, Section 14): (v) Emergency preparedness guidelines shall be written, available, followed and include: (i) Plans for evacuation, shelter-in-place, lockdown of the facility, reunification and procedures for responding to each type of emergency likely in the area; (ii) Plans for children with special needs as soon as they are enrolled in the program; (iii) That children's emergency contact phone numbers and attendance records shall be taken outside during all emergency evacuation and drills; (iv) That drills shall include practice from all exit locations, at varied times of the day, and during varied activities; and (v) That fire safety and emergency evacuation diagrams (floor plans) shall be posted by all exits. AND Chapter 4, Section 5: (x) Emergency preparedness guidelines and procedures shall be given to parent in writing and include: (A) How parents shall be notified in the case of an emergency at the facility; (B) Relocation site with contact information at that site; and (C) Procedures for child reunification or release.

In addition, child care providers include how they will accommodate infants and toddlers in the event of an emergency or disaster. Because the above requirements are in the Department's Child Care Licensing Rules, child care providers are inspected to ensure they are in compliance with the requirements. Child care licensers are required to perform two (2)visits per year at each licensed facility (one (1) unannounced visit and one (1) renewal visit). In addition, child care licensers have provided technical assistance to licensed providers regarding the development of a facility disaster

plan which includes the above mentioned information (using a sample disaster plan and template). The Wyoming Rules for Child Care Purchase of Service require that all license-exempt providers, with the exception of relatives, shall have plans for evacuation, shelter-in-place, lockdown of the facility, reunification and procedures for responding to each type of emergency likely in the area AND that drills shall include practice from all exit locations, at varied times of the day, and during varied activities. The requirements are in the Department's Child Care Purchase of Service Rules,and licensed-exempt providers (except relative providers) are inspected annually to ensure they are in compliance with these requirements as well as other health & safety requirements. The Department is in the process of making changes to the Wyoming Rules Child Care Purchase of Service to require all licensed-exempt providers to develop a facility disaster plan which includes the above mentioned information (using a sample disaster plan and template).

Effective Date: 10/01/2018

1.8.5 Describe how the Lead Agency ensures that providers who receive CCDF funds have the following procedures in place for child care staff and volunteers-emergency preparedness training and practice drills as required in 98.41(a)(1)(vii):

The Wyoming Rules for Certification of Family Child Care Homes (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) require that all licensed providers shall have plans for evacuation, shelter-in-place, lockdown of the facility, reunification and procedures for responding to each type of emergency likely in the area and that drills shall include practice from all exit locations, at varied times of the day, and during varied activities. In addition, emergency evacuation drills shall be held monthly; planned and conducted by the provider or staff; require all occupants to participate; be conducted at different hours of the day or evening, at unexpected times and under varying conditions, to avoid distinction between drills and actual fires; and be initiated by activating the smoke alarm. The providers are also required to participate in pre-service and on-going training on emergency preparedness and fire safety. The Wyoming Rules for Child Care Purchase of Service require that all license-exempt providers, with the exception of relatives, shall have plans for evacuation, shelter-in-place, lockdown of the facility, reunification and procedures for responding to each type of emergency likely in the area and that drills shall include practice

from all exit locations, at varied times of the day, and during varied activities. Licensed-exempt providers (except relative providers) are inspected annually to ensure they are in compliance with the requirements and other health & safety requirements. The Wyoming Rules for Certification of Family Child Care Homes (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) also require all providers and staff in a facility to complete staff orientation that shall include all staff policies, procedures and child care licensing rules.

Effective Date: 10/01/2018

1.8.6 Provide the link to the website where the statewide child care disaster plan is available:

https://docs.google.com/a/wyo.gov/viewer?a=v&pid=sites&srcid=d3lvLmdvdnxlYXJseS1jaGlsZGNhcmUtYW5kLWxpY2Vuc2luZ3xneDo3NjI3NDBkNDFmYmNiYzk5

Effective Date: 10/01/2018

2 Promote Family Engagement through Outreach and Consumer Education

Lead Agencies are required to support the role of parents as child care consumers who need information to make informed choices regarding the services that best suit their needs. A key purpose of the CCDBG Act is to 'promote involvement by parents and family members in the development of their children in child care settings' (658A(b)). Lead Agencies have the opportunity to consider how information can be provided to parents through the child care assistance system, partner agencies, and child care consumer education websites.

The target audience for the consumer education information includes three groups: parents

receiving CCDF assistance, the general public, and when appropriate, child care providers. In this section, Lead Agencies will address how information is made available to families to assist them in accessing high-quality child care and how information is shared on other financial assistance programs or supports for which a family might be eligible. In addition, Lead Agencies will certify that information on developmental screenings is provided and will describe how research and best practices concerning children's development, including their social-emotional development, is shared.

In this section, Lead Agencies will delineate the consumer and provider education information related to child care, as well as other services, including developmental screenings, that is made available to parents, providers, and the general public and the ways that it is made available. This section also covers the parental complaint process and the consumer education website that has been developed by the Lead Agency and the manner in which it links to the national website and hotline. Finally, this section addresses the consumer statement that is provided to parents supported with CCDF funds.

2.1 Outreach to Families With Limited English Proficiency and Persons With Disabilities

The Lead Agency is required to describe how it provides outreach and services to eligible families with limited English proficiency and persons with disabilities and to facilitate the participation of child care providers with limited English proficiency and disabilities in the CCDF program (98.16(dd)). Lead Agencies are required to develop policies and procedures to clearly communicate program information, such as requirements, consumer education information, and eligibility information, to families and child care providers of all backgrounds (81 FR 67456).

2.1.1 Check the strategies the Lead Agency or partners utilize to provide outreach and services to eligible families for whom English is not their first language. Check all that apply.

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- [x] Application in other languages (application document, brochures, provider notices)
- [ ] Informational materials in non-English languages
- [x] Website in non-English languages

- [ ] Lead Agency accepts applications at local community-based locations
- [x] Bilingual caseworkers or translators available
- [ ] Bilingual outreach workers
- [x] Partnerships with community-based organizations
- [ ] Other.

  Describe:

2.1.2 Check the strategies the Lead Agency or partners utilize to provide outreach and services to eligible families with a person(s) with a disability. Check all that apply.

Effective Date: 10/01/2018

- [ ] Applications and public informational materials available in Braille and other communication formats for access by individuals with disabilities
- [x] Websites that are accessible (e.g. Section 508 of the Rehabilitation Act)
- [ ] Caseworkers with specialized training/experience in working with individuals with disabilities
- [x] Ensuring accessibility of environments and activities for all children
- [ ] Partnerships with state and local programs and associations focused on disability-related topics and issues
- [ ] Partnerships with parent associations, support groups, and parent-to-parent support groups, including the Individuals with Disabilities Education Act (IDEA) federally funded Parent Training and Information Centers
- [x] Partnerships with state and local IDEA Part B, Section 619 and Part C providers and agencies
- [x] Availability and/or access to specialized services (e.g. mental health, behavioral specialists, therapists) to address the needs of all children
- [ ] Other.

  Describe:

2.2 Parental Complaint Process

The Lead Agency must certify that the state/territory maintains a record of substantiated parental complaints and makes information regarding such complaints available to the public on request (658E(c)(2)(C); 98.15(b)(3)). Lead Agencies must also provide a detailed description of the hotline or similar reporting process for parents to submit complaints about child care providers; the process for substantiating complaints; the manner in which the Lead Agency maintains a record of substantiated parental complaints; and ways that the Lead Agency makes information on such parental complaints available to the public on request (98.16; 98.32).

2.2.1 Describe the Lead Agency's hotline or similar reporting process through which parents can submit complaints about child care providers, including a link if it is a Web-based process:

If a parent, guardian or other concerned citizen thinks that a child care program is not meeting the licensing requirements, a complaint can be made to the local child care licenser. The Department's website has available a map with all child care licensers, child care licensing supervisors and their contact information. The parent, guardian or other concerned citizen are able to call the child care licenser or supervisor with a complaint or submit the complaint in writing via email. The Department has the authority to investigate all of these areas. However, the Department has no authority over areas such as operational policies about payment, hours or days of operation, if a program chooses not to administer medication, or enrollment or termination policies. The Complaint Investigation Procedure for Licensing Requirements are as follows: File Complaint; and Contact the child care licenser for the a area.

Effective Date: 10/01/2018

2.2.2 Describe the Lead Agency's process and timeline for screening, substantiating and responding to complaints regarding CCDF providers, including whether the process includes monitoring:

For all licensed providers, the Department investigates complaints involving violations of

child care licensing rules. If complaints are related to non-licensing issues (i.e. rates charged and hours of operation), the complaint shall be rejected or referred when appropriate. The provider and/or director shall be notified in writing of the allegations made in the complaint. The Department makes an unannounced visit to discuss the complaint with the provider and/or director. Dependent upon the nature of the complaint, various aspects of the program will be monitored. Upon completion of the investigation: The provider and/or director shall be notified in writing of the findings and any areas of non-compliance with the rules. The Child Care Licensing programs determines whether a complaint is substantiated or not substantiated based on eveidence gathered throughout the course of the investigation; What corrections shall be made and a date by which compliance shall be expected; Who is responsible for the correction; What was done or will be done to correct the problem; The child care licenser may monitor to ensure that the situation does not develop again; and An appropriate date is given, not to exceed 14 days from the date of the notice, for all issues of non-compliance to be corrected. The Department shall review, within 14 days after receipt, the program's Corrective Action Plan and schedule. At that time, the Department shall: Approve the proposed Corrective Action Plan and completion schedule; Modify and approve the Corrective Action Plan and completion schedule; or Disapprove the Corrective Action Plan and completion schedule and revoke or suspend the prior certification of the program pursuant to Child Care Licensing Rules. For licensed-exempt providers, the Department investigates complaints of violations of the provider agreement. When a complaint is received by the Child Care Assistance worker or other Department staff, it is forwarded to the Child Care Assistance Program Manager. The Child Care Assistance Program Manager is responsible for contacting the licensed-exempt provider to gather information related to the complaint. Upon completion of the investigation, the Child Care Assistance Program Manager notifies the licensed-exempt provider of the outcome of the investigation. Depending on the type of complaint, negative action may be taken.

Effective Date: 10/01/2018

2.2.3 Describe the Lead Agency's process and timeline for screening, substantiating and responding to complaints for non-CCDF providers, including whether the process includes monitoring:

Describe the Lead Agency's process for screening, substantiating and responding to complaints for non-CCDF providers, including whether the process includes monitoring: For all licensed providers, the Department investigates complaints involving violations of child care licensing rules. If complaints related to non-licensing issues (i.e. rates charged and hours of operation), the complaint shall be rejected or referred when appropriate. The provider and/or director shall be notified in writing of the allegations made in the complaint. The Department makes an unannounced visit to discuss the complaint with the provider and/or director. Dependent upon the nature of the complaint, various aspects of the program will be monitored. Upon completion of the investigation: The provider and/or director shall be notified in writing of the findings and any areas of non-compliance with the rules; What corrections shall be made and a date by which compliance shall be expected; Who is responsible for the correction; What was done or will be done to correct the problem; The child care licenser may monitor to ensure that the situation does not develop again; An appropriate date is given, not to exceed 14 days from the date of the notice, for the issues of non-compliance to be corrected. The Department shall review, within 14 days after receipt, the program's Corrective Action Plan and schedule. At that time, the Department shall: Approve the proposed Corrective Action Plan and completion schedule; Modify and approve the Corrective Action Plan and completion schedule; or Disapprove the Corrective Action Plan and completion schedule and revoke or suspend the prior certification of the program pursuant to Child Care Licensing Rules. The Department responds to concerns or allegations of child care providers operating without a license. The Department makes an unannounced visit to discuss the complaint with the identified person. The Department tries to establish whether or not child care is being provided and if it would require licensure. If licensure is required, the Department child care licenser explains to the person what needs to happen in regards to licensing. In addition, the child care licenser explains the person shall "cease and desist" in operating without a license. The Department's child care licenser provides a referral to local law enforcement and the county attorney's office for issuance of a citation or prosecution.

Effective Date: 10/01/2018

2.2.4 Certify by describing how the Lead Agency maintains a record of substantiated parental complaints:

The Department, Child Care Licensing, uses the Child Care Licensing database system to keep records of all substantiated complaints. The records are maintained indefinitely for all operating, licensed facilities and the hard copy records for all closed facilities are archived and maintained for three (3) years. The Department, Child Care Assistance, documents all records of substantiated complaints for license exempt providers. The records are maintained indefinitely for all operating license-exempt providers and the records for all non-operating license exempt providers are archived and maintained for three (3) years.

Effective Date: 10/01/2018

2.2.5 Certify by describing how the Lead Agency makes information about substantiated parental complaints available to the public; this information can include the consumer education website discussed in section 2.3:

Child Care Licensing records are public records and anyone can access a provider's history of licensing complaints on the Department's public website (https://findchildcarewy.org/maps/) or call the Child Care Licensing office and ask if any licensing complaints have been substantiated against the provider. The public may also email a complaint and compliance history request to the Child Care Licenser and receive a copy of the substantiated allegations. All cases involving child abuse and neglect investigations are confidential and unavailable to the public.

Effective Date: 10/01/2018

2.2.6 Provide the citation to the Lead Agency's policy and process related to parental complaints:

The Department's public website (https://findchildcarewy.org/maps/) also provides information regarding license-exempt non-relative providers. Information regarding their annual inspection and any violations are available.

Effective Date: 10/01/2018

2.3 Consumer Education Website

States and Territories are required to provide information to parents, the general public, and when applicable, child care providers through a State website, which is consumer-friendly and easily accessible (658E(c)(2)(E)(i)(III)). The website must include information to assist families in understanding the policies and procedures for licensing child care providers. The website information must also include provider-specific information, monitoring and inspection reports for the provider, the quality of each provider (if such information is available for the provider), and the availability of the provider (658E(c)(2)(D); 98.33(a)). The website should also provide access to a yearly statewide report on deaths, serious injuries, and the number of cases of substantiated child abuse that have occurred in child care settings. To assist families with any additional questions, the website should provide contact information for local child care resource and referral organizations and any other agencies that can assist families in better understanding the information on the website.

To certify, respond to questions 2.3.1 through 2.3.10 by describing how the Lead Agency meets these requirements and provide the link in 2.3.11. If the Lead Agency has not fully implemented the Consumer Education website elements identified in Section 2.3, then respond to question 2.3.12. Please note that any changes made to the web links provided below in this section after the CCDF Plan is approved will require a CCDF Plan amendment.

2.3.1 Describe how the Lead Agency ensures that its website is consumer-friendly and easily accessible:

The Department had a complete website overhaul making it consumer friendly and easily accessible. The website now meets ADA and 508 compliance. Please use the following to review: dfs.wyo.gov

Effective Date: 09-30-2019

2.3.2 Describe how the website ensures the widest possible access to services for families that speak languages other than English (98.33(a)):

The Department's website can be translated in various languages supported by Google.

Effective Date: 10/01/2018

2.3.3 Describe how the website ensures the widest possible access to services for persons with disabilities:

The Department's website provides an extensive list of statewide resources for services that are accessible by any consumer, parent, or provider. The Department's website embeds a link in a post, as it's more useful to describe the link, rather than just telling the reader to "click here." In addition, the Department's website utilizes black text on a white background as it is the best general practice, because it's readable for most audiences. For users with mobility problems, the clickable item has a wider range so the user can click on it within the item's general area. The website now meets ADA and 508 compliance. Generally, the Department's website breaks text into smaller paragraphs and uses simple, straightforward language in the active voice.

Effective Date: 09/30/2019

2.3.4 Lead Agency processes related to child care.

A required component of the consumer education website is a description of Lead Agency policies and procedures relating to child care (98.33(a) (1)). This information includes a description of how the state/territory licenses child care, a rationale for exempting providers from licensing requirements, the procedure for conducting monitoring and inspections of providers, and the policies and procedures related to criminal background checks.

Effective Date: 10/01/2018

a) Provide the link to how the Lead Agency licenses child care providers, including the rationale for exempting certain providers from licensing requirements, as described in section 5.3.6:

https://sites.google.com/a/wyo.gov/early-childcare-and-licensing/child-care-1/home/dfs-in-your-community/child-care-resources

b) Provide the link to the procedure for conducting monitoring and inspections of child care providers, as described in section 5.3.2:

https://sites.google.com/a/wyo.gov/early-childcare-and-licensing/child-care-1/home/dfs-in-your-community/child-care-resources/licensing-faqs/child-care-licensing-and-eligibility-staff-maps/childcare-licensing-requirements

c) Provide the link to the policies and procedures related to criminal background checks for staff members of child care providers and the offenses that prevent individuals from being employed by a child care provider or receiving CCDF funds, as described in sections 5.4.1 and 5.4.11:

This link is a reflection of the Department's current criminal background check requirements and will be updated as the other processes are implemented.https://sites.google.com/a/wyo.gov/early-childcare-and-licensing/child-care-1/home/dfs-in-your-community/child-care-resources/licensing-faqs

2.3.5 List of providers

The consumer education website must include a list of all licensed providers and, at the discretion of the Lead Agency, all providers eligible to deliver CCDF services, identified as either licensed or license-exempt. Providers caring for children to whom they are related do not need to be included. The list of providers must be searchable by ZIP Code.

Effective Date: 10/01/2018

a) Provide the website link to the searchable list of child care providers:

https://findchildcarewy.org/maps/

b) In addition to the licensed providers that are required to be included in your searchable list, which additional providers are included in the Lead Agency's searchable list of child care providers (please check all that apply):

- [x] License-exempt center-based CCDF providers
- [x] License-exempt family child care (FCC) CCDF providers
- [ ] License-exempt non-CCDF providers
- [x] Relative CCDF child care providers
- [ ] Other.

Describe

c) Identify what informational elements, if any, are available in the searchable results. Note: Quality information (if available) and monitoring results are required on the website but are not required to be a part of the search results.

Licensed Providers

- [x] Contact Information
- [x] Enrollment Capacity
- [ ] Years in Operation
- [ ] Provider Education and Training
- [ ] Languages Spoken
- [ ] Quality Information

- [x] Monitoring Reports
- [ ] Other.

Describe:

License-Exempt, non-CCDF Providers

- [ ] Contact Information
- [ ] Enrollment Capacity
- [ ] Years in Operation
- [ ] Provider Education and Training
- [ ] Languages Spoken
- [ ] Quality Information
- [ ] Monitoring Reports
- [ ] Other.

Describe:

License-Exempt CCDF Center Based Providers

- [x] Contact Information
- [ ] Enrollment Capacity
- [ ] Years in Operation
- [ ] Provider Education and Training
- [ ] Languages Spoken
- [ ] Quality Information
- [x] Monitoring Reports
- [ ] Other.

Describe:

License-Exempt CCDF Family Child Care

- [x] Contact Information
- [ ] Enrollment Capacity
- [ ] Years in Operation

- [ ] Provider Education and Training
- [ ] Languages Spoken
- [ ] Quality Information
- [x] Monitoring Reports
- [ ] Other.

  Describe:

Relative CCDF Providers

- [ ] Contact Information
- [ ] Enrollment Capacity
- [ ] Years in Operation
- [ ] Provider Education and Training
- [ ] Languages Spoken
- [ ] Quality Information
- [ ] Monitoring Reports
- [ ] Other.

  Describe:

Other.

Describe:

- [ ] Contact Information
- [ ] Enrollment Capacity
- [ ] Years in Operation
- [ ] Provider Education and Training
- [ ] Languages Spoken
- [ ] Quality Information
- [ ] Monitoring Reports
- [ ] Other.

  Describe:

2.3.6 Lead Agencies must also identify specific quality information on each child care provider for whom they have this information. The type of information provided is determined by the Lead Agency, and it should help families easily understand whether a provider offers services that meet Lead Agency-specific best practices and standards or a nationally recognized, research-based set of criteria. Provider-specific quality information must only be posted on the consumer website if it is available for the individual provider.

Effective Date: 10/01/2018

a) How does the Lead Agency determine quality ratings or other quality information to include on the website?

- [ ] Quality rating and improvement system
- [ ] National accreditation
- [ ] Enhanced licensing system
- [ ] Meeting Head Start/Early Head Start requirements
- [ ] Meeting prekindergarten quality requirements
- [ ] School-age standards, where applicable
- [x] Other.

Describe

There are currently 40 NAEYC accredited programs in Wyoming. As the Department and other partners begin to contemplate quality and how a quality rating system might look in Wyoming, using national accreditation as a measure of quality will be considered.

b) For what types of providers are quality ratings or other indicators of quality available?

- [ ] Licensed CCDF providers.

Describe the quality information:

- [ ] Licensed non-CCDF providers.

Describe the quality information:

☐ License-exempt center-based CCDF providers.

Describe the quality information:

☐ License-exempt FCC CCDF providers.

Describe the quality information:

☐ License-exempt non-CCDF providers.

Describe the quality information:

☐ Relative child care providers.

Describe the quality information:

☐ Other.

Describe

2.3.7 Lead Agencies are required to post monitoring and inspection reports on the consumer education website for each licensed provider and for each non-relative provider eligible to provide CCDF services on the consumer education website. These reports must include results of required annual monitoring visits and visits due to major substantiated complaints about a provider's failure to comply with health and safety requirements and child care policies. The reports must be in plain language and be timely to ensure that the results of the reports are available and easily understood by parents when they are deciding on a child care provider. Lead Agencies must post at least 3 years of reports when available, going forward (not retrospectively), beginning October 1, 2018.

Certify by responding to the questions below:

Effective Date: 10/01/2018

a) What is the Lead Agency's definition of plain language and describe the process for receiving feedback from parents and the public about readability of reports.

The Department defines plain language in terms of how the information is organized and

understandability: Can a person find what they need and understand what they find. If a parent of other consumer is not able to find what they need and understand what they find, they can contact the child care licenser assigned to the program or the licensing supervisors, the licensing program manager or the child care assistance program manager.

b) Are monitoring and inspection reports in plain language?

☑ If yes,

include a website link to a sample monitoring report.

The monitoring and inspection reports are developed in plain language and are easy to comprehend and understand.

The link to both the licensed facilities and exempt programs is:

https://findchildcarewy.org/maps/

Jodi R. Wolf is an example of an exempt program with inspection.

School Kids R Us is an example of a licensed facility with violations related to a visit.

☐ If no,

describe how plain language summaries are used to meet the regulatory requirements and include a link to a sample summary.

c) Check to certify what the monitoring and inspection reports and/or their plain language summaries include:

☑ Date of inspection

☑ Health and safety violations, including those violations that resulted in fatalities or serious injuries.

Describe how these health and safety violations are prominently displayed.

The health and safety violations are identified and listed as violations requiring corrective action.

☑ Corrective action plans taken by the State and/or child care provider.

Describe

The Notice of Non-Compliance details the allegation of non-compliance (violation), the subsequent finding following investigation, and detail regarding what is required

for compliance (in the corrective action plan).

d) The process for correcting inaccuracies in reports.

The child care provider has the option to contact the Child Care Licensing Supervisor regarding inaccuracies in the Notice of Non-Compliance. The Child Care Licensing Supervisor shall review the record and make necessary changes. The corrected Notice of Non-Compliance shall be provided to the child care provider. For license-exempt CCDF providers, the Child Care Assistance program manager maybe be contaced to review the record and make necessary changes.

e) The process for providers to appeal the findings in reports, including the time requirements, timeframes for filing the appeal, for the investigation, and for removal of any violations from the website determined on appeal to be unfounded.

Requests may be made within local offices and forwarded to the Department; Requests for a hearing must be in writing. Requests for a hearing on issues pertaining to Child Care Licensing shall be made within 10 days from the date of mailing of the agency action. A hearing shall be held within 90 days of the agency action which gives rise to the complaint, unless otherwise provided by law.

f) How reports are posted in a timely manner. Specifically, provide the Lead Agency's definition of 'timely' and describe how it ensures that reports are posted within its timeframe. Note: While Lead Agencies define 'timely,' we recommend Lead Agencies update results as soon as possible and no later than 90 days after an inspection or corrective action is taken

The Department's Child Care Licensing case management system is programmed to automatically make the reports available on our search page after the 10 day period to request a contested care hearing has passed provided there was no request for a hearing. In those instances where a contested case hearing has been requested, the specific providers reports will not be public until the conclusion of the contested case hearing.

g) Describe the process for maintaining monitoring reports on the website. Specifically, provide the minimum number of years reports are posted and the policy for removing reports (98.33(a)(4)(iv)).

The Department will ensure the required minimum of three (3) years is available on the

website.

h) Any additional providers on which the Lead Agency chooses to include reports. Note - Licensed providers and CCDF providers must have monitoring and inspection reports posted on their consumer education website.

- ☐ License-exempt non-CCDF providers
- ☐ Relative child care providers
- ☐ Other.

  Describe

2.3.8 Aggregate data on serious injuries, deaths, and substantiated cases of child abuse that have occurred in child care settings each year must be posted on the consumer education website. This aggregate information on serious injuries and deaths must be organized by category of care (e.g., center, FCC, etc.) and licensing status for all eligible CCDF provider categories in the state. The information on instances of substantiated child abuse does not have to be organized by category of care or licensing status. The aggregate report should not list individual provider-specific information or names.

Certify by providing:

Effective Date: 10/01/2018

a) The designated entity to which child care providers must submit reports of any serious injuries or deaths of children occurring in child care (98.16 (ff)) and describe how the Lead Agency obtains the aggregate data from the entity.

Any injury, illness or incident which occurs at the licensed facility and results in medical treatment, hospitalization or death shall be reported to the parents of the child(ren) immediately and to the child care licenser within three (3) days of the incident. The death of any child in care, regardless of cause, shall be reported to licensing immediately. Licensed-exempt providers shall report serious injuries and deaths to the Department and they shall be kept on file and included in the annual aggregate data.

b) The definition of "substantiated child abuse" used by the Lead Agency for this requirement.

. Any report of child abuse or neglect made pursuant to W.S. 14-3-201 through 14-3-216 that, upon investigation, is supported by a preponderance of the evidence which is the standard of proof which is met when evidence, based on the facts, indicates that it is more likely than not the child(ren)/vulnerable adult was abused or neglected (CPS Rules, Chapter 1, Section 4(k)). (Adult/Child Protection).

c) The definition of "serious injury" used by the Lead Agency for this requirement.

Injury, illness or incident which occurs at the facility and results in medical treatment, hospitalization or death.

d) The website link to the page where the aggregate number of serious injuries, deaths, and substantiated instances of child abuse are posted.

https://findchildcarewy.org/maps/

2.3.9 The consumer education website should include contact information on referrals to local child care resource and referral organizations. How does the Lead Agency provide referrals to local CCR&R agencies through the consumer education website? Describe and include a website link to this information:

The consumer education website includes information regarding Child Care Resource and Referral, which is a function of the Department. http://www.wyqualitycounts.org/wy-early-childhood-network/program-category/state-organizations/ AND https://sites.google.com/a/wyo.gov/early-childcare-and-licensing/child-care-1/home/dfs-in-your-community/child-care-resources/childcare-licensing-rules/parents

Effective Date: 10/01/2018

2.3.10 The consumer education website should include information on how parents can contact the Lead Agency, or its designee, or other programs that can help the parent understand information included on the website. Describe and include a website link to this information:

The consumer education website includes information about the Department and includes contact information in addition to a direct link to the Department's website. http://www.wyqualitycounts.org/wy-early-childhood-network/program-category/state-organizations/page/2/ AND http://dfsweb.wyo.gov/child-care

Effective Date: 10/01/2018

2.3.11 Provide the website link to the Lead Agency's consumer education website. Note: An amendment is required if this website changes.

https://sites.google.com/a/wyo.gov/early-childcare-and-licensing/child-care-1/home/dfs-in-your-community/child-care-resources AND http://www.wyqualitycounts.org/

Effective Date: 10/01/2018

2.3.12 Other. Identify and describe the components that are still pending per the instructions on
CCDF Plan Response Options for Areas where Implementation is Still in Progress
in the Introduction.

NA

Effective Date: 10/01/2018

2.4 Additional Consumer and Provider Education

Lead Agencies are required to certify that they will collect and disseminate information about the full diversity of child care services to promote parental choice to parents of eligible children, the general public, and where applicable, child care providers. In addition to the consumer education website, the consumer education information can be provided through CCR&R organizations or through direct conversations with eligibility case workers and child care providers. Outreach and counseling can also be effectively provided via information sessions or intake processes for families (658E(c)(2)(E); 98.15(b)(4); 98.33(b)).

In questions 2.4.1 through 2.4.5, certify by describing:

2.4.1 How the Lead Agency shares information with eligible parents, the general public, and where applicable, child care providers about the availability of child care services provided through CCDF and other programs for which the family may be eligible, such as state preK, as well as the availability of financial assistance to obtain child care services. At a minimum, describe what is provided (e.g., such methods as written materials, the website, and direct communications) and how information is tailored for these audiences.

The Department provides child care resource and referral services to families in Wyoming. Parents can access CCR&R services through our toll free number or on the Department's website. The Department's website includes a searchable database and the phone numbers of licensing staff across the state. Licensing staff are trained to provide information on the components of quality early care and education and make additional referrals based on the needs of individual families. Child care licensers distribute materials to providers and parents. Parents can receive materials through the mail or electronically if requested. Additionally, the Department also provides brochures and newsletters to families receiving child care which provide information on the different child care options that are available to the family. One (1) full-time staff member at the Department helps families and providers navigate resources and referrals. The Department collaborates with local Head Start programs to create opportunities for receipt of child care assistance and to provide information regarding how families can access child care subsidy. The Department coordinates with WY Quality Counts!, Wyoming Workforce Services, the Department staff

(including child welfare and foster care), Department of Education, Department of Health, local school districts, Child Support Program staff, and other public/private entities to disseminate information regarding child care assistance services available. When parents are applying for other benefits, the Department's child care assistance workers provide an application for child care assistance. Child care providers are also provided a supply of applications. The Department's Early Childhood website houses information about the application process and program availability. In addition, e-blasts are sent to pre-built listserv which includes all directors, providers and facility staff to be distributed to parents and families. Child Care Licensing assists in the distribution of materials to child care providers and families by hand delivering and emailing information.

Effective Date: 10/01/2018

2.4.2 The partnerships formed to make information about the availability of child care services available to families.

The Department's CCR&R distributes information to parents, consumers and providers, via newsletters and collaborates with WY Quality Counts!, WY Kids First, Wyoming Early Childhood State Advisory Council, other state agencies, and private entities, including local home visiting programs and pediatricians. WY Quality Counts! was established to provide parent and consumer education regarding early childhood, including availability of child care services available across the state. The Department's "child care finder" and CCR&R are made accessible through WY Quality Counts!

Effective Date: 10/01/2018

2.4.3 How the Lead Agency provides the required information about the following programs and benefits to the parents of eligible children, the general public, and where applicable, providers. In the description include, at a minimum, what information is provided, how the information is provided, and how the information is tailored to a

variety of audiences and include any partners who assist in providing this information.

Effective Date: 10/01/2018

☑ Temporary Assistance for Needy Families program:

The Department's parent resource page, written and electronically, is distributed throughout the State which provides information regarding each of the programs listed in this section. The TANF and CCDF programs are both located within the Department. Benefit Specialists receive specialized training and share information with parents, the general public and providers who may need assistance from various programs; the information is tailored to the specific audience including parents, the general public and providers. The Department also provides information through its website and newsletter distributed to child care providers, consumers and families and it coordinates and distributes information with the Department of Health, Department of Education, Department of Workforce Services, Wyoming 211, and other local public/private entities. In addition, CCR&R e-blasts information regarding human service programs available within the Department, the Department programs (ie. TANF & SNAP) are invited to participate in provider training opportunities. The e-eblast are targeted to parents, providers and other consumers who may have provided contract information or requested information from the Department.

☑ Head Start and Early Head Start programs:

The Department's CCR&R distributes Head Start and Early Head Start enrollment, recruitment information, information regarding upcoming developmental screenings to parents, consumers and providers, through e-blasts, provider/parent newsletters, websites, social media, and U.S. Postal. In addition, the Department's child care licensers provide brochures and posters to area DFS offices and directly to child care providers. The Department collaborates with the Head Start Collaboration Director to coordinate activities and disseminate information. In addition, Head Start and Early Head Start programs are included in the e-blasts. The Department's parent resource page, written and electronically, is distributed throughout the State and provides information regarding Head Start and Early Head Start programs. The parent resource page is provided to parents, consumers and providers. Information is tailored to the specific audience including parents, the general public and providers.

☑ Low Income Home Energy Assistance Program (LIHEAP):

LIEAP is housed within the Department. Information is provided on the Department's website, provided at community booths, and distributed by Department Benefit Specialists, Child Care Assistance workers, caseworkers, child care licensers, and other staff;Information is tailored to the specific audience including parents, the general public and providers.The Department's website and application are available online. The Department coordinates and distributes information with the Department of Health, Department of Education, Department of Workforce Services, Wyoming 211, and other local public/private entities. The Department's parent resource page, written and electronically, is distributed throughout the State and provides information regarding LIHEAP. The parent resource page is provided to parents, consumers and providers.

☑ Supplemental Nutrition Assistance Programs (SNAP) Program:

SNAP is housed within the Department. Information is provided on the Department's website, provided at community booths, and distributed by Department Benefit Specialists, Child Care Assistance workers, caseworkers, child care licensers, and other staff;Information is tailored to the specific audience including parents, the general public and providers.The Department's website and application are available online. The Department coordinates and distributes information with the Department of Health, Department of Education, Department of Workforce Services, Wyoming 211, and other local public/private entities. The Department's parent resource page, written and electronically, is distributed throughout the State and provides information regarding SNAP. The parent resource page is provided to parents, consumers and providers.

☑ Women, Infants, and Children Program (WIC) program:

The Department's parent resource page, written and digital, is distributed throughout the State which provides information regarding WIC. The information is provided on the Department's website, provided at community booths, and distributed by Department Benefit Specialists, Child Care Assistance workers, caseworkers, child care licensers, and other staff; the Information may be tailored to the specific audience including parents, the general public and providers.. The Department's parent resource page, written and electronically, is distributed throughout the State and

provides information regarding WIC. The parent resource page is provided to parents, consumers and providers.

☑ Child and Adult Care Food Program(CACFP):

The Department child care licensers provide brochures regarding the CACFP program to new applicants and all providers. The Department's parent resource page, written and digital, is distributed throughout the State which provides information regarding the CACFP program; the Information may be tailored to the specific audience including parents, the general public and providers.. The information is provided on the Department's website, provided at community booths, and distributed by Department Benefit Specialists, Child Care Assistance workers, caseworkers, child care licensers, and other staff. The Department's parent resource page, written and electronically, is distributed throughout the State and provides information regarding CACFP. The parent resource page is provided to parents, consumers and providers.

☑ Medicaid and Children's Health Insurance Program (CHIP):

The Department's parent resource page, written and electronically, is distributed throughout the State which provides information regarding Medicaid. The Medicaid program is housed with the Department of Health and individuals are directed to their specialists. The Department's Benefit Specialists, Child Care Assistance workers, caseworkers provide information and referrals to the Medicaid program specialists.

☑ Programs carried out under IDEA Part B, Section 619 and Part C:

The Department provides referrals to State and public/private agencies that can better help the families. The information is provided on the Department's website in addition to the Department's resource page for parents, consumers and providers.

2.4.4 Describe how the Lead Agency makes available to parents, providers, and the general public information on research and best practices concerning children's development, including physical health and development, particularly healthy eating and physical activity. Information about successful parent and family engagement should also be shared. At a minimum, include what information is provided, how the information

is provided, and how the information is tailored to a variety of audiences and include any partners in providing this information.

The Department makes available information regarding early childhood development through the Department's website, CCR&R, Child Care Licensing, WY Quality Counts!, other state agencies, and public/private entities. The Department shares developmental milestones, resources to obtain information from nationally known programs, shares best practices, assists with arranging training opportunities, and distributes materials relating to Early Learning Guidelines and Early Learning Foundations through the Department's website, e-blasts, provider/family newsletters, CCR&R, Child Care Licensing and community booths. The Early Learning Guidelines and Early Learning Foundations are developed with child development as the foundation. The Early Learning Guidelines and Early Learning Foundations provide child development information as well as activities the parent or care giver may implement with the child(ren) to enhance child development. The Department and the following State agencies and organizations collaborate with Wy Quality Counts!: Department of Health, Department of Education, Parents as Teachers, WY Kids First, Wyoming Early Childhood State Advisory Council, community colleges, University of Wyoming, Parent Information Center/Parent Education Network, Uplift, and the Early Childhood community partnerships. WY Quality Counts! was established to provide parent and consumer education regarding early childhood. In addition, the Department partners with the Department of Health, Early Childhood Comprehensive Systems Grant (ECCS), which has established a Help Me Grow resource to educate parents about childhood development. The Department of Health, ECCS, has also established the Parent Leadership Training Institute to train parent leaders to engage in authentic parent and family engagement regarding policies and procedures.

Effective Date: 10/01/2018

2.4.5 Describe how information on the Lead Agency's policies regarding the social-emotional and behavioral issues and early childhood mental health of young children, including positive behavioral intervention and support models based on research and best practices for those from birth to school age, are shared with families, providers, and the general public. At a minimum, include what information is provided, how the

information is provided, and how information is tailored to a variety of audiences and include any partners in providing this information.

The following information is related to children from birth to school age. PARENTS: The Department makes information available through their website, e-blast newsletters and resources. The Department and the following State agencies and organizations collaborate with Wy Quality Counts!: Department of Health, Department of Education, Parents as Teachers, WY Kids First, Wyoming Early Childhood State Advisory Council, community colleges, University of Wyoming, Parent Information Center/Parent Education Network, Uplift, and the Early Childhood community partnerships.WY Quality Counts! was established to provide parent and consumer education regarding early childhood including social emotional/behavioral and early childhood mental health. WY Quality Counts! has a website with parent and provider pages where information is posted. In addition, WY Quality Counts! distributes child development milestones and activities to parents and providers. WY Quality Counts! uses various social media networks to share information statewide. In addition, the Department shares information with the Department of Health regarding barriers, including access, for children and families in the mental health system. The Department provides referrals to early childhood mental health consultation services on an as needed basis. PROVIDERS: The Department and the following State agencies and organizations collaborate with WY Quality Counts!: Department of Health, Department of Education, Parents as Teachers, WY Kids First, Wyoming Early Childhood State Advisory Council, community colleges, University of Wyoming, Parent Information Center/Parent Education Network, Uplift, and the Early Childhood community partnerships. WY Quality Counts! was established to provide parent and consumer education regarding early childhood including social emotional/behavioral and early childhood mental health. WY Quality Counts! has a website with consumers, stakeholders/general public and providers pages where information is posted. In addition, WY Quality Counts! distributes child development milestones and activities to consumers, stakeholders/general public and providers. WY Quality Counts! uses various social media networks to share information statewide. The Department provides social emotional and temperaments training through the Infant/Toddler Director Credential training available to child care providers. In addition, the Department shares information with the Department of Health regarding barriers, including access, for children and families in the mental health system. GENERAL PUBLIC: The Department and the following State agencies and organizations collaborate with Wy Quality Counts!: Department of Health, Department of Education, Parents as Teachers, WY Kids First, Wyoming Early Childhood State Advisory Council, community colleges, University of Wyoming, Parent Information

Center/Parent Education Network, Uplift, and the Early Childhood community partnerships. WY Quality Counts! was established to provide parent and consumer education regarding early childhood including social emotional/behavioral and early childhood mental health. WY Quality Counts! has a website with individual pages where information is posted for consumers, stakeholders/general public and providers. In addition, WY Quality Counts! distributes child development milestones and activities to consumers, stakeholders/general public and providers. WY Quality Counts! uses various social media networks to share information statewide. In addition, the Department shares information with the Department of Health regarding barriers.

Effective Date: 10/01/2018

2.4.6 Describe the Lead Agency's policies to prevent the suspension and expulsion of children from birth to age 5 in child care and other early childhood programs receiving CCDF funds (98.16(ee)), including how those policies are shared with families, providers, and the general public.

The Department's Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Centers and the Rules for Child Care Purchase of Service require all licensed and license-exempt non-relative providers to develop a suspension and expulsion policy. The policy shall: promote the social and emotional and behavioral health of children and limit the use of expulsion, suspension and other expulsionary practices; define how the director, owner and/or staff shall communicate with a parent(s) or guardian(s) regarding child's behavior and intervention implemented; and the program shall collaborate with the parents and engage available community resources to address challenging behaviors before a program determines whether an expulsion or suspension is appropriate. Additionally, the Department’s Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC) requires that parents shall be given a copy of written program policies by the child care provider, initially, and when there are changes to the policy, this includes the suspension and expulsion policy. The child care providers (license and license-exempt) received copies of the Department's rules which detail the requirement for the suspension and expulsion policy. The Department's rules are accessible on the website and via the Wyoming Secretary of

State's Office.

Effective Date: 09-30-2019

2.5 Procedures for Providing Information on Developmental Screenings

Lead Agencies are required to provide information on developmental screenings, including information on resources and services that the State can deploy, such as the use of the Early and Periodic Screening, Diagnosis, and Treatment program under the Medicaid program carried out under title XIX of the Social Security Act and developmental screening services available under IDEA Part B, Section 619 and Part C, in conducting those developmental screenings and in providing referrals to services for children who receive subsidies. Lead Agencies must also include a description of how a family or child care provider can use these resources and services to obtain developmental screenings for children who receive subsidies and who might be at risk of cognitive or other developmental delays, which can include social, emotional, physical, or linguistic delays (658E(c)(2)(E)(ii)). Lead Agencies are required to provide this information to eligible families during CCDF intake and to child care providers through training and education (98.33(c)).

2.5.1 Certify by describing:

Effective Date: 10/01/2018

a) How the Lead Agency collects and disseminates information on existing resources and services available for conducting developmental screenings to CCDF parents, the general public, and where applicable, child care providers (98.15(b)(3)).

The Department does not describe a process or procedure in policy; however we collaborate with the Wyoming Department of Health to ensure their recommendations about developmental screenings are readily accessible to all child care providers, parents, and consumers. The Department has developed a resource page for all parents, consumers and providers which include information regarding developmental screening services and Medicaid (to access the EPSDT). In addition, the same information referenced above is provided to parents and providers via a monthly newsletter and e-

blast.

b) The procedures for providing information on and referring families and child care providers to the Early and Periodic Screening, Diagnosis, and Treatment program under the Medicaid program - carried out under Title XIX of the Social Security Act (42 U.S.C. 1396 et seq.) - and developmental screening services available under Section 619 and Part C of the Individuals with Disabilities Education Act (20 U.S.C. 1419, 1431 et seq.).
The Department does not describe a process or procedure in policy; however we collaborate with the Wyoming Department of Health to ensure their recommendations about developmental screenings are readily accessible to all child care providers, parents, and consumers. The Department has developed a resource pamphlet for all parents and providers which include information regarding developmental screening services and Medicaid (to access the EPSDT). In addition, the same information referenced above is provided to parents and providers via a monthly newsletter and e-blast.

c) How the Lead Agency gives information on developmental screenings to parents receiving a subsidy as part of the intake process. Include the information provided, ways it is provided, and any partners in this work.
The Department's Child Care Assistance workers or support staff provide information related to developmental screenings to all persons requesting a Child Care Assistance application. The information includes who provides developmental screenings across the state and how to contact the entity for a developmental screening. The Wyoming Department of Health is responsible for the Child Development Centers, which are the entities providing developmental screenings. The Department coordinates with the Wyoming Department of Health.

d) How CCDF families or child care providers receiving CCDF can use the available resources and services to obtain developmental screenings for CCDF children at risk for cognitive or other developmental delays.
All families and providers, regardless of CCDF, are able to utilize the resources and services available. The Department provides the resources for parents and providers to contact CDS/CDC to schedule developmental screenings at the CDS/CDC facility or the child care facility with written parental permission.

e) How child care providers receive this information through training and professional development.

Child Care Providers participate in annual statewide training and receive information related to developmental screening. In addition, Child Care Resource & Referral e-blasts the information to all providers, including licensing staff, on a quarterly basis.

f) Provide the citation for this policy and procedure related to providing information on developmental screenings.

The Department does not specifically address providing information on developmental screenings to providers in policy. However, based on the Department's collaborative relationship with the Wyoming Department of Health, information regarding developmental screenings is shared bi-annually with providers at the request of the Wyoming Department of Health. In addition, information regarding developmental screenings can be found on the State's consumer education website, WY Quality Counts!

2.6 Consumer Statement for Parents Receiving CCDF Funds

Lead Agencies must provide CCDF parents with a consumer statement in hard copy or electronically (such as referral to a consumer education website) that contains specific information about the child care provider they select. This information about the child care provider selected by the parent includes health and safety requirements met by the provider, any licensing or regulatory requirements met by the provider, the date the provider was last inspected, any history of violations of these requirements, and any voluntary quality standards met by the provider. It must also describe how CCDF subsidies are designed to promote equal access, how to submit a complaint through a hotline, and how to contact local resource and referral agencies or other community-based supports that assist parents in finding and enrolling in quality child care (98.33(d)). Please note that if the consumer statement is provided electronically, Lead Agencies should consider how to ensure that the statement is accessible to parents and that parents have a way to contact someone to address questions they have.

2.6.1 Certify by describing:

Effective Date: 10/01/2018

a) How the Lead Agency provides parents receiving CCDF funds with a consumer statement.

The Department's Child Care Assistance worker provides, to all parents applying for child care assistance, a Child Care Consumer Resource page that includes a consumer statement regarding how CCDF assistance payments are designed to promote equal access, how to submit a complaint and how to contact statewide Child Care Resource & Referral. In addition, the Child Care Consumer Resource page includes information regarding a consumer education website where the parent or other consumer can find provider specific information, including, but not limited to: health and safety requirements met, licensing and regulatory requirements met, dates the provider was last inspected, and any history of requirement violations.

b) What is included in the statement, including when the consumer statement is provided to families.

The Department's Child Care Assistance worker provides, to all parents applying for child care assistance, a Child Care Consumer Resource page that includes a consumer statement regarding how CCDF assistance payments are designed to promote equal access, how to submit a complaint and how to contact statewide Child Care Resource & Referral. In addition, the Child Care Consumer Resource page includes information regarding a consumer education website where the parent or other consumer can find provider specific information, including, but not limited to: health and safety requirements met, licensing and regulatory requirements met, dates the provider was last inspected, and any history of requirement violations.

c) Provide a link to a sample consumer statement or a description if a link is not available.

https://docs.google.com/a/wyo.gov/viewer?a=v&pid=sites&srcid=d3lvLmdvdnxlYXJseS1jaGlsZGNhcmUtYW5kLWxpY2Vuc2luZ3xneDoxYjQxYmZmZDFlZjExYWQ5

3 Provide Stable Child Care Financial Assistance to Families

In providing child care assistance to families, Lead Agencies are required to implement these policies and procedures: a minimum 12-month eligibility and redetermination periods, a process to account for irregular fluctuations in earnings, a policy ensuring that families' work schedules are not disrupted by program requirements, policies to provide for a job search of not fewer than 3 months if the Lead Agency exercises the option to discontinue assistance, and policies for the graduated phase-out of assistance. Also, procedures for the enrollment of homeless children and children in foster care, if served, pending the completion of documentation, are required.

Note: Lead Agencies are not prohibited from establishing policies that extend eligibility beyond 12 months to align program requirements. For example, Lead Agencies can allow children enrolled in Head Start, Early Head Start, state or local prekindergarten, and other collaborative programs to finish the program year. This type pf policy promotes continuity for families receiving services through multiple benefit programs.

In this section, Lead Agencies will identify how they define eligible children and families and how the Lead Agency improves access for vulnerable children and families. This section also addresses the policies that protect working families and determine a family's contribution to the child care payment.

3.1 Eligible Children and Families

At the time when eligibility is determined or redetermined, children must (1) be younger than age 13; (2) reside with a family whose income does not exceed 85 percent of the State's median income for a family of the same size and whose family assets do not exceed $1,000,000 (as certified by a member of said family); and (3)(a) reside with a parent or parents who are working or attending a job training or educational program or (b) receives, or needs to receive, protective services and resides with a parent or parents not described in (3)(a.) (658P(4)).

3.1.1 Eligibility criteria based on a child's age

Effective Date: 10/01/2018

a) The CCDF program serves children

from birth

(weeks/months/years)

through 12

years (under age 13). . Note: Do not include children incapable of self-care or under court supervision, who are reported below in (b) and (c).

b) Does the Lead Agency allow CCDF-funded child care for children age 13 and above but below age 19 years who are physically and/or mentally incapable of self-care?(658E(c)(3)(B), 658P(3))

☐ No

☑ Yes,

and the upper age is 18

(may not equal or exceed age 19).

If yes, Provide the Lead Agency definition of physical and/or mental incapacity: A child who is less than 18 years old who is developmentally disabled or has a mental or physical incapacity which limits her/his ability to care for herself/himself. Developmentally Delayed (DD) is a child who is experiencing developmental delays in one or more of the following areas: (i) Cognitive development; (ii) Physical development including hearing and vision, language and speech development; (iii) Psychosocial development; or (iv) Self-help skills.

c) Does the Lead Agency allow CCDF-funded child care for children age 13 and above but below age 19 years who are under court supervision? (658P(3), 658E(c)(3)(B))

☐ No.

☑ Yes

and the upper age is 18

(may not equal or exceed age 19)

d) How does the Lead Agency define the following eligibility terms?

"residing with":

The people occupying one (1) or more rooms of a house, apartment or mobile home, hotel, motel, etc., and may include one (1) or more assistance units and/or ineligible person(s).

"in loco parentis":

Is a child's parent (as defined herein) or other adult who has a court order giving legal responsibilities and/or legal guardianship and who is exercising the care and control of the child(ren). This includes foster parents and the spouse of the caretaker.

3.1.2 Eligibility criteria based on reason for care

Effective Date: 10/01/2018

a) How does the Lead Agency define "working or attending a job training and educational program" for the purposes of CCDF eligibility at the time of determination? Provide the definitions below for:

"Working":

Work in exchange for money; Work in exchange for good or services (in-kind); or Unpaid volunteer work with an agency or organization which is scheduled and structured.

"Job training":

A planned, supervised program which may be a combination of classroom and on-the-job training experiences that impart knowledge or develop skills or abilities to prepare a person for employment.

"Education":

A post secondary course of study, not exceeding the first associate or baccalaureate degree (unless the associate degree was received while the parent(s)/caretaker(s) was pursuing a baccalaureate degree as the original educational goal). The program

is designed to assist the student in obtaining employment in a specific job when the course of study is complete. In addition, students working to obtain their high school equivalency and teen parents, are included as attending education.

"Attending job training or education" (e.g. number of hours, travel time):
Includes attending job training in a planned, supervised program which may be a combination of classroom and on-the-job training experiences that impart knowledge or develop skills or abilities to prepare a person for employment.

3.1.2 Eligibility criteria based on reason for care

b) Does the Lead Agency allow parents to qualify for CCDF assistance on the basis of education and training participation alone (without additional minimum work requirements)?

☐ No.

If no, describe the additional work requirements:

☑ Yes.

If yes, describe the policy or procedure:

The Department may approve eligibility based on education and training participation alone, and if deemed eligible, the job-search limit is 90 days if the eligible participant experiences a non-temporary loss or cessation of eligible activity.

3.1.2 Eligibility criteria based on reason for care

c) Does the Lead Agency consider seeking employment (engaging in a job search) an eligible activity at initial eligibility determination (at application) and at the 12-month eligibility redetermination? (Note: If yes, Lead Agencies must provide a minimum of three months of job search)

☑ No.

☐ Yes.

If yes, describe the policy or procedure. (including any differences in eligibility at initial eligibility determination vs. redetermination of eligibility):

3.1.2 Eligibility criteria based on reason for care

d) Does the Lead Agency provide child care to children in protective services?

- [ ] No.
- [x] Yes. If yes:

i. Please provide the Lead Agency's definition of "protective services":

Is when a child has an active case with child welfare.

Note: Federal requirements allow other vulnerable children identified by the Lead Agency not formally in child protection to be included in the Lead Agency's definition of protective services for CCDF purposes. A Lead Agency may elect to provide CCDF-funded child care to children in foster care when foster care parents are not working or are not in education/training activities, but this provision should be included in the protective services definition above.

ii. Are children in foster care considered to be in protective services for the purposes of eligibility at determination?

- [ ] No
- [x] Yes

iii. Does the Lead Agency waive the income eligibility requirements for cases in which children receive, or need to receive, protective services on a case-by-case basis (658E(c)(5))?

- [ ] No
- [x] Yes

iv. Does the Lead Agency provide respite care to custodial parents of children in protective services?

- [x] No
- [ ] Yes

3.1.3 Eligibility criteria based on family income. Note: The question in 3.1.3 relates to initial determination. Redetermination is addressed in 3.1.7.

Effective Date: 04/01/2020

a) How does the Lead Agency define "income" for the purposes of eligibility at the point of determination?

Money received from any source, but not any item specified in policy as an asset.

b) Provide the CCDF income eligibility limits in the table below at the time of initial determination. Complete columns (a) and (b) based on maximum eligibility at initial entry into CCDF. Complete columns (c) and (d) *only if* the Lead Agency is using income eligibility limits lower than 85 percent of the current state median income (SMI) at the initial eligibility determination point. Fill in the chart based on the most populous area of the state (the area serving the highest number of CCDF children). If the income eligibility limits are not statewide, please respond to c) below the table.

	(a)	(b)	(c)	(d)
Family Size	100% of SMI($/Month)	85% of SMI ($/Month) [Multiply (a) by 0.85]	(IF APPLICABLE) ($/Month) Maximum Initial or First Tier Income Limit (or Threshold) if Lower Than 85% of Current SMI	IF APPLICABLE) (% of SMI) [Divide (c) by (a), multiply by 100] Income Level if Lower Than 85% of Current SMI
1	3761	3196	1861	49
2	4919	4181	2514	51
3	6076	5165	3168	52
4	7233	6148	3821	53
5	8391	7132	4474	53

c) If the income eligibility limits are not statewide, describe how many jurisdictions set their own income eligibility limits and provide the income limit ranges across the jurisdictions (e.g. range from [lowest limit] to [highest limit])(98.16(i)(3)).

NA.

Reminder: Income limits must be established and reported in terms of current SMI based on the most recent data published by the Bureau of the Census (98.20(a)(2)(i)) even if the federal poverty level is used in implementing the program. SMI guidelines are available at: https://www.acf.hhs.gov/ocs/resource/liheap-im2017-03.

d) SMI source and year.

https://www.acf.hhs.gov/sites/default/files/ocs/comm_liheap_smiimattachment_1_fy2019.pdf

e) Identify the most populous area of the State used to complete the chart above.

The chart represents the entire State.

f) What was the date (mm/dd/yyyy) that these eligibility limits in column (c) became effective? 04/01/2020

g) Provide the citation or link, if available, for the income eligibility limits.

https://dfs.wyo.gov/wp-content/uploads/2020/03/TBLICC-04-01-20-Financial-Criteria-Chart.pdf

3.1.4 Lead Agencies are required to ensure that children receiving CCDF funds do not have family assets that exceed $1,000,000, as certified by a family member (98.20(a)(2)(ii)).

Effective Date: 10/01/2018

a) Describe how the family member certifies that family assets do not exceed $1,000,000 (e.g., a checkoff on the CCDF application).

During the initial eligibility interview and redetermination interview the family must certify that they do not have assets exceeding $1,000,000 and is documented in case file narrative.

b) Does the Lead Agency waive the asset limit on a case-by-case basis for families defined as receiving, or in need of, protective services?

- [x] No.
- [ ] Yes.

If yes, describe the policy or procedure and provide citation:

3.1.5 Describe any additional eligibility conditions or priority rules applied by the Lead Agency during eligibility determination or redetermination (98.20(b)).

NA

Effective Date: 10/01/2018

3.1.6 Lead Agencies are required to take into consideration children's development and promote continuity of care when authorizing child care services (98.21(f); 98.16(h)(6)). Check the approaches, if applicable, that the Lead Agency uses when considering children's development and promoting continuity of care when authorizing child care services.

Effective Date: 10/01/2018

- ☐ Coordinating with Head Start, prekindergarten, or other early learning programs to create a package of arrangements that accommodates parents' work schedules
- ☐ Inquiring about whether the child has an Individualized Education Program (IEP) or Individual Family Services Plan (IFSP)
- ☐ Establishing minimum eligibility periods greater than 12 months
- ☐ Using cross-enrollment or referrals to other public benefits
- ☐ Working with IDEA Part B, Section 619 and Part C staff to explore how services included in a child's IEP or IFSP can be supported and/or provided onsite and in collaboration with child care services
- ☐ Providing more intensive case management for families with children with multiple risk factors;
- ☐ Implementing policies and procedures that promote universal design to ensure that activities and environments are accessible to all children, including children with sensory, physical, or other disabilities
- ☑ Other.

Describe:

The Department, in support of promoting continuity of care as well as taking into account the child's development, authorizes wrap around care and child care opportunities, around the preschool schedule days/hours (ie. if a preschool program's hours of operation is 9:00 am - 12:00 pm, children may be authorized to attend other child care for the hours preceding and following the preschool program). In addition, eligible children may participate in receiving care and services from Child Development programs as well as Head Start and Early Head Start. The Department may authorize Payment of care during a temporary break in parents schedule. In addition to authorizing 12-month eligibility parents are not required to report

permanent changes in eligible activity until redetermination.

3.1.7 Policies and processes for graduated phase-out of assistance at redetermination.

Effective Date: 10/01/2018

Lead Agencies are required to provide for a graduated phase-out of assistance for families whose income has increased above the state's initial income threshold at the time of redetermination but remains below the federal threshold of 85 percent of the state median income. Providing a graduated phase-out promotes continuity by allowing for wage growth, allows for a tapered transition out of the child care subsidy program as income increases, and supports long-term self-sufficiency for families.

i. 85 percent of SMI for a family of the same size
ii. An amount lower than 85 percent of SMI for a family of the same size but above the Lead Agency's initial eligibility threshold that:

(A) Takes into account the typical household budget of a low-income family
(B) Provides justification that the second eligibility threshold is:
(1) Sufficient to accommodate increases in family income over time that are typical for low-income workers and that promote and support family economic stability
(2) Reasonably allows a family to continue accessing child care services without unnecessary disruption.

At redetermination, a child shall be considered eligible if his or her parents are working or attending a job training or educational program even if their income exceeds the Lead Agency's income limit to initially qualify for assistance as long as their income does not exceed the second tier of eligibility (98.21(a); 98.21(b)(1)). Note that once deemed eligible, the family shall be considered eligible for a full minimum 12-month eligibility period, even if their income exceeds the second tier of eligibility during the eligibility period, as long as it does not exceed 85 percent of SMI.

A family eligible for services via the graduated phase-out of assistance is considered eligible under the same conditions as other eligible families with the exception of the copayment restrictions, which do not apply to a graduated phase-out. To help families transition off of child

care assistance, Lead Agencies may gradually adjust copay amounts for families whose children are determined eligible under a graduated phase-out and may require additional reporting on changes in family income. However, Lead Agencies must still ensure that any additional reporting requirements do not constitute an undue burden on families.

Effective Date: 10/01/2018

a) Check and describe the option that best identifies the Lead Agency's policies and procedures regarding the graduated phase-out of assistance.

- [ ] N/A - The Lead Agency sets its initial eligibility threshold at 85 percent of SMI and, therefore, is not required to provide a graduated phase-out period.
- [ ] N/A - The Lead Agency sets its exit eligibility threshold at 85 percent of SMI and, therefore, is not required to provide a graduated phase-out period.
- [ ] The Lead Agency sets the second tier of eligibility at 85 percent of SMI.

  Describe the policies and procedures.

  Provide the citation for this policy or procedure.

- [x] The Lead Agency sets the second tier of eligibility at an amount lower than 85 percent of SMI for a family of the same size but above the Lead Agency's initial eligibility threshold.

  Provide the second tier of eligibility for a family of three.

  $3,896 (225% of FPL)

  Describe how the second eligibility threshold:

  i. Takes into account the typical household budget of a low-income family:

  Using the example of a family of three our graduated phase out allows an increase of gross monthly income of $866 a month and that would be a yearly increase of income of $10,392. This allows for a gradual increase of wages for a family while remaining below 85% SMI.

  ii. Is sufficient to accommodate increases in family income over time that are typical for low-income workers and that promote and support family economic stability:

  Wyoming's second eligibility of threshold for a family of three allows an increase of income of $10,392 a year, which is sufficient to accommodate increases of

family income over time. This increase is above average for a typical low income worker and would promote and support economic stability. According to Wyoming Self Sufficiency Standard (www.selfsufficienclystandard.org/wyoming) for our most populous county Laramie, for a household of three with one preschooler and one school aged child the self sufficiency standard is $3,302 a month, which is less than our maximum monthly threshold for the second tier.

iii. Reasonably allows a family to continue accessing child care services without unnecessary disruption:

Wyoming's second eligibility threshold allows families to continue accessing child care services at re-determination with an increase in income for a household of three of $10,392 a year, which is above average for a low income family. In addition, a family's income can increase up to 85% SMI during the 12 month eligibility period.

iv. Provide the citation for this policy or procedure:

Child Care Subsidy Policy Manual 1200 Benefit Level.

☐ Other.

Identify and describe the components that are still pending per the instructions on *CCDF Plan Response Options for Areas where Implementation is Still in Progress* in the Introduction.

3.1.7 b) To help families transition from assistance, does the Lead Agency gradually adjust copays for families eligible under the graduated phase-out period?

☐ No

☑ Yes

i. If yes, describe how the Lead Agency gradually adjusts copays for families under a graduated phase-out.

The client needs to meet steps 1-4 in the initial application process and then can phase out in steps 5-6. This gradual phase-out slowly decreases the amount of assistance the participant is eligible to receive while simultaneously slowly increasing the amount of copays.

ii. If yes, does the Lead Agency require additional reporting requirements during the graduated phase-out period? *(Note: Additional reporting requirements are also discussed in section 3.3.3 of the plan.)*

☑ No.

☐ Yes.

Describe:

3.1.8 Fluctuation in earnings.

Lead Agencies are required to demonstrate how their processes for initial determination and redetermination take into account irregular fluctuations in earnings (658E(c)(2)(N)(i)(II)). The Lead Agency must put in place policies that ensure that temporary increases in income, including temporary increases that can result in a monthly income exceeding 85 percent of SMI (calculated on a monthly basis) from seasonal employment or other temporary work schedules, do not affect eligibility or family copayments (98.21(c)). Check the processes, if applicable, that the Lead Agency uses to take into account irregular fluctuations in earnings and describe, at a minimum, how temporary increases that result in a monthly income exceeding 85 percent of SMI (calculated on a monthly basis) do not affect eligibility or family copayments.

Effective Date: 10/01/2018

☑ Average the family's earnings over a period of time (i.e. 12 months).

Describe:

The Department averages the family's earnings up to 12 months.

☑ Request earning statements that are most representative of the family's monthly income.

Describe:

The Department may request an employer or earnings statement when either their pay stubs are not reflective or there is no pay history.

☑ Deduct temporary or irregular increases in wages from the family's standard income level.

Describe:

The Department may deduct temporary or irregular wages if they are not reflective of the respective earnings.

☑ Other.

Describe:

The Department takes into account fluctuation of earnings. From Section 200 of the Child Care Policy Manual, the definition of fluctuating income is: "monthly income that varies in frequency of receipt or amount each month due to working overtime, hourly pay with varying hours, receipt of tips or commissions, changes of hours or pay rate or decrease or increase in hours of work due to vacations, sick leave or seasonal employment." The Department's policy on handling fluctuating income, per Section 905 D of the Child Care Policy Manual, is as follows: Best Estimate For Cases With Fluctuation of Earnings Due to Seasonal or Migrant Employment. Review the income documents and information obtained during the interview to determine what income is best reflective of future circumstances.

3.1.9 Lead Agencies are required to have procedures for documenting and verifying that children receiving CCDF funds meet eligibility criteria at the time of eligibility determination and redetermination (98.68(c)). Check the information that the Lead Agency documents and verifies and describe, at a minimum, what information is required and how often. Check all that apply.

Effective Date: 10/01/2018

☑ Applicant identity.

Describe:

Verification of identity must be submitted by the applicant using one of the allowed pieces of evidence including, but not limited to: driver's license, birth certificate, state issued identification or passport. This information is only required at the initial application.

☑ Applicant's relationship to the child.

Describe:

Verification of relationship to the child must be submitted by the applicant using one (1) of the allowed pieces of evidence including, but not limited to: birth certificate, adoption papers, divorce decrees, hospital records of birth, or vital statistics

records.This information is only required at the initial application.

☑ Child's information for determining eligibility (e.g., identity, age, citizen/immigration status).

Describe:

Age, citizenship and identity for the child are all (i.e. identity) verified by the birth certificate or vital statistics.This information is only required at the initial application.

☑ Work.

Describe:

An employer's statement or pay stubs are required to document work participation. This information is required at initial application and subsequent redeterminations.

☑ Job training or educational program.

Describe:

Education must be verified by a class schedule or by a statement from the educational/training institution. This information is required at initial application and subsequent redeterminations.

☑ Family income.

Describe:

Income must be verified by wage stubs for existing employment or an employer's statement for new or changed employment. Self-employment must be verified by income tax returns or business ledgers. Child support may be verified by information from the Child Support Program, Clerk of Court or divorce or separation decree. Other types of income such as SSA, SSI may be verified by award letter; however, if the client participates in another program that interfaces with another agency for verification, the Child Care program will use this information to determine child care eligibility. This information is required at initial application and subsequent redeterminations.

☑ Household composition.

Describe:

Household composition is verified by the child care assistance worker based on the

circumstances of the household. Hard copy verification such as marriage certificates, school records, or property owner statements may be necessary to document the circumstances. This information is only required at the initial application. However, the land lord statements are required at the initial application and subsequent redeterminations.

☑ Applicant residence.

Describe:

Based on client's statement. This information is required at initial application and subsequent redeterminations.

☐ Other.

Describe:

3.1.10 Which strategies, if any, will the Lead Agency use to assure the timeliness of eligibility determinations upon receipt of applications?

Effective Date: 10/01/2018

☑ Time limit for making eligibility determinations

Describe length of time:

30 days

☑ Track and monitor the eligibility determination process

☐ Other.

Describe:

☐ None

3.1.11 Informing parents who receive TANF benefits about the exception to the individual penalties associated with the TANF work requirement.

Lead Agencies are required to inform parents who receive TANF benefits about the exception to the individual penalties associated with the work requirement for any single custodial parent

who has a demonstrated inability to obtain needed child care for a child younger than age 6 (98.16(v); 98.33(f)).

Lead Agencies must coordinate with TANF programs to ensure that TANF families with young children will be informed of their right not to be sanctioned if they meet the criteria set forth by the state/territory TANF agency in accordance with Section 407(e)(2) of the Social Security Act.

In fulfilling this requirement, the following criteria or definitions are applied by the TANF agency to determine whether the parent has a demonstrated inability to obtain needed child care.

Note: The TANF agency, not the CCDF Lead Agency, is responsible for establishing the following criteria or definitions. These criteria or definitions are offered in this Plan as a matter of public record.

Effective Date: 10/01/2018

a) Identify the TANF agency that established these criteria or definitions: The Wyoming Department of Family Services.

b) Provide the following definitions established by the TANF agency:

"Appropriate child care":

Child care meeting Wyoming licensing standards or if legally exempt from child care licensing requirements, meeting minimum health and safety requirements as outlined by the CCDF. All providers must also receive a favorable Central Registry and national criminal history background check.

"Reasonable distance":

The distance from home to work does not exceed two (2) hours per day not including the transportation of a child(ren) to and from a child care facility.

"Unsuitability of informal child care":

Child Care which does not meet minimum health and safety or fails to pass the central registry and national fingerprint checks.

"Affordable child care arrangements":

An available child care provider in the community whose charges for services do not exceed the local market rate established at the 75th percentile.

c) How are parents who receive TANF benefits informed about the exception to the individual penalties associated with the TANF work requirements?

- [x] In writing
- [x] Verbally
- [ ] Other.

Describe:

d) Provide the citation for the TANF policy or procedure:

https://sites.google.com/a/wyo.gov/dws-employment-and-training-resource-site/power-snap-e-t

3.2 Increasing Access for Vulnerable Children and Families

Lead Agencies are required to give priority for child care assistance to children with special needs, which can include vulnerable populations, in families with very low incomes and to children experiencing homelessness (658E(c)(3)(B); 98.46(a)). The prioritization of CCDF assistance services is not limited to eligibility determination (i.e., the establishment of a waiting list or the ranking of eligible families in priority order to be served).

Note:
CCDF defines "child experiencing homelessness" as a child who is homeless, as defined in Section 725 of Subtitle VII-B of the McKinney-Vento Act (42 U.S.C. 11434a) (98.2).

3.2.1 Describe how the Lead Agency defines:

Effective Date: 10/01/2018

a) "Children with special needs":

A child who is less than 18 years old who is developmentally disabled or has a mental or physical incapacity which limits her/his ability to care for herself/himself.

b) "Families with very low incomes":

A family whose income is at or below 100% of the federal Poverty level.

3.2.2 Describe how the Lead Agency will prioritize or target child care services for the following children and families.

Effective Date: 10/01/2018

a) Identify how services are prioritized for children with special needs. Check all that apply:

- [ ] Prioritize for enrollment
- [x] Serve without placing these populations on waiting lists
- [ ] Waive copayments
- [ ] Pay higher rates for access to higher-quality care
- [ ] Use grants or contracts to reserve slots for priority populations
- [x] Other.

Describe:

The Department may reimburse up to $250.00 more per month for children with special needs.

b) Identify how services are prioritized for families with very low incomes. Check all that apply:

- [ ] Prioritize for enrollment
- [x] Serve without placing these populations on waiting lists
- [x] Waive copayments
- [ ] Pay higher rates for access to higher-quality care
- [ ] Use grants or contracts to reserve slots for priority populations
- [ ] Other.

Describe:

c) Identify how services are prioritized for children experiencing homelessness, as defined by the CCDF. Check all that apply:

- [ ] Prioritize for enrollment
- [x] Serve without placing these populations on waiting lists
- [ ] Waive copayments
- [ ] Pay higher rates for access to higher-quality care
- [ ] Use grants or contracts to reserve slots for priority populations
- [x] Other.

Describe:

Wyoming is currently able to serve all eligible families and provide the same expeditious services to all so there is not a need to prioritize different populations at this time. If Wyoming has to implement a wait list, we will address how to prioritize homeless populations at that time.

d) Identify how services are prioritized, if applicable, for families receiving TANF program funds, those attempting to transition off TANF through work activities, and those at risk of becoming dependent on TANF (98.16(i)(4)). Check all that apply:

- [ ] Prioritize for enrollment
- [ ] Serve without placing these populations on waiting lists
- [x] Waive copayments
- [ ] Pay higher rates for access to higher-quality care
- [ ] Use grants or contracts to reserve slots for priority populations
- [ ] Other.

Describe:

3.2.3 List and define any other priority groups established by the Lead Agency.

None

Effective Date: 10/01/2018

3.2.4 Describe how the Lead Agency prioritizes services for the additional priority groups identified in 3.2.3.

NA

Effective Date: 10/01/2018

3.2.5 Lead Agencies are required to expend CCDF funds to (1) permit the enrollment (after an initial eligibility determination) of children experiencing homelessness while required documentation is obtained, (2) provide training and TA to child care providers and the appropriate Lead Agency (or designated entity) staff on identifying and serving homeless children and families (addressed in section 6), and (3) conduct specific outreach to homeless families (658E(c)(3); 98.51).

Effective Date: 10/01/2018

a) Describe the procedures to permit the enrollment of children experiencing homelessness while required documentation is obtained.

From the date of application, a 30 day grace period for providing documentation is given to families identified as homeless to obtain necessary documentation and the Department assists in collecting required documentation as able. If required verification is not received, care is no longer available past the 30 day grace period and the Department does not recover payment from families. Child Care Licensing accepts immunization exemptions for homeless families from their child care provider.

b) Check, where applicable, the procedures used to conduct outreach for children experiencing homelessness (as defined by CCDF Rule) and their families.

- ☐ Lead Agency accepts applications at local community-based locations
- ☑ Partnerships with community-based organizations
- ☑ Partnering with homeless service providers, McKinney-Vento liaisons, and others who work with families experiencing homelessness to provide referrals to child care

☐ Other

Note: The Lead Agency shall pay any amount owed to a child care provider for services provided as a result of the initial eligibility determination, and any CCDF payment made prior to the final eligibility determination shall not be considered an error or improper payment (98.51(a)(1)(ii)).

3.2.6 Lead Agencies must establish a grace period that allows homeless children and children in foster care to receive CCDF assistance while providing their families with a reasonable time to take any necessary actions to comply with immunization and other health and safety requirements (as described in section 5). The length of such a grace period shall be established in consultation with the state, territorial, or tribal health agency (658E(c)(2)(I)(i)(I); 98.41(a)(1)(i)(C)).

Note:
Any payment for such a child during the grace period shall not be considered an error or improper payment (98.41(a)(1)(i)(C)(2)).

Effective Date: 10/01/2018

a) Describe procedures to provide a grace period to comply with immunization and other health and safety requirements, including how the length of the grace period was established in consultation with the state, territorial, or tribal health agency for:

Children experiencing homelessness (as defined by Lead Agency's CCDF)

The Department allows 30 days for parents to comply with requirements of the Child Care Assistance program, which includes providing immunization records to the child care provider of choice. For families experiencing homelessness, this 30 day timeline can be extended to allow for families to meet the requirements.

Provide the citation for this policy and procedure.

Child Care Subsidy Policy Manual Section 401 Application/Intake Process.

Children who are in foster care.

The Department allows 30 days for parents to comply with requirements of the Child Care Assistance program, which includes providing immunization records to the child care provider of choice. For children who are in foster care, this 30 day timeline can be

extended to allow for caseworkers to meet the requirements.

Provide the citation for this policy and procedure.

Child Care Subsidy Policy Manual 400 Application/Intake Process.

b) Describe how the Lead Agency coordinates with licensing agencies and other relevant state, territorial, tribal, and local agencies to provide referrals and support to help families with children receiving services during a grace period comply with immunization and other health and safety requirements (98.41(a)(1)(i)(C)(4)).

The Department is responsible for Child Care Licensing. Consequently, Child Care Licensing accepts immunization and other health and safety requirement exemptions for homeless families from their child care provider. Child care eligibility workers refer families with children receiving services to local community health departments for access to immunization and other health related information. In addition, the Department's Family Resource page includes information for parents, providers and other care givers identifying how and where to access important information related to compliance with immunization and other health and safety requirements.

c) Does the Lead Agency establish grace periods for other children who are not experiencing homelessness or in foster care?

- [x] No.
- [ ] Yes.

Describe:

3.3 Protection for Working Families

3.3.1 12-Month eligibility.

The Lead Agency is required to establish a minimum 12-month eligibility and redetermination period, regardless of changes in income (as long as the income does not exceed the federal threshold of 85 percent of the state median income) or temporary changes in participation in work, training, or educational activities (658E(c)(2)(N)(i) and (ii)).

This change means that a Lead Agency may not terminate CCDF assistance during the 12-month period if a family has an increase in income that exceeds the state's income eligibility threshold, but not the federal threshold of 85 percent of SMI. The Lead Agency may not terminate assistance prior to the end of the 12-month period if a family experiences a temporary job loss or a temporary change in participation in a training or educational activity. A temporary change in eligible activity includes, at a minimum, any time-limited absence from work for an employed parent due to such reasons as the need to care for a family member or an illness; any interruption in work for a seasonal worker who is not working; any student holiday or break for a parent participating in a training or educational program; any reduction in work, training, or education hours, as long as the parent is still working or attending a training or educational program; any other cessation of work or attendance at a training or educational program that does not exceed 3 months or a longer period of time established by the Lead Agency; a child turning 13 years old during the 12-month eligibility period (except as described in 3.1.1); and any changes in residency within the state, territory, or tribal service area.

Effective Date: 10/01/2018

a) Describe the Lead Agency's policies and procedures in implementing the minimum 12-month eligibility and redetermination requirements, including when a family experiences a temporary change in activity.

The Department authorizes 12 months of eligibility at initial and re-determination if families meet eligibility criteria. The only time a family would lose eligibility during the 12 month eligibility period is if the household income exceeds 85% SMI or if a family reports permanent loss of eligible activity and does not engage in another eligible activity within the 90 days allowed. A family continues to receive benefits during a temporary loss of activity.

b) How does the Lead Agency define "temporary change?'

A temporary change in eligibility activity includes, at a minimum, any time-limited absence from work due to the need to care for a family member or an illness; any interruption in work for a seasonal worker who is not working; any student holiday or break for a parent participating in training or educational program; any reduction in work, training, or education hours as long as the parent is still working or attending a training or educational program; any other cessation or work or attendance at a training or education program that does not exceed 3 moths or a longer period of time established by the Department; any changes in age, including turning 13 years old during the 12-month eligibility period; and any changes in residency within the state, territory, or tribal service area.

c) Provide the citation for this policy and/or procedure.

Child Care Subsidy Policy Manual 1500 Reporting.

3.3.2 Option to discontinue assistance during the 12-month eligibility period.

Lead Agencies have the option, but are not required, to discontinue assistance during the 12-month eligibility period due to a parent's non-temporary loss of work or cessation of attendance at a job training or educational program, otherwise known as a parent's eligible activity (i.e., if the parent experiences a temporary change in his or her status as working or participating in a training or educational program, as described in section 3.3.1 of the plan).

If the Lead Agency chooses the option to discontinue assistance due to a parent's non-temporary loss or cessation of eligible activity, it must continue assistance at least at the same level for a period of not fewer than 3 months after each such loss or cessation for the parent to engage in a job search and to resume work or resume attendance in a job training or educational program. At the end of the minimum 3-month period of continued assistance, if the parent has engaged in a qualifying work, training, or educational program activity with an income below 85 percent of SMI, assistance cannot be terminated, and the child must continue receiving assistance until the next scheduled redetermination or, at the Lead Agency option, for an additional minimum 12-month eligibility period.

Effective Date: 10/01/2018

a) Does the Lead Agency choose to discontinue assistance during the 12-month eligibility period due to a parent's non-temporary loss or cessation of eligible activity and offer a minimum 3-month period to allow parents to engage in a job search and to resume participation in an eligible activity?

- ☐ No, the state/territory does not allow this option to discontinue assistance during the 12-month eligibility period due to a parent's non-temporary loss of work or cessation of attendance at a job training or educational program.
- ☑ Yes, the Lead Agency discontinues assistance during the 12-month eligibility period due to a parent's non-temporary loss of work or cessation of eligible activity and provides a minimum 3-month period of job search. If yes:

i. Provide a summary describing the Lead Agency's policies and procedures for discontinuing assistance due to a parent's non-temporary change:

Families are not required to report a non temporary loss or cessation in eligible

activity; however, if families choose to report a non temporary change, they are allowed 90 days to engage in another eligible activity to receive continued assistance. For the purposes of this, a non-temporary change is a change exceeding three (3) months.

ii. Describe what specific actions/changes trigger the job-search period.

If families choose to report a non temporary change, they are allowed 90 days to engage in another eligible activity to receive continued assistance.

iii. How long is the job-search period (must be at least 3 months)?

90 days.

iv. Provide the citation for this policy or procedure.

Child Care Subsidy Policy Manual 1500 Reporting.

b) The Lead Agency may discontinue assistance prior to the next 12-month redetermination in the following limited circumstances. Check and describe any circumstances in which the Lead Agency chooses to discontinue assistance prior to the next 12-month redetermination. Check all that apply.

☐ Not applicable.

☐ Excessive unexplained absences despite multiple attempts by the Lead Agency or designated entity to contact the family and provider, including the prior notification of a possible discontinuation of assistance.

i. Define the number of unexplained absences identified as excessive:

ii. Provide the citation for this policy or procedure:

☑ A change in residency outside of the state, territory, or tribal service area.

Provide the citation for this policy or procedure:

Child Care Subsidy Policy 600 Residence.

☐ Substantiated fraud or intentional program violations that invalidate prior determinations of eligibility.

Describe the violations that lead to discontinued assistance and provide the citation for this policy or procedure.

3.3.3 Change reporting during the 12-month eligibility period.

The Lead Agency must describe the requirements for parents to report changes in circumstances during the 12-month eligibility period and describe efforts to ensure that such requirements do not place an undue burden on eligible families, which could impact the continuity of care for children and stability for families receiving CCDF services (98.16(h)(1)).

Note: Responses should exclude reporting requirements for a graduated phase-out, which were described in question 3.1.7(b).

Families are required to report a change to the Lead Agency at any time during the 12-month eligibility period if the family's income exceeds 85 percent of the state median income, taking into account irregular fluctuations in income (98.21(e)(1)). If the Lead Agency chooses the option to terminate assistance, as described in section 3.3.2 of the plan, they may require families to report a non-temporary change (as described in section 3.3.3 of the plan) in work, training or educational activities (otherwise known as a parent's eligible activity).

Effective Date: 10/01/2018

a) Does the Lead Agency require families to report a non-temporary change in a parent's eligible activity?

- [x] No
- [ ] Yes

b) Any additional reporting requirements during the 12-month eligibility period must be limited to items that impact a family's eligibility (e.g., income changes over 85 percent of SMI or that impact the Lead Agency's ability to contact the family or pay the child care providers (e.g., a family's change of address, a change in the parent's choice of child care provider).

Check and describe any additional reporting requirements required by the Lead Agency during the 12-month eligibility period. Check all that apply.

- [x] Additional changes that may impact a family's eligibility during the 12-month period.

Describe:

If the CCDF participant elects to report an income change, the new income may impact the family's eligibility during the 12-month period if it is over 85% of SMI.

☐ Changes that impact the Lead Agency's ability to contact the family.

Describe:

☐ Changes that impact the Lead Agency's ability to pay child care providers.

Describe:

Any additional reporting requirements that the Lead Agency chooses, as its option to require from parents during the 12-month eligibility period, shall not require an office visit. In addition, the Lead Agency must offer a range of notification options to accommodate families.

c) How does the Lead Agency allow for families to report changes to ensure that reporting requirements are not burdensome and to avoid an impact on continued eligibility between redeterminations? Check all that apply.

☑ Phone

☑ Email

☐ Online forms

☑ Extended submission hours

☐ Postal Mail

☐ FAX

☐ In-person submission

☐ Other.

Describe:

d) Families must have the option to voluntarily report changes on an ongoing basis during the 12-month eligibility period. Lead Agencies are required to act on information reported by the family if it will reduce the family's co-payment or increase the family's subsidy. Lead Agencies are prohibited from acting on information reported by the family that would reduce the family's subsidy unless the information reported indicates that the family's income exceeds 85 percent of SMI after considering irregular fluctuations in income or, at the option of the Lead Agency, the family has experienced a non-temporary

change in eligible activity.

i. Describe any other changes that the Lead Agency allows families to report.

The Department does not have any restrictions to what a family may report.

ii. Provide the citation for this policy or procedure.

Child Care Subsidy Policy Manual 1500 Reporting.

3.3.4 Prevent the disruption of employment, education, or job training activities

Lead Agencies are required to have procedures and policies in place to ensure that parents (especially parents receiving assistance under the TANF program) are not required to unduly disrupt their employment, education, or job training activities to comply with the Lead Agency's or designated local entity's requirements for the redetermination of eligibility for assistance (658E(c)(2)(N)(ii); 98.21(d)).

Examples include developing strategies to inform families and their providers of an upcoming redetermination and the information that will be required of the family, pre-populating subsidy renewal forms, having parents confirm that the information is accurate, and/or asking only for the information necessary to make an eligibility redetermination. In addition, states and territories can offer a variety of family-friendly methods for submitting documentation for eligibility redetermination that considers the range of needs for families in accessing support (e.g. use of languages other than English, access to transportation, accommodation of parents working non-traditional hours, etc.).

Effective Date: 10/01/2018

a) Identify, where applicable, the Lead Agency's procedures and policies to ensure that parents (especially parents receiving TANF program funds) do not have their employment, education, or job training unduly disrupted to comply with the state/territory's or designated local entity's requirements for the redetermination of eligibility.

- [x] Advance notice to parents of pending redetermination
- [ ] Advance notice to providers of pending redetermination
- [ ] Pre-populated subsidy renewal form
- [ ] Online documentation submission

- [ ] Cross-program redeterminations
- [x] Extended office hours (evenings and/or weekends)
- [x] Other.

Describe:

The Department's Child Care Assistance Workers conduct interviews over the phone at the convenience of parent and/or client's schedule. Applications, verification and all necessary information can be emailed, faxed, scanned or mailed to the Department's Child Care Assistance Worker.

b) How are families allowed to submit documentation, described in 3.1.9, for redetermination? Check all that apply.

- [x] Postal Mail
- [x] Email
- [ ] Online forms
- [x] FAX
- [x] In-person submission
- [x] Extended submission hours
- [ ] Other.

Describe:

3.4 Family Contribution to Payments

Lead Agencies are required to establish and periodically revise a sliding-fee scale for CCDF families that varies based on income and the size of the family to determine each family's contribution (i.e., co-payment) that is not a barrier to families receiving CCDF funds (658E(c)(5)). In addition to income and the size of the family, the Lead Agency may use other factors when determining family contributions/co-payments. Lead Agencies, however, may NOT use cost of care or amount of subsidy payment in determining copayments (98.45(k)(2)).

Note: To help families transition off of child care assistance, Lead Agencies may gradually adjust co-pay amounts for families determined to be eligible under a graduated phase-out. However, section 3.4 applies only to families in their initial/entry eligibility period. See section 3.1.7 Graduated Phase-Out regarding co-pays during the graduated phase-out period.

3.4.1 Provide the CCDF co-payments in the chart below according to family size for one child in care.

Effective Date: 04/01/2020

a) Fill in the chart based on the most populous area of the State (area serving highest number of CCDF children).

	(a)	(b)	(c)	(d)	(e)	(f)
Family Size	**Lowest Initial or First Tier Income Level Where Family Is First Charged Co-Pay (Greater Than $0)**	**What Is the Monthly Co-Payment for a Family of This Size Based on the Income Level in (a)?**	**The Co-Payment in Column (b) is What Percentage of the Income in Column (a)?**	**Highest Initial or First Tier Income Level Before a Family Is No Longer Eligible**	**What Is the Monthly Co-Payment for a Family of This Size Based on the Income Level in (d)?**	**The Co-Payment in Column (e) is What Percentage of the Income in Column (d)?**
1	1064	20.24	1.9%	1861	147.20	7.9%
2	1438	20.24	1.4%	2514	147.20	5.8%
3	1811	20.24	1.1%	3168	147.20	4.6%
4	2184	20.24	0.9%	3821	147.20	3.8%
5	2558	20.24	0.7%	4474	147.20	3.2%

b) What is the effective date of the sliding-fee scale(s)? 04/01/2020

c) Identify the most populous area of the state used to complete the chart above.

The chart was completed utilizing the entire State. For calculations on Column B, the we used Step 2 on the SFS, then multiplied by our usual full day amount, which is 23 days, that equals the amount of $20.24. Step 2 is the first step that a parental co-pay is required.

d) Provide the link to the sliding-fee scale: https://dfs.wyo.gov/wp-content/uploads/2020/03/TBLICC-04-01-20-Financial-Criteria-Chart.pdf

e) If the sliding-fee scale is not statewide, describe how many jurisdictions set their own sliding-fee scale (98.16(i)(3)).

NA

3.4.2 How will the family's contribution be calculated, and to whom will it be applied? Check all that apply.

Effective Date: 10/01/2018

- [x] The fee is a dollar amount and:
  - [x] The fee is per child, with the same fee for each child.
  - [ ] The fee is per child and is discounted for two or more children.
  - [ ] The fee is per child up to a maximum per family.
  - [ ] No additional fee is charged after certain number of children.
  - [ ] The fee is per family.
  - [ ] The contribution schedule varies because it is set locally/regionally (as indicated in 1.2.1).

    Describe:

  - [ ] Other.

    Describe:

- [ ] The fee is a percent of income and:
  - [ ] The fee is per child, with the same percentage applied for each child.
  - [ ] The fee is per child, and a discounted percentage is applied for two or more children.
  - [ ] The fee is per child up to a maximum per family.
  - [ ] No additional percentage is charged after certain number of children.
  - [ ] The fee is per family.
  - [ ] The contribution schedule varies because it is set locally/regionally (as indicated in 1.2.1).

    Describe:

  - [ ] Other.

Describe:

3.4.3 Does the Lead Agency use other factors in addition to income and family size to determine each family's co-payment (658E(c)(3)(B))? Reminder ' Lead Agencies may NOT use cost of care or amount of subsidy payment in determining copayments (98.45(k)(2)).

Effective Date: 10/01/2018

- [x] No.
- [ ] Yes, check and describe those additional factors below.
  - [ ] Number of hours the child is in care.

    Describe:

  - [ ] Lower co-payments for a higher quality of care, as defined by the state/territory.

    Describe:

  - [ ] Other.

    Describe:

3.4.4 The Lead Agency may waive contributions/co-payments from families whose incomes are at or below the poverty level for a family of the same size (98.45(k)) or for families who are receiving or needing to receive protective services, as determined for purposes of CCDF eligibility, or who meet other criteria established by the Lead Agency (98.45(k)(4)). Does the Lead Agency waive family contributions/co-payments for any of the following? Check all that apply.

Effective Date: 10/01/2018

- [ ] No, the Lead Agency does not waive family contributions/co-payments.
- [x] Yes, the Lead Agency waives family contributions/co-payments for families with an income at or below the poverty level for families of the same size.

☐ Yes, the Lead Agency waives family contributions/co-payments for families who are receiving or needing to receive protective services, as determined by the Lead Agency for purposes of CCDF eligibility.

Describe the policy and provide the policy citation.

☐ Yes, the Lead Agency waives family contributions/co-payments for other criteria established by the Lead Agency.

Describe the policy and provide the policy citation.

4 Ensure Equal Access to Child Care for Low-Income Children

A core purpose of CCDF is to promote parental choice and to empower working parents to make their own decisions regarding the child care services that best suit their family's needs. Parents have the option to choose from center-based care, family child care or care provided in the child's own home In supporting parental choice, the Lead Agencies must ensure that families receiving CCDF funding have the opportunity to choose from the full range of eligible child care settings and must provide families with equal access to child care that is comparable to that of non-CCDF families. Lead Agencies must employ strategies to increase the supply and to improve the quality of child care services, especially in underserved areas. This section addresses strategies that the Lead Agency uses to promote parental choice, ensure equal access, and increase the supply of child care. Note: In responding to questions in this section, the Office of Child Care (OCC) recognizes that each State/Territory identifies and defines its own categories and types of care. The OCC does not expect States/Territories to change their definitions to fit the CCDF-defined categories and types of care. For these questions, provide responses that closely match the CCDF categories of care.

4.1 Parental Choice in Relation to Certificates, Grants, or Contracts

The parent(s) of each eligible child who receive(s) or is offered financial assistance for child care services has the option of either receiving a child care certificate or, if available, enrolling his or her child with a provider that has a grant or contract for providing child care services (658E(c)(2)(A); 98.30(a)). Even if a parent chooses to enroll his or her child with a provider who has a grant or contract, the parent will select the provider, to the extent practicable. If a parent chooses to use a certificate, the Lead Agency shall provide information to the parent on the

range of provider options, including care by sectarian providers and relatives. Lead Agencies must require providers chosen by families to meet health and safety standards and has the option to require higher standards of quality. Lead agencies are reminded that any policies and procedures should not restrict parental access to any type of care or provider (e.g. center care, home care, in-home care, for-profit provider, non-profit provider or faith-based provider, etc.) (98.15 (a)(5)).

4.1.1 Describe the child care certificate, including when it is issued to parents (before or after the parent has selected a provider) and what information is included on the certificate (98.16 (q)).

The child care certificate is issued to parents once the case has been processed and provider has been selected. The child care certificate contains the name of the facility, facility type, case number, child's number, child's name, time and dates authorized, state payment rate and parental co-pay.

Effective Date: 10/01/2018

4.1.2 Describe how the parent is informed that the child certificate allows the option to choose from a variety of child care categories, such as private, not-for-profit, faith-based providers; centers; FCC homes; or in-home providers (658E(c)(2)(A)(i); 658P(2); 658Q). Check all that apply.

Effective Date: 10/01/2018

- ☐ Certificate that provides information about the choice of providers
- ☐ Certificate that provides information about the quality of providers
- ☐ Certificate not linked to a specific provider, so parents can choose any provider
- ☑ Consumer education materials on choosing child care
- ☑ Referral to child care resource and referral agencies
- ☐ Co-located resource and referral in eligibility offices
- ☑ Verbal communication at the time of the application
- ☑ Community outreach, workshops, or other in-person activities

☐ Other.

Describe:

NA

4.1.3 Child care services available through grants or contracts.

Effective Date: 10/01/2018

a) In addition to offering certificates, does the Lead Agency provide child care services through grants or contracts for child care slots (658A(b)(1))? Note: Do not check 'yes' if every provider is simply required to sign an agreement to be paid in the certificate program.

☑ No. If no, skip to 4.1.4.

☐ Yes, in some jurisdictions but not statewide.

If yes, describe how many jurisdictions use grants or contracts for child care slots.

NA

☐ Yes, statewide. If yes, describe:

i. How the Lead Agency ensures that parents who enroll with a provider who has a grant or contract have choices when selecting a provider:

NA

ii. The type(s) of child care services available through grants or contracts:

iii. The entities that receive contracts (e.g., shared services alliances, CCR&R agencies, FCC networks, community-based agencies, child care providers):

NA

iv. The process for accessing grants or contracts:

NA

v. How rates for contracted slots are set through grants and contracts:

NA

vi. How the Lead Agency determines which entities to contract with for increasing supply and/or improving quality:

NA

vii. If contracts are offered statewide and/or locally:

NA

4.1.3 Child care services available through grants or contracts.

b) Will the Lead Agency use grants or contracts for child care services to increase the supply and/or quality of specific types of care? Check all that apply.

- ☐ Programs to serve children with disabilities
- ☐ Programs to serve infants and toddlers
- ☐ Programs to serve school-age children
- ☐ Programs to serve children needing non-traditional hour care
- ☐ Programs to serve children experiencing homelessness
- ☐ Programs to serve children in underserved areas
- ☐ Programs that serve children with diverse linguistic or cultural backgrounds
- ☐ Programs that serve specific geographic areas
  - ☐ Urban
  - ☐ Rural
- ☑ Other

Describe

NA

4.1.3 Child care services available through grants or contracts.

c) Will the Lead Agency use grants or contracts for child care services to increase the quality of specific types of care? Check all that apply.

- ☐ Programs to serve children with disabilities
- ☐ Programs to serve infants and toddlers
- ☐ Programs to serve school-age children

- [ ] Programs to serve children needing non-traditional hour care
- [ ] Programs to serve homeless children
- [ ] Programs to serve children in underserved areas
- [ ] Programs that serve children with diverse linguistic or cultural backgrounds
- [ ] Programs that serve specific geographic areas
  - [ ] Urban
  - [ ] Rural
- [x] Other

Describe

NA

4.1.4 Certify by describing the Lead Agency's procedures for ensuring that parents have unlimited access to their children whenever their children are in the care of a provider who receives CCDF funds (658E(c)(2)(B); 98.16(t)).

The Department's Child Care Licensing Rules require providers to allow parents unrestricted and immediate access to their children during hours of operation. In addition, the Department's Provider Registration Form requires any CCDF provider to allow parents unrestricted and immediate access to their children during the hours of operation.

Effective Date: 10/01/2018

4.1.5 The Lead Agency must allow for in-home care (i.e., care provided in the child's own home) but may limit its use (98.16(i)(2)). Will the Lead Agency limit the use of in-home care in any way?

Effective Date: 10/01/2018

- [ ] No.
- [x] Yes. If checked, what limits will the Lead Agency set on the use of in-home care? Check all that apply.

☐ Restricted based on minimum the number of children in the care of the provider to meet the Fair Labor Standards Act (minimum wage) requirements.

Describe:

NA

☑ Restricted based on the provider meeting a minimum age requirement. (A relative provider must be at least 18 years of age based on the definition of eligible child care provider (98.2).

Describe:

Minimum age of 18 years.

☐ Restricted based on the hours of care (i.e., certain number of hours, non-traditional work hours).

Describe:

NA

☐ Restricted to care by relatives.

Describe:

NA

☐ Restricted to care for children with special needs or a medical condition.

Describe:

NA

☐ Restricted to in-home providers that meet additional health and safety requirements beyond those required by CCDF.

Describe:

NA

☐ Other.

Describe:

NA

4.2 Assessing Market Rates and Child Care Costs

Lead Agencies have the option to conduct a statistically valid and reliable (1) market rate survey (MRS) reflecting variations in the price to parents of child care services by geographic area, type of provider, and age of child and/or (2) an alternative methodology, such as a cost estimation model (658E(c)(4)(B)). A cost estimation model estimates the cost of care by incorporating both data and assumptions to model what expected costs would be incurred by child care providers and parents under different cost scenarios. Another approach would be a cost study that collects cost data at the facility or program level to measure the costs (or inputs used) to deliver child care services. The MRS or alternative methodology must be developed and conducted no earlier than 2 years before the date of submission of the Plan.

Note - Any Lead Agency considering using an alternative methodology, instead of a market rate survey, is required to submit a description of its proposed approach to its ACF Regional Child Care Program Office for pre-approval in advance of the Plan submittal (see https://www.acf.hhs.gov/occ/resource/ccdf-acf-pi-2016-08). Advance approval is not required if the Lead Agency plans to implement both a market rate survey and an alternative methodology. In its request for ACF pre-approval, a Lead Agency must:

- Provide an overview of the Lead Agency's proposed approach (e.g., cost estimation model, cost study/survey, etc.), including a description of data sources.

- Describe how the Lead Agency will consult with the State's Early Childhood Advisory Council or similar coordinating body, local child care program administrators, local child care resource and referral agencies, organizations representing child care caregivers, teachers and directors, and other appropriate entities prior to conducting the identified alternative methodology.

- Describe how the alternative methodology will use methods that are statistically valid and reliable and will yield accurate results. For example, if using a survey, describe how the Lead Agency will ensure a representative sample and promote an adequate response rate. If using a cost estimation model, describe how the Lead Agency will validate the assumptions in the model.

- If the proposed alternative methodology includes an analysis of costs (e.g., cost estimation model or cost study/survey), describe how the alternative methodology will account for key factors that impact the cost of providing care'such as: staff salaries and benefits, training and professional development, curricula and supplies, group size and ratios, enrollment levels, licensing requirements, quality level, facility size, and other factors.

- Describe how the alternative methodology will provide complete information that captures the universe of providers in the child care market.

- Describe how the alternative methodology will reflect variations by provider type, age of children, geographic location and quality.

- Describe how the alternative methodology will use current, up to date data.

- Describe the estimated reporting burden and cost to conduct the approach.

4.2.1 Please identify the methodology(ies) used below to assess child care prices and/or costs.

Effective Date: 10/01/2018

☑ MRS

☐ Alternative methodology.

Describe:

NA

☐ Both.

Describe:

NA

4.2.2 Prior to developing and conducting the MRS or alternative methodology, the Lead Agency is required to consult with the (1) State Advisory Council or similar coordinating body, local child care program administrators, local child care resource and referral agencies, and other appropriate entities and (2) organizations representing caregivers, teachers, and directors (98.45 (e)).

Describe how the Lead Agency consulted with the:

Effective Date: 10/01/2018

a) State Advisory Council or similar coordinating body:

The Department consulted with the Wyoming Early Childhood State Advisory Council (SAC) to develop the scope of the project and process for gathering market price data. The Department incorporated the feedback, regarding verbiage of the questions and order of the questions, provided into the scope of work and process for the market price survey. In addition, testing of the survey was completed by members of the Wyoming Early Childhood State Advisory Council.

b) Local child care program administrators:

The Department consulted with local child care program administrators to develop the scope of the project and the process for gathering market price data. The Department incorporated the feedback, regarding verbiage of the questions and order of the questions, provided into the scope of work and process for the market price survey. In addition, the child care program administrator tested the survey prior to launch.

c) Local child care resource and referral agencies:

The Department is the statewide Child Care Resource and Referral agency and consequently the Child Care Resource and Referral staff was a member of the survey development team, to develop the scope of the project and the process for gathering market price data. The Department incorporated the feedback provided into the scope of work and process for the market price survey.

d) Organizations representing caregivers, teachers, and directors:

The Department consulted with other stakeholders including caregivers, teachers and directors, to develop the scope of the project and the process for gathering market price data. The Department incorporated the feedback provided into the scope of work and process for the market price survey.

e) Other. Describe:

NA

4.2.3 Describe how the market rate survey is statistically valid and reliable. To be considered valid and reliable, the MRS must represent the child care market, provide complete and current data, use rigorous data collection procedures, reflect geographic variations, and analyze data in a manner that captures other relevant differences. For example, market rate surveys can use administrative data, such as child care resource and referral data, if they are representative of the market. If an alternative methodology, such as cost modeling, is used, demonstrate that the methodology used reliable methods.

The Department conducted the Market Price Study internally. The Department contacted licensed child care providers across the State from all zip codes and categories of licensed care and asked uniform questions to each respondent, which ensure consistency. The solicited responses in three different ways: Cowboy Conference, E-blast, and cold calling providers. The Department had a response rate of 66%. The Department's data unit reviewed the information gathered and compiled data that was reviewed by additional Department staff to correct or confirm the initial analysis.

Effective Date: 10/01/2018

4.2.4 Describe how the market rate survey or alternative methodology reflects variations in the price or cost of child care services by:

Effective Date: 0

a) Geographic area (e.g., statewide or local markets). Describe:

The Market Price Study was conducted statewide and included all zip codes to reflect all geographic areas of the state.

b) Type of provider. Describe:

The Market Price Study targeted at all types of licensed child care providers across the state.

c) Age of child. Describe:

The Market Price Study solicited information from licensed child care providers serving children birth to 13 years by five different age brackets.

d) Describe any other key variations examined by the market rate survey or alternative methodology, such as quality level.

NA

4.2.5 After conducting the market rate survey or alternative methodology, the Lead Agency must prepare a detailed report containing the results of the MRS or alternative methodology. The detailed report must also include the estimated cost of care (including any relevant variation by geographic location, category of provider, or age of child) necessary to support (1) child care providers' implementation of the health, safety, quality, and staffing requirements and (2) higher quality care, as defined by the Lead Agency using a quality rating and improvement system or other system of quality indicators, at each level of quality. For States without a QRIS, the States may use other quality indicators (e.g. provider status related to accreditation, pre-K standards, Head Start performance standards, or State defined quality measures.)

Effective Date: 10/01/2018

Describe how the Lead Agency made the results of the market rate survey or alternative methodology report widely available to the public (98.45(f)(1)). by responding to the questions below.

a) Date of completion of the market rate survey or alternative methodology (must be no earlier than July 1, 2016, and no later than July 1, 2018). 03/27/2018

b) Date the report containing results was made widely available - no later than 30 days after the completion of the report. 03/28/2018

c) Describe how the Lead Agency made the detailed report containing results widely available and provide the link where the report is posted.

The Department made the Market Price Study available on the Department's website. In addition, it was e-blasted to all providers and is in the WY Quality Counts! monthly newsletter. The Department also shared the Market Price Study with the Department's

child care licensers and the Wyoming Early Childhood State Advisory Council. https://docs.google.com/a/wyo.gov/viewer?a=v&pid=sites&srcid=d3lvLmdvdnxlYXJseS1jaGlsZGNhcmUtYW5kLWxpY2Vuc2luZ3xneDoyZmQ4YTU3MDZhYTM4OGQ5

d) Describe how the Lead Agency considered stakeholder views and comments in the detailed report.

Following the initial analysis of the data collected from the Market Price Study, revisions were made after the Department again received consultation from the National Center on Subsidy Innovation and Accountability and the Market Price Study was released within 30 days of the revisions. In addition, the Department received feedback from other stakeholders, including providers and early childhood advocates, which was used to make technical adjustments to the survey before and during implementation of the survey. These same entities did not provide feedback regarding the detailed report.

4.3 Setting Payment Rates

The Lead Agency must set CCDF subsidy payment rates, in accordance with the results of the current MRS or alternative methodology, at a level to ensure equal access for eligible families to child care services that are comparable with those provided to families not receiving CCDF funds. The Lead Agency must re-evaluate its payment rates at least every 3 years.

4.3.1 Provide the base payment rates and percentiles (based on the most recent MRS) for the following categories below. Percentiles are not required if the Lead Agency conducted an alternative methodology only (with pre-approval from ACF), but must be reported if the Lead Agency conducted an MRS alone or in combination with an alternative methodology. The ages and types of care listed below are meant to provide a snapshot of the categories on which rates can be based and are not intended to be comprehensive of all categories that might exist or to reflect the terms used by the Lead Agency for particular ages. Please use the most populous geographic region (area serving highest number of CCDF children) to report base payment rates below, if they are not statewide. Note: If the Lead Agency obtained approval to conduct an alternative methodology, then reporting of percentiles is not required.

Effective Date: 09/30/2019

a) Infant (6 months), full-time licensed center care in the most populous geographic region
Rate $ 30.01 per daily unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: 30

b) Infant (6 months), full-time licensed FCC home in the most populous geographic region
Rate $ 25.59 per daily unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: 26

c) Toddler (18 months), full-time licensed center care in the most populous geographic region
Rate $ 28.01 per daily unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: 26

d) Toddler (18 months), full-time licensed FCC care in the most populous geographic region
Rate $ 25.01 per daily unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: 30

e) Preschooler (4 years), full-time licensed center care in the most populous geographic region
Rate $ 25.01 per daily unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: 28

f) Preschooler (4 years), full-time licensed FCC care in the most populous geographic region
Rate $ 23.08 per daily unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: 25

g) School-age child (6 years), full-time licensed center care in most populous geographic region
Rate $ 21.15 per daily unit of time (e.g., daily, weekly, monthly, etc.)

Percentile of most recent MRS: 31

h) School-age child (6 years), full-time licensed FCC care in the most populous geographic region
Rate $ 21.56 per daily unit of time (e.g., daily, weekly, monthly)

Percentile of most recent MRS: 26

i) Describe how part-time and full-time care were defined and calculated.

The Department defines part-time care as care provided less than five (5) hours per day and full-time care is five (5) hours or more per day. The rates are established as a result of the Market Price Study (MPS).

j) Provide the effective date of the current payment rates (i.e., date of last update based on most recent MRS). October 1, 2018

k) Identify the most populous area of the state used to complete the responses above.

The entire State was used to complete all rate setting.

l) Provide the citation or link, if available, to the payment rates.
https://docs.google.com/a/wyo.gov/viewer?a=v&pid=sites&srcid=d3lvLmdvdnxlYXJseS1jaGlsZGNhcmUtYW5kLWxpY2Vuc2luZ3xneDo0YTY1ZmEwYWMxMzUzYmM

m) If the payment rates are not set by the Lead Agency for the entire state/territory, describe how many jurisdictions set their own payment rates (98.16(i)(3)).

NA

4.3.2 Lead Agencies can choose to establish tiered rates, differential rates, or add-ons on top of their base rates as a way to increase payment rates for targeted needs (i.e., a higher rate for special needs children as both an incentive for providers to serve children with special needs and as a way to cover the higher costs to the provider to provide care for special needs children).

Check and describe the types of tiered reimbursement or differential rates, if any, the Lead Agency has chosen to implement. In the description of any tiered rates or add-ons, at a minimum, indicate the process and basis used for determining the tiered rates, including if the rates were based on the MRS and/or an alternative methodology, and the amount of the rate.

Check all that apply.

☐ Differential rate for *non-traditional hours*.

Describe:

NA

☐ Differential rate for *children with special needs*, as defined by the state/territory.

Describe:

NA

☐ Differential rate for *infants and toddlers*. Note: Do not check if the Lead Agency has a different base rate for infants/toddlers with no separate bonus or add-on.

Describe:

NA

☐ Differential rate for *school-age programs*. Note: Do not check if the Lead Agency has a different base rate for school-age children with no separate bonus or add-on.

Describe:

NA

☐ Differential rate for higher quality, as defined by the state/territory.

Describe:

NA

☐ Other differential rates or tiered rates.

Describe:

NA

☑ Tiered or differential rates are not implemented.

4.4 Summary of Facts Used To Determine That Payment Rates Are Sufficient To Ensure Equal Access

4.4.1 Lead Agencies must certify that CCDF payment rates are sufficient to ensure equal access for eligible families to child care services comparable to those provided by families not receiving CCDF assistance (98.16(a)). Certify that payment rates reported in 4.3.1 are sufficient to ensure equal access by providing the following summary of facts (98.45(b)):

Effective Date: 10/01/2018

a) Describe how a choice of the full range of providers eligible to receive CCDF is made available; the extent to which eligible child care providers participate in the CCDF system; and any barriers to participation, including barriers related to payment rates and practices.

The Department, via Child Care Resource and Referral and the findchildcarewy.org website, provides a full list of all licensed providers in the State and whether or not the provider accepts child care subsidy payments. Approximately 90% of licensed child care providers accept children who are recipients of the child care assistance. Based on the high enrollment rate of providers accepting CCDF, the Department does not believe there are significant barriers to participation. The data indicates there are 628 licensed child care providers enrolled to receive CCDF, out of a total of 673 licensed child care providers (Family Child Care Homes, Family Child Care Centers, and Child Care Centers).

b) Describe how payment rates are adequate and have been established based on the **most recent MRS or alternative methodology** . Note: Per the preamble (81 FR 67512), in instances where a MRS or alternative methodology indicates that prices or costs have increased, Lead Agencies must raise their rates as a result.

Wyoming has increased payment rates to the 25th percentile (based on the most recent MRS), this adjustment resulted in increased payments to: licensed family child care homes and licensed family child care centers, part day 0-5 years; licensed family child care homes, licensed family child care centers, and child care centers, full day 0-5 years. Wyoming understands that our payment rates are lower than what the Market Price

Survey recommends.

c) Describe how base payment rates enable providers to meet health, safety, quality, and staffing requirements under CCDF.

The Department's current Market Price Study (MPS) required providers to provide information related to how much they charge but did not address the expenses related to operation (how much it costs to provide care - what is the cost of doing business). The Department recognizes the limitations of the current Market Price Study and are strategizing additional options to gather most cost related data to give the Department a more accurate picture of where our rates align. Wyoming has increased base payment rates to the 25th percentile (based on the most recent MRS) and the Department feels the base payment rates are adequate to enable providers to meet health, safety and staffing requirements under CCDF and increase access to quality programs.

d) Describe how the Lead Agency took the cost of higher quality into account, including how payment rates for higher-quality care, as defined by the Lead Agency using a QRIS or other system of quality indicators, relate to the estimated cost of care at each level of quality. Note: For States without a QRIS, the States may use other quality indicators (e.g. provider status related to accreditation, Pre-K standards, Head Start performance standards, or State defined quality measures).

The State of Wyoming does not currently utilize a QRIS system and has not adopted quality indicators for child care providers. The Wyoming Early Childhood State Advisory Council in collaboration with the Department is currently developing quality indicators and participating in technical assistance in regards to a QRIS system.

e) How will the Lead Agency ensure that the family contribution/co-payment, based on a sliding-fee scale, is affordable and is not a barrier to families receiving CCDF funds (98.16 (k))? Check all that apply.

☐ Limit the maximum co-payment per family.

Describe: .

☐ Limit the combined amount of co-payment for all children to a percentage of family income. List the percentage of the co-payment limit and

☑ Minimize the abrupt termination of assistance before a family can afford the full cost of care ('the cliff effect') as part of the graduated phase-out of assistance discussed in 3.1.7.

Initially a parent/caretaker's eligibility cannot be higher than a Step 4 on the Sliding Fee Scale with two (2) more steps available after initial eligibility. The highest parent fee is less than 8% of a family's income for one child in care. In addition, the co-payment increases between steps in a way that assists families to adjust to the increased cost of care.

☐ Other.

Describe:

f) To support parental choice and equal access to the full range of child care options, does the Lead Agency choose the option to allow providers to charge families additional amounts above the required co-payment in instances where the provider's price exceeds the subsidy payment (98.45(b)(5))?

☐ No

☑ Yes. If yes:

i. Provide the rationale for the Lead Agency's policy to allow providers to charge families additional amounts above the required co-payment, including a demonstration of how the policy promotes affordability and access for families.

The Department allows for parental choice when selecting a child care provider. With the limitations of the Department's CCDF funding, it is expected that providers need to have flexibility to charge families an amount that, in addition to the assistance payment, covers the operating expense of their business.

ii. Provide data (including data on the size and frequency of such amounts) on the extent to which CCDF providers charge additional amounts to families.

Based on all providers who receive payments from CCDBG it was calculated that 92.8% charge more than the State Maximum Rate with the average rate of full day (five (5) hours or more) rates at $5.94 more than the state rate and part day (less than five (5) hours) $3.33 more than the state rate.

iii. Describe the Lead Agency's analysis of the interaction between the additional amounts charged to families with the required family co-payment, and the ability of current subsidy payment rates to provide access to care without additional fees.

The Department has analyzed the interaction between the additional amounts charged to families and the ability of the assistance payment rates to provide access to care without additional fees. Unfortunately, based on the amount of the Department's CCDF funding and the Department's desire to serve all eligible families, the daily and partial-day funding amounts are below the recommended 75th percentile leaving the Department unable to increase payment rates, which results in higher fees charged to parents by some providers.

g) Describe how Lead Agencies' payment practices described in 4.5 support equal access to a range of providers.

The Department ensures timeliness of payments by providing payments within no more than 21 calendar days of receiving invoice from providers and paying on a full time and part time basis.

h) Describe how and on what factors the Lead Agency differentiates payment rates. Check all that apply.

☐ Geographic area.

Describe:

☐ Type of provider.

Describe:

☐ Age of child.

Describe:

☐ Quality level.

Describe:

☑ Other.

Describe:

In addition, to the Market Price Study (MPS), the Department considered the overall budget when establishing the payment rates.

i) Describe any additional facts that the Lead Agency considered in determining its payment rates to ensure equal access. Check all that apply and describe:

☐ Payment rates are set at the 75th percentile benchmark or higher of the most recent MRS.

Describe:

☐ Based on the approved alternative methodology, payments rates ensure equal access.

Describe:

☐ Feedback from parents, including parent surveys or parental complaints.

Describe:

☐ Other.

Describe:

4.5 Payment Practices and the Timeliness of Payments

Lead Agencies are required to demonstrate that they have established payment practices applicable to all CCDF child care providers that include ensuring the timeliness of payments by either (1) paying prospectively prior to the delivery of services or (2) paying within no more than 21 calendar days of the receipt of a complete invoice for services. To the extent practicable, the Lead Agency must also support the fixed costs of providing child care services by delinking provider payments from a child's occasional absences by (1) paying based on a child's enrollment rather than attendance, (2) providing full payment if a child attends at least 85 percent of the authorized time, (3) providing full payment if a child is absent for 5 or fewer days in a month, or (4) using an alternative approach for which the Lead Agency provides a justification in its Plan (658E(c)(2)(S)(ii); 98.45(l)(2)).

Lead Agencies are required to use CCDF payment practices that reflect generally accepted payment practices of child care providers who serve children who do not receive CCDF-funded assistance. Unless a Lead Agency is able to demonstrate that the following policies are not generally accepted in its particular state, territory, or service area or among particular categories or types of providers, Lead Agencies must (1) pay providers based on established part-time or full-time rates rather than paying for hours of service or smaller increments of time and (2) pay for reasonable, mandatory registration fees that the provider charges to private-paying parents (658E(c)(2)(S); 98.45(l)(3)).

In addition, there are certain other generally accepted payment practices that are required. Lead Agencies are required to ensure that child care providers receive payment for any services in accordance with a payment agreement or an authorization for services, ensure that child care providers receive prompt notice of changes to a family's eligibility status that could impact payment, and establish timely appeal and resolution processes for any payment inaccuracies and disputes (98.45(l)(4) through (6); 658E(c)(2)(S)(ii); 98.45(l)(4); 98.45(l)(5); 98.45(l)(6)).

4.5.1 Certify by identifying and describing the payment practices below that the Lead Agency has implemented for all CCDF child care providers.

Effective Date: 06/27/2020

a) Ensure the timeliness of payments by either (Lead Agency to implement at least one of the following):

☐ Paying prospectively prior to the delivery of services.

Describe the policy or procedure.

NA

☑ Paying within no more than 21 calendar days of the receipt of a complete invoice for services.

Describe the policy or procedure.

The provider may submit a paper child care invoice to the fiscal staff in their local office for processing up to twice a month for payment. The bill is audited and manually entered into the Job Automated System (JAS) within five (5) days and the provider's payment is received no more than 21 days after receipt of the invoice.

b) To the extent practicable, support the fixed costs of providing child care services by delinking provider payments from a child's occasional absences by: (Note: The Lead Agency is to choose at least one of the following):

☑ Paying based on a child's enrollment rather than attendance.

Describe the policy or procedure.

Due to COVID-19 Wyoming CCDF program will temporary shift to paying providers in the following way: ifa facility was closed and/or if child was enrolled, but did not attend the full authorization was paid with attendance sheet showing at least a day of attendance for the month of June and child having an active authorization for the facility. If the facility was open and the child attended any days during the month full authorizations were paid. The change to payment practices will depend of approval from the Wyoming's AG office. If the change to payment practices are not approved Wyoming will return to paying providers as they did prior to the declared COVID-19 emergency, by actual attendance if attended less than 85% and payment of full authorization if attendance is 85% or more. This change was approved previously for the time period of March through May 2020 in Wyoming's CCDF Plan amendment #2. This amendment extends the change from June 2020 through the duration of the declared COVID-19 emergency.

☑ Providing full payment if a child attends at least 85 percent of the authorized time.

Describe the policy or procedure.

The Department will authorize payment when a child attends at least 85% of the authorized time. The child care provider will submit child care invoice and the Department field fiscal staff will determine, via audit of invoice, if the child's attendance was at least 85%.

☐ Providing full payment if a child is absent for five or fewer days in a month.

Describe the policy or procedure.

NA

☐ Use an alternative approach for which the Lead Agency provides a justification in its Plan.

If chosen, please describe the policy or procedure and the Lead Agency's justification for this approach.

c) The Lead Agency's payment practices reflect generally accepted payment practices of child care providers who serve children who do not receive CCDF subsidies. These payment practices must include the following two practices unless the Lead Agency provides evidence that such practices are not generally accepted in its state (658E(c)(2)(S); 98.45(l)(3)).

i. Paying on a part-time or full-time basis (rather than paying for hours of service or smaller increments of time).

Describe the policy or procedure and include a definition of the time increments (e.g., part time, full-time).

The Department pays on a part-time (less than five (5) hours per day) or full-time basis (more than five (5) hours per day). The child care assistance worker considers approved activity and requested time from parent when determining the amount of approved care. The approval is either part-time or full-time care based on the above definitions.

ii. Paying for reasonable mandatory registration fees that the provider charges to private-paying parents.

Describe the policy or procedure.

The Department pays up to $50.00 per child, per certification year for registration fee to the chosen provider. The child care provider will complete the registration for licensed provider form (DFS 203A), the Department field fiscal staff will enter into the child care subsidy eligibility system, the system will auto generate payment up to $50 per child, per certification year. Only one provider per child, per certification year shall receive the registration fee.

d) The Lead Agency ensures that providers are paid in accordance with a written payment agreement or an authorization for services that includes, at a minimum, information regarding provider payment policies, including rates, schedules, any fees charged to providers, and the dispute-resolution process. Describe:

The Department's authorization for services includes information regarding provider payment policies including payment rates, the state maximum payment, schedules, and

parent co-pay and the dispute-resolution process.

e) The Lead Agency provides prompt notice to providers regarding any changes to the family's eligibility status that could impact payments, and such a notice is sent no later than the day that the Lead Agency becomes aware that such a change will occur. Describe:

The provider is informed of change to the families eligibility status the day the Department becomes aware of the change.

f) The Lead Agency has a timely appeal and resolution process for payment inaccuracies and disputes. Describe:

The Department allows for a parent or provider to submit an appeal for payment discrepancies either in writing or via telephone. The child care assistance worker or Department fiscal staff will evaluate the time and payment in question, which may include interviews with the parent and/or provider. The appeal and resolution process is required to be concluded within 30 days of receipt of the appeal request.

g) Other. Describe:

NA

4.5.2 Do payment practices vary across regions, counties, and/or geographic areas?

Effective Date: 10/01/2018

☑ No, the practices do not vary across areas.

☐ Yes, the practices vary across areas.

Describe:

4.6 Supply-Building Strategies to Meet the Needs of Certain Populations

Lead Agencies are required to develop and implement strategies to increase the supply of and to improve the quality of child care services for children in underserved areas; infants and toddlers; children with disabilities, as defined by the Lead Agency; and children who receive care during non-traditional hours (658 E(c)(2)(M); 98.16 (x)).

4.6.1 Lead Agencies must identify shortages in the supply of high-quality child care providers. List the data sources used to identify shortages, and describe the method of tracking progress to support equal access and parental choice.

Effective Date: 10/01/2018

☑ In licensed family child care.

The Department identifies shortages of child care providers based on data gathered by Child Care Resource and Referral and child care licensing staff. In addition, the Department has implemented a new child care case management and Child Care Resource and Referral program which will track and provide data related to the number of providers in each geographic area of the state.

☑ In licensed child care centers.

The Department identifies shortages of child care providers based on data gathered by Child Care Resource and Referral and child care licensing staff. In addition, the Department has implemented a new child care case management and Child Care Resource and Referral program which will track and provide data related to the number of providers in each geographic area of the state

☐ Other.

4.6.2 Describe what method(s) is used to increase supply and to improve quality for the following.

Effective Date: 10/01/2018

a) Children in underserved areas. Check and describe all that apply.

☐ Grants and contracts (as discussed in 4.1.3).

Describe:

☐ Family child care networks.

Describe:

☐ Start-up funding.

Describe:

☐ Technical assistance support.

Describe:

☑ Recruitment of providers.

Describe:

The Department's child care licensing staff, program staff, and Child Care Resource and Referral staff participate in local community job fairs, conferences and workshops, and Workforce Development opportunities to provide information related to becoming a child care provider. The Department staff follow-up and provide technical assistance for the interested individuals.

☐ Tiered payment rates (as discussed in 4.3.2).

Describe:

☐ Support for improving business practices, such as management training, paid sick leave, and shared services.

Describe:

☐ Accreditation supports.

Describe:

☐ Child Care Health Consultation.

Describe:

☐ Mental Health Consultation.

Describe:

☐ Other.

Describe:

4.6.2 Describe what method(s) is used to increase supply and to improve quality for the following.

b) Infants and toddlers. Check and describe all that apply.

☐ Grants and contracts (as discussed in 4.1.3).

Describe:

☐ Family child care networks.

Describe:

☐ Start-up funding.

Describe:

☑ Technical assistance support.

Describe:

Based on the Department's recruiting efforts, the Department staff provide follow-up and technical assistance to individuals interested in becoming a child care provider.

☑ Recruitment of providers.

Describe:

The Department's child care licensing staff, program staff, and Child Care Resource and Referral staff participate in local community job fairs, conferences and workshops, and Workforce Development opportunities to provide information related to becoming a child care provider. The Department staff follow-up and provide technical assistance for the interested individuals.

☐ Tiered payment rates (as discussed in 4.3.2) .

Describe:

☐ Support for improving business practices, such as management training, paid sick leave, and shared services.

Describe:

☐ Accreditation supports.

Describe:

☐ Child Care Health Consultation.

Describe:

☐ Mental Health Consultation.

Describe:

☐ Other.

Describe:

4.6.2 Describe what method(s) is used to increase supply and to improve quality for the following.

c) Children with disabilities. Check and describe all that apply.

☐ Grants and contracts (as discussed in 4.1.3).

Describe:

☐ Family child care networks.

Describe:

☐ Start-up funding.

Describe:

☑ Technical assistance support.

Describe:

Based on the Department's recruiting efforts, the Department staff provide follow-up and technical assistance to individuals interested in becoming a child care provider.

☑ Recruitment of providers.

Describe:

The Department may reimburse up to $250.00 more per month for children with special needs.

☑ Tiered payment rates (as discussed in 4.3.2).

Describe:

The Department may reimburse up to $250.00 more per month for children with special needs.

☐ Support for improving business practices, such as management training, paid sick leave, and shared services.

Describe:

☐ Accreditation supports.

Describe:

☐ Child Care Health Consultation.

Describe:

☐ Mental Health Consultation.

Describe:

☐ Other.

Describe:

4.6.2 Describe what method(s) is used to increase supply and to improve quality for the following.

d) Children who receive care during non-traditional hours.Check and describe all that apply

☐ Grants and contracts (as discussed in 4.1.3).

Describe:

☐ Family child care networks.

Describe:

☐ Start-up funding.

Describe:

☑ Technical assistance support.

Describe:

Based on the Department's recruiting efforts, the Department staff provide follow-up and technical assistance to individuals interested in becoming a child care provider.

☑ Recruitment of providers.

Describe:

The Department's child care licensing staff, program staff, and Child Care Resource and Referral staff participate in local community job fairs, conferences and workshops, and Workforce Development opportunities to provide information related to becoming a child care provider. The Department staff follow-up and provide technical assistance for the interested individuals.

☐ Tiered payment rates (as discussed in 4.3.2) .

Describe:

☐ Support for improving business practices, such as management training, paid sick leave, and shared services.

Describe:

☐ Accreditation supports.

Describe:

☐ Child Care Health Consultation.

Describe:

☐ Mental Health Consultation.

Describe:

☐ Other.

Describe:

4.6.2 Describe what method(s) is used to increase supply and to improve quality for the following.

e) Other. Check and describe all that apply:

☐ Grants and contracts (as discussed in 4.1.3).

Describe:

NA

☐ Family child care networks.

Describe:

NA

☐ Start-up funding.

Describe:

NA

☐ Technical assistance support.

Describe:

NA

☐ Recruitment of providers.

Describe:

NA

☐ Tiered payment rates (as discussed in 4.3.2).

Describe:

NA

☐ Support for improving business practices, such as management training, paid sick leave, and shared services.

Describe:

NA

☐ Accreditation supports.

Describe:

NA

☐ Child Care Health Consultation.

Describe:

☐ Mental Health Consultation.

Describe:

NA

☐ Other.

Describe:

NA

4.6.3 Lead Agencies must prioritize investments for increasing access to high-quality child care and development services for children of families in areas that have significant concentrations of poverty and unemployment and do not currently have sufficient numbers of such programs.

Effective Date: 10/01/2018

a) How does the Lead Agency define areas with significant concentrations of poverty and unemployment?

Wyoming as a state does not experience concentrated areas of poverty and unemployment. The poverty rate for Wyoming in the most recent data (2016) is 11.3% and the unemployment rate is 3.7%.

b) Describe how the Lead Agency prioritizes increasing access to high-quality child care and development services for children of families in areas that have significant concentrations of poverty and unemployment and that do not have high-quality programs

Based on the low poverty and unemployment rates in Wyoming, the Department does not prioritize access to care in a particular area.

5 Establish Standards and Monitoring Processes To Ensure the Health and Safety of Child Care Settings

Lead Agencies are required to certify that there are in effect licensing requirements applicable to all child care services in the state/territory, which supports the health and safety of all children in child care. States and territories may allow licensing exemptions. Lead Agencies must describe how such licensing exemptions do not endanger the health, safety, and development of CCDF children in license-exempt care (98.16 (u)).

Lead Agencies also must certify that there are in effect health and safety standards and training requirements applicable to providers serving CCDF children, whether they are licensed or license-exempt. These health and safety requirements must be appropriate to the provider

setting and age of the children served, must include specific topics and training on those topics, and are subject to monitoring and enforcement procedures.

The organization of this section begins with a description of the licensing system for providers of child care in a state or territory and then moves to focus in on CCDF providers who may be licensed, exempt from licensing, or relative providers. The section then covers the health and safety requirements and training, and monitoring and enforcement procedures to ensure that CCDF child care providers comply with licensing and health and safety requirements (98.16(n)). Lead Agencies are also asked to describe any exemptions for relative providers (98.16(l)). This section also addresses group size limits; child-staff ratios; and required qualifications for caregivers, teachers, and directors (98.16(m)) serving CCDF children.

Note: When responding to questions in this section, the OCC recognizes that each State/Territory identifies and defines its own categories of care. The OCC does not expect States/Territories to change their definitions to fit the CCDF-defined categories of care. For these questions, provide responses that closely match the CCDF categories of care.

Criminal background check requirements are included in this section (98.16(o)). It is important to note that these requirements are in effect for all child care staff members that are licensed, regulated or registered under state/territory law and all other providers eligible to deliver CCDF services.

5.1 Licensing Requirements

Each state/territory must certify it has in effect licensing requirements applicable to all child care services provided within the state/territory (not restricted to providers receiving CCDF funds) and provide a detailed description of these requirements and how the requirements are effectively enforced (658E(c)(2)(F)). If any types of providers are exempt from licensing requirements, the state/territory must describe those exemptions and describe how these exemptions do not endanger the health, safety, or development of children. The descriptions must also include any exemptions based on provider category, type, or setting; length of day; and providers not subject to licensing because the number of children served falls below a Lead Agency-defined threshold and any other exemption to licensing requirements (658E(c)(2)(F); 98.16(u); 98.40(a)(2)(iv)).

5.1.1 To certify, describe the licensing requirements applicable to child care services provided within the state/territory by identifying the providers in your state/territory that are subject to licensing using the CCDF categories listed below? Check all that apply and provide a citation to the licensing rule.

Effective Date: 10/01/2018

☑ Center-based child care.

Describe and Provide the citation:

Any individual who provides care for more than two (2) children or one (1) family is required to be licensed unless exempt under the Wyoming Child Care Licensing Rules and Wyoming State Statutes 14-4-101 through 14-4-111. Centers may be exempt if they are operated under a governmental agency. Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center, Chapters 1, 2, 3, 4, 7, 8, 9 and 10

☑ Family child care.

Describe and Provide the citation:

Any individual who provides care for more than two (2) children or one (1) family is required to be licensed unless exempt under the Wyoming Child Care Licensing Rules and Wyoming State Statutes 14-4-101 through 14-4-111. Centers may be exempt if they are operated under a governmental agency. Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center, Chapters 1, 2, 3, 4, 6, 8, 9 and 10

☐ In-home care (care in the child's own home).

Describe and provide the citation (if applicable):

5.1.2 Describe if any providers are exempted from licensing requirements and how such exemptions do not endanger the health, safety, and development of children (658E (c)(2)(F); 98.40(a)(2)).

Effective Date: 10/01/2018

Note: Additional information about exemptions related to CCDF providers is required in 5.1.3.

Any individual who provides care for more than two (2) children or one (1) family is required to be licensed unless exempt under the Wyoming Child Care Licensing Rules and Wyoming State Statutes 14-4-101 through 14-4-111. Centers may be exempt if they are operated under a governmental agency. The Department, in an attempt to protect the safety of children, requires all exempt providers to receive the same background checks as licensed providers. Providers or household members with negative background results are ineligible to receive assistance payments. In addition, all exempt CCDF providers complete First Aid and CPR training and the other 12 federally required training and are required to meet minimum health and safety requirements as stated on the DFS-203 (a) and (b) registration contract. In addition, all exempt providers (except relative) are required to have an annual inspection to assess minimum health and safety requirements as stated on the DFS-203 (a) and (b) registration contract. The background checks, annual inspections and training will help ensure children are not in danger.

5.1.3 Check and describe any CCDF providers in your state/territory who are exempt from licensing (98.40(2)(i) through (iv))? Describe exemptions based on length of day, threshold on the number of children in care, ages of children in care or any other factors applicable to the exemption

Effective Date: 10/01/2018

☑ Center-based child care.

If checked, describe the exemptions.

In Wyoming, Child Care Centers (CCC) may be exempt if they are operated under a governmental agency.

☑ Family child care.

If checked, describe the exemptions.

Any individual who provides care for more than two (2) children or one (1) family is required to be licensed unless exempt under the Wyoming Child Care Licensing Rules and Wyoming State Statutes 14-4-101 through 14-4-111.

☑ In-home care.

If checked, describe the exemptions.

Any individual who is employed to come to the home of the child's parent or guardian is exempt from licensure per Wyoming State Statutes 14-4-101 through 14-4-111.

5.2 Health and Safety Standards and Requirements for CCDF Providers

5.2.1 Standards on ratios, group sizes, and qualifications for CCDF providers.

Lead Agencies are required to establish child care standards for providers receiving CCDF funds, appropriate to the type of child care setting involved, that address appropriate ratios between the number of children and number of providers in terms of the age of the children, group size limits for specific age populations, and the required qualifications for providers (658E(c)(2)(H); 98.41(d); 98.16(m)). For ease of responding, this section is organized by CCDF categories of care, licensing status, and age categories. Respondents should map their Lead Agency categories of care to the CCDF categories.

Effective Date: 10/01/2018

a) Licensed CCDF center-based care

1. Infant

-- How does the State/territory define infant (age range):

Infant means any child from birth to 12 months of age

-- Ratio:

1:3; 2:8; and 3:10 Note: the 1:3 ratio is only enforced when this staff is the only staff on the premise. As soon as there is a second staff on the premise the ratio is 1:4

-- Group size:

10

-- Teacher/caregiver qualifications:

Minimum age of staff shall be 16 years of age. Staff under the age of majority shall

be under the supervision of an adult staff member at all times. When four (4) or more infants are enrolled, an infant director/lead teacher must obtain the Infant/Toddler Director credential and at least one (1) staff person must obtain at least eight (8) credits of specialized infant/toddler training. In addition, both must maintain 16 training credits per year. The assistant teacher is required to maintain four (4) or eight (8) infant/toddler training hours and maintain 16 training credits per year.

2. Toddler

-- How does the State/territory define toddler (age range):

Toddler means any child in care from 12 to 36 months of age.

-- Ratio:

2:10; and 3:12 for 12-24 months. 1:8, 2:16; and 3:18 for 24-36 months.

-- Group size:

12 to 36 month olds are 12 or 18 depending on the age group.

-- Teacher/caregiver qualifications:

Minimum age of staff shall be 16 years of age. Staff under the age of majority shall be under the supervision of an adult staff member at all times.

3. Preschool

-- How does the State/territory define preschool (age range):

Wyoming Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC) do not provide a definition of preschool. For general purposes, the approximate age range is 3 years old through 5 years old.

-- Ratio:

1:10; 2:20; and 3:24 for 3 year olds. 1:12; 2:24; and 3:30 for 4 and 5 year olds.

-- Group size:

4 and 5 year olds is 24 or 30 depending on the age group.

-- Teacher/caregiver qualifications:

Minimum age of staff shall be 16 years of age. Staff under the age of majority shall be under the supervision of an adult staff member at all times.

4. School-age

-- How does the State/territory define school-age (age range):

The Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC): school age children means children who have completed kindergarten or are enrolled in the first grade or are six (6) year old or older.

-- Ratio:

1:18; 2:32; and 3:40

-- Group size:

The maximum group size is 40.

-- Teacher/caregiver qualifications:

Minimum age of staff shall be 16 years of age. Staff under the age of majority shall be under the supervision of an adult staff member at all times.

5. If any of the responses above are different for exempt child care centers, describe which requirements apply to exempt centers

NONE

6. Describe, if applicable, ratios, group sizes, and qualifications for classrooms with mixed age groups.

(e) When age groups are combined the following staff:child ratios and group sizes for the youngest age group present shall apply. These options represent maximum numbers of children per youngest age group and total. (i) When one (1) staff person is present caring for up to six (6) children under the age of 36 months there shall be no

more than two (2) under the age of 12 months, no more than two (2), one (1) year to 24 months, and no more than two (2), two (2) years to 36 months, with a maximum group size of eight (8) children; or (ii) When one (1) staff person is present, if there are only two (2) children under the age of two (2), the maximum group size can be increased to ten (10) children and no more than five (5) children shall be present in the 24-36 month age group. (iii) When two (2) staff persons are present and caring for a mixed age group there shall be no more than four (4) children under the age of 12 months, no more than four (4), one (1) year to 24 months, and no more than four (4), two (2) years to 36 months, with a maximum group size of 15 children.

7. Describe the director qualifications for licensed CCDF center-based care, including any variations based on the ages of children in care.

The director shall: (i) Be at least 21 years old; (ii) Have a high school diploma or an equivalent certificate; (iii) Have a combination of education and experience equivalent to two (2) years in the areas of management, early childhood education, child development, nursing or other; (iv) Shall have completed six (6) clock hours of child care training in addition to pre-service training prior to licensing; (v) Shall have received a professional credential from an organization recognized by the Department; and (vi) Directors shall meet all training requirements as outlined in Chapter 4.

b) Licensed CCDF family child care provider

1. Infant

-- How does the State/territory define infant (age range):

Infant means any child in care from birth to 12 months of age.

-- Ratio:

1:3;Note: the 1:3 ratio is only enforced when this staff is the only staff on the premise. As soon as there is a second staff on the premise the ratio is 1:4 2:8 or 2 infants for a maximum of eight (8) children in a mixed age group or with one (1) staff person may care for four (4) infants for a maximum mixed age group of 10 or two (2) children under the age of 24 months for a maximum of 15 children in a mixed age group with two staff.

-- Group size:

1:4; 2:8 or based on a maximum group size with a mixed age group 1:8 or 2:15

-- Teacher/caregiver qualifications:

Minimum age of staff shall be 16 years of age. Staff under the age of majority shall be under the supervision of an adult staff member at all times. When four (4) or more infants are enrolled, an infant director/lead teacher must obtain the Infant/Toddler Director credential and at least one (1) staff person working directly with infants must obtain at least eight (8) hours of specialized infant/toddler training. In addition, both must maintain 16 training credits per year. The assistant teacher is required to maintain four (4) or eight (8) infant/toddler training hours and maintain 16 training credits per year.

2. Toddler

-- How does the State/territory define toddler (age range):

Toddler means any child in care from 12-36 months of age.

-- Ratio:

1:5; 2:10 or 1:8; 2:15

-- Group size:

No more than five (5) 24-36 month olds for a maximum of eight (8) or ten (10) children in a mixed age group.

-- Teacher/caregiver qualifications:

Minimum age of staff shall be 16 years of age. Staff under the age of majority shall be under the supervision of an adult staff member at all times.

3. Preschool

-- How does the State/territory define preschool (age range):

The Child Care Licensing Rules do not define preschool. For general purposes, the approximate age range is 3 years old through 5 years old.

-- Ratio:

1:10; 1:12; 2:15 or in a mixed age group the maximum capacity is 15 children with a staff person present.

-- Group size:

12 or 15

-- Teacher/caregiver qualifications:

Minimum age of staff shall be 16 years of age. Staff under the age of majority shall be under the supervision of an adult staff member at all times.

4. School-age

-- How does the State/territory define school-age (age range):

The Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC): school age children means children who have completed kindergarten or are enrolled in the first grade or are six (6) year old or older.

-- Ratio:

2:15 or in a mixed age group the maximum capacity is 15 children.

-- Group size:

15

-- Teacher/caregiver qualifications:

Minimum age of staff shall be 16 years of age. Staff under the age of majority shall be under the supervision of an adult staff member at all times.

5. If any of the responses above are different for exempt family child care homes, please describe which requirements apply to exempt homes

NONE

c) In-home CCDF providers:

1. Describe the ratios

Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute. The Wyoming Rules for Child Care Purchase of Service do not prescribe ratios for license-exempt CCDF providers.

2. Describe the group size

Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute. The Wyoming Rules for Child Care Purchase of Service do not prescribe group size for license-exempt CCDF providers.

3. Describe the maximum number of children that are allowed in the home at any one time.

For a provider to be license-exempt, they shall care for no more than two (2) unrelated children or one family.

4. Describe if the state/territory requires related children to be included in the child-to-provider ratio or group size

Providers who provide care for a child in the child's home are exempt from licensure per the Wyoming Statute. The Wyoming Rules for Child Care Purchase of Service do not prescribe whether the providers own children shall be included in the child-to-provider ratios or group size for license-exempt CCDF providers. For in-home providers, there are no ratios per the description above, so related children are not counted in child-to-provider ratio or group size.

5. Describe any limits on infants and toddlers or additional school-age children that are allowed for part of the day

NONE

5.2 Health and Safety Standards and Requirements for CCDF Providers

5.2.2 Health and safety standards for CCDF providers.

States and territories must establish health and safety standards for programs (e.g., child care

centers, family child care homes, etc.) serving children receiving CCDF assistance relating to the topics listed below, as appropriate to the provider setting and age of the children served (98.41(a)). This requirement is applicable to all child care providers receiving CCDF funds regardless of licensing status (i.e., licensed or license-exempt). The only exception to this requirement is for providers who are caring for their own relatives because Lead Agencies have the option of exempting relatives from some or all CCDF health and safety requirements (98.42(c)).

a) To certify, describe how the following health and safety standards for programs serving children receiving CCDF assistance are defined and established on the required topics (98.16(l)). Note: This question is different from the health and safety training requirements, which are addressed in question 5.2.3.

Effective Date: 10/01/2018

1. Prevention and control of infectious diseases (including immunization)

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Current TB test results and risk assessment in accordance with Wyoming Department of Health recommendations required for all child care staff and household members. Immunization records are required by Wyoming Statute, Child Care Licensing Rules and the Wyoming Department of Health, Immunization Program, except for school age children who are attending public schools. Toys, Phone, doorknobs, door casings, handles and railings shall be cleaned and sanitized once a week or whenever visibly soiled. Table tops, high chairs or food serving surfaces shall be sanitized before and after each use. Diaper changing areas shall be sanitized after each diaper change. Bedding materials (unless laundered) shall be stored so that the bedding is not touching to prevent possible cross-contamination. Cot and bedding shall be cleaned and sanitized on a weekly basis. Hand washing required after use of toilet or helping a child use a toilet, diaper changing, handling bodily fluid, handling pets, cleaning or handling garbage or handling food. Hand washing is required before diaper changing, handling food, eating and giving medication. No person with a communicable disease, or being a carrier of such, that is listed on the Wyoming Department of Health Reportable Disease and Condition List shall work in a childcare facility unless they have been declared non-infectious to others by a licensed physician, physician assistant or nurse practitioner OR approval has been given by the local or State Department of Health. The same precautions are needed for children enrolled in the

program. Limitations to ability to work if experiencing certain afflictions. Children shall be excluded from care when they have any of the following illnesses/symptoms of illness: a communicable disease; diarrhea; severe pain or discomfort; two (2) or more episodes of acute vomiting within a period of 24 hours; difficult or rapid breathing; head lice; scabies; children suspected of being in contagious stages of hepatitis A, chicken pox, pertussis, measles, mumps, rubella or diphtheria; skin infection or rash (excluding diaper rash); purulent conjunctivitis; swollen joints or visibly enlarged lymph nodes; elevated oral temperature of 101 degrees or over; blood in the urine; mouth sores; or other as determined by a health consultant on an individual basis. Licensed-exempt providers shall keep attendance and immunization records of the children.

-- List all citations for these requirements, including those for licensed and license-exempt programs

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 3(a)(i) Chapter 4, Section 10(d)(vii) Chapter 4, Section 14(z) Chapter 4, Section 14(aa) Chapter 8, Section 5(a)(i) & (ii) Chapter 8, Section 5(a)(iv) Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(F)

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

License-exempt providers are not required to follow this standard except for having current immunizations on file.

-- Describe any variations based on the age of the children in care

NONE

-- Describe if relatives are exempt from this requirement

License-exempt providers, including relatives, are not required to follow this standard except for having current immunizations on file.

2. Prevention of sudden infant death syndrome and the use of safe-sleep practices

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define standards related to sleeping infants: Sleeping infants shall: (i) Be placed on their backs for sleeping, unless a licensed health care provider signs a waiver. If the infant has not been observed turning repeatedly from stomach to back and back to stomach by the provider, the infant shall be returned to his/her back for sleeping; (ii) Be placed on a firm, flat surface for sleeping; (iii) Have nothing placed in or over the crib, bassinet, or playpen; (iv) Pacifiers shall only be used when provided by the parent(s); (v) Have nothing placed over his/her head or face while sleeping; (vi) Be placed in the same or adjacent room with enough light to see each infant's face, to view the color of the infant's skin and to check on the infant's breathing; (vii) Be actively supervised by staff in an ongoing manner by checking on them for the above every five (5) minutes; (viii) Not be swaddled without a licensed healthcare professional statement, including instructions and a time frame for swaddling an infant, on file. Swaddling is prohibited for infants that have the ability to roll over independently. A one-piece sleeper or sack equipped with an attached system that fastens securely only across the upper torso may be used; however shall not restrict the arms, hips, or legs of the infant. The sleeper or sack shall be used to manufacturer's guidelines and shall not slide up around the infant's face; and (ix) Be moved as soon as possible if he/she falls asleep in any piece of infant equipment other than a crib. Wyoming Rules for Child Care Purchase of Service requires infants shall be placed on a firm flat surface, on their back to sleep, without anything over their head or face. Lighting in the sleep area shall be sufficient.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 19(b) AND Rules for Child Care Purchase of Service: Chapter 1, Section 14 (M)

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed-exempt providers, including relatives, are held to this standard in the Wyoming Rules for Child Care Purchase of Service as described above.

-- Describe any variations based on the age of the children in care

NONE

-- Describe if relatives are exempt from this requirement

. Licensed-exempt providers, including relatives, are held to this standard in the Wyoming Rules for Child Care Purchase of Service as described above.

3. Administration of medication, consistent with standards for parental consent

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define standard related to administration of medication: (a) Medications shall only be given in child care when the facility has agreed to administer medications and adheres to the following: (i) Staff who administers medication has received the training approved by the Department on administration of medication; and (ii) A medication consent form has been completed and signed by the parent or legal guardian and includes: Name of child and parent or guardian; and (B) Specific instructions for the date and time to be administered and dosage; or (C) A standing order from a parent or health professional for commonly used nonprescription medication that defines what medication and when a medication should be used. (b) Prescription medications and pharmaceutical samples prescribed by a physician or licensed health professional and all over the counter medications shall bear the original prescription label or written instructions to include the following information: (i) Child's name printed on the container; (ii) Amount and frequency of dosage; and (iii) Name of prescribing physician or other health professional, with the exception of over-the-counter medications. (c) All medications shall be stored per manufacturer's instructions and: (i) In a safety lock container; (ii) In an enclosed space that is inaccessible to children; or (iii) In a refrigerator separated from food in a sealed plastic container, inaccessible to children. (d) The facility shall keep a written record of all medication, including over-the- counter medication given to children. This record shall include: (i) Name of child; (ii) Name of medication; (iii) Date and time the medication was administered; (iv) Amount of medication given; and (v) Signature or initials of person administering medication. (e) Notification of medication administration shall be given to the parent or guardian on the day it was administered.

(f) Any deviation from recommended dosage on the label shall be accompanied by a physician's written instructions. (g) Medications shall not be used beyond the date of expiration and shall not be stored on premises when no longer needed. (h) The use of sunscreen, insect repellant, essential oils and over the counter topical medications shall not be subject to the training requirements of this Section. (i) The sunscreen, insect repellant, essential oils and over the counter topical medications shall be stored in the original container and the manufacturer's instructions for use shall be followed; and (ii) A consent form, signed by the parent or legal guardian, which allows the application of sunscreen, insect repellant, essential oils and over the counter topical medications on his/her child and indicates the brands of sunscreen unless supplied by parent for his/her child only. Non-relative license-exempt providers are required to store all medications and administer according to manufacturer's instructions.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 7 AND Wyoming Rules for Child Care Purchase of Service: Chapter 1 and Public Exempt Provider Inspection Form

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Non-relative license-exempt providers are not required to follow this standar except for safe storage of medications and administration according to manufacturer's instructions.

-- Describe any variations based on the age of the children in care

NONE

-- Describe if relatives are exempt from this requirement

Licensed-exempt relatives are exempt from this standard.

4. Prevention of and response to emergencies due to food and allergic reactions

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define the standard in terms of requirements for staff and parents: Individual child's records shall include health information including allergies, chronic physical problems and pertinent social information on the child and his family. Special dietary needs and/or food allergies shall be posted in food preparation are and in the area the child eats.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 10(d)(vi) and Chapter 4, Section 18(a)(ii)

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed-exempt providers, including relatives, are not held to this standard.

-- Describe any variations based on the age of the children in care

NONE

-- Describe if relatives are exempt from this requirement

Licensed-exempt providers, including relatives, are not held to this standard.

5. Building and physical premises safety, including the identification of and protection from hazards that can cause bodily injury, such as electrical hazards, bodies of water, and vehicular traffic

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define the standard related to building and physical premises safety in the Health and Safety Requirements section: The overall condition of the child care facility and grounds, including play areas,

equipment, and toys, shall be maintained in a clean, uncluttered, safe condition and free of hazards. Decks, porches, steps, stairs and walkways shall be maintained in good repair and safe condition. Stairs, decks and elevated porches shall have sturdy railings, child safety gates or guardrails. Children shall not have access to cords or ropes, including but not limited to, window treatment cords or electrical cords. Spaces that could entrap children, including but not limited to , openings in guardrails or banisters, shall measure 3.5 inches or less, or more than 9 inches to prevent entrapment. Potentially dangerous or unsafe items shall be made inaccessible to children. Electrical outlets shall be tamper resistant or covered with safety caps when not in use. Any item which may present a burn hazard including heating units and appliances, shall be made inaccessible to children unless its use is for an activity directly supervised by an adult. Electric fans shall be out of the reach of children or shall be fitted with an appropriate mesh to prevent access to the blades by children. In addition, Outdoor Play Space: The outdoor play area shall be enclosed with a fence. The fence shall be at least 4 feet in height and the bottom edge shall be no more than 3.5 inches off the ground. Equipment shall be sturdy, stable, and free of hazards that are accessible to children during normal supervised play and all pieces of equipment shall be installed as directed by the manufacturer's instructions and specifications. Outdoor play equipment with a fall height of more than 24 inches shall be installed over a resilient surface covering the appropriate use zones. Window wells shall be covered, but shall not impede egress or allow for entrapment. Trampolines over 3 feet in diameter shall not be use on or off the premises and shall be fenced or otherwise made inaccessible to child care children. Commercial constant air inflatable devices shall ONLY be used in accordance with the Consumer Product Safety Commission (CPSC) standards (and other conditions). In addition, Swimming Pools, Wading Pools, and Water Hazards. When water hazards are present within the approved play area, the following shall apply: shall be enclosed by a fence no less than 4 feet high; facility policy shall include written safety procedures outlining conditions for use of a swimming pool, wading pool or other bodies of water and be given to parents and staff; written parental consent is required for use of a swimming pool or wading pool; an adult staff member shall be in the immediate vicinity at all times when a water hazard is available and accessible; an adult shall remain in direct physical contact with infants at all times; the shall be at least 1 certified lifeguard present when swimming pool is in use when there is more than 3 feet of water; children are to be instructed on the safe use of a swimming pool; and children shall not be allowed to use hot tubs or

spas and they shall be made inaccessible. When using a public or private pool, staff:child ratios for infants and toddlers, birth to 36 months, shall be 1:1; for children 3 to 5 years old shall be 1:4; for children who have completed kindergarten or are enrolled in first grade or higher or are 6 years or older shall be 1:6 while swimming. Certified lifeguards may be used to meet these staff:child ratios when the lifeguard is age 16 or older and assigned only to that group of children. In addition, Fire Standards for Family Child Care Home and Fire Standards for Child Care Centers and Family Child Care Centers. The fire standards are basic requirements and includes a fire inspection to ensure compliance with minimum requirements that will provide a reasonable level of fire and life safety, property protection and public welfare from actual and potential hazards created by fire, explosions and other hazardous conditions. Wyoming Rules for Child Care Purchase of Service require an annual physical inspection of non-relative providers. In addition, the overall condition of the child care facility and grounds, including play areas, equipment, and toys shall be maintained in a clean, uncluttered, safe condition free of hazards, including items that may cause heat injuries. All unused electrical outlets shall be covered with safety caps and fire exits shall be clear and exit doors remain unlocked or have locks allowing all parties to exit safely.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 14; Chapter 4, Section 16 (e) & (h) & (i) & (l) & (m) & (n); Chapter 4, Section 17; Chapter 9; and Chapter 10 AND Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(vii) and (a)(ix)(H), (I) and (J)

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Non-relative license-exempt providers are not required to follow this standard except for having an annual physical inspection requirement and meeting the above listed requirements.

-- Describe any variations based on the age of the children in care

NONE

-- Describe if relatives are exempt from this requirement

Licensed-exempt relatives are not exempt from the provisions in the Wyoming Rules for Child Care Purchase of Service as described above. However, licensed-exempt relatives are not subject to the annual physical inspection.

6. Prevention of shaken baby syndrome, abusive head trauma, and child maltreatment

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) address Discipline and Guidance as it relates to appropriate interaction with children in care. The following behavior shall be prohibited in all child care settings: punishment associated with food, rest or toilet training; rough handling of children, including but not limited to hitting, spanking, beating, shaking, pinching, pushing or other measures that could produce physical pain; inappropriate use of language, including but not limited to profanity, name calling, derogatory or demeaning terminology or screaming related to disciplinary purposes; any form of humiliation including threats of physical punishment; any form of emotional maltreatment including rejecting, terrorizing, corrupting, isolating or ignoring a child - a child can be removed from a group, but not isolated - behaviors of a child may be ignored, but not the child; and any form of confining a child's movement or restraining a child as a means of punishment. In addition, all staff are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect.

-- List all citations for these requirements, including those for licensed and license-exempt providers

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC)

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed-exempt providers, including relatives, are not held to this standard.

-- Describe any variations based on the age of the children in care

NONE

-- Describe if relatives are exempt from this requirement

Licensed-exempt providers, including relatives, are not held to this standard.

7. Emergency preparedness and response planning for emergencies resulting from a natural disaster or a human-caused event (such as violence at a child care facility), within the meaning of those terms under section 602(a)(1) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5195a(a)(1)). Emergency preparedness and response planning (at the child care provider level) must also include procedures for evacuation; relocation; shelter-in-place and lockdown; staff and volunteer training and practice drills; communications and reunification with families; continuity of operations; and accommodations for infants and toddlers, children with disabilities, and children with chronic medical conditions.

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) defines emergency preparedness in the Health and Safety Requirements: Emergency preparedness guidelines shall be written, available, followed and include: Plans for evacuation, shelter-in-place, lockdown of the facility, reunification and procedures for responding to each type of emergency likely in the area; procedures for reporting a fire or other emergency. Fire Safety and evacuation plans shall be reviewed or updated annually or as necessary and shall be accessible in the workplace for reference and review by employees. Plans for all children with special needs as soon as they are enrolled. That children's emergency contact phone numbers and attendance records shall be taken outside during all emergency evacuation and drills That drills shall include practice from all exit locations, at varied times of the day, and during varied activities; and involve all occupants to participate. and That fire safety and emergency evacuation diagrams (floor plans) shall be posted by all exits. Employee Training: employees shall be trained in the fire emergency procedures in the plans (new employee orientation and annually), and shall include familiarized with fire alarms and evacuation signals,

assigned duties in the event of an emergency, evacuation routes, exterior assembly areas, procedures for evacuation, and location and proper use of fire extinguishers; The Child Care Purchase of Services Rules are currently being updated and shall define emergency preparedness in terms of provider requirements: Providers shall develop an emergency preparedness plan which to include the following: Plans for evacuation, shelter-in-place, lockdown of the facility, reunification and procedures for responding to each type of emergency likely in the area; (ii) Plans for children with special needs as soon as they are enrolled in the program; (iii) That children's emergency contact phone numbers and attendance records shall be taken outside during all emergency evacuation and drills; (iv) That drills shall include practice from all exit locations, at varied times of the day, and during varied activities; and (v) That fire safety and emergency evacuation diagrams (floor plans) shall be posted by all exits.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 14(v); Chapter 9, Sections 12 & 13; and Chapter 10, Section 16 & 17 AND Child Care Purchase of Service Rules, Chapter 1, Section 14(xv)

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed-exempt providers, including relatives, shall not be exempt from the provisions in the Wyoming Rules for Child Care Purchase of Service as described above.

-- Describe any variations based on the age of the children in care

NONE

-- Describe if relatives are exempt from this requirement

Licensed-exempt providers, including relatives, shall not be exempt from the provisions in the Wyoming Rules for Child Care Purchase of Service as described above.

8. Handling and storage of hazardous materials and the appropriate disposal of bio-contaminants

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) defines the standard for handling and storage of hazardous materials and the appropriate disposal of bio-contaminants: Chemicals shall not be used around children and in a manner that contaminates surfaces such as tables, carpets, lawns, food, or food preparation areas. Hazardous compounds such as insecticides and rodenticides and other chemicals bearing the skull and crossbones or "Danger" designation shall be kept under lock and key. Poisonous or toxic chemicals shall not be stored above or adjacent to food, food items (utensils), food contact surfaces, or toys and playthings. They shall not be used in a manner that they could contaminate these articles. Containers of poisonous or toxic material shall be prominently and distinctly labeled for easy identification of contents. AND Wyoming Rules for Child Care Purchase of Service requires weapons, ammunition, poisons, chemicals, bleach and cleaning materials shall be locked up to make them inaccessible to children.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 14(p) and Chapter 8, Section 4(xxv)(B)(C) & (D) AND Wyoming Rules for Child Care Purchase of Service, Chapter 1, Section 14 (ix)(D)

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed-exempt providers, including relatives, are not exempt from the provisions in the Wyoming Rules for Child Care Purchase of Service as described above.

-- Describe any variations based on the age of the children in care

NONE

-- Describe if relatives are exempt from this requirement

Licensed-exempt providers, including relatives, are not exempt from the provisions in the Wyoming Rules for Child Care Purchase of Service as described above.

9. Precautions in transporting children (if applicable)

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) defines standards related to precautions in transporting children: (a) Vehicles used to transport children shall be maintained in safe condition and comply with applicable motor vehicle laws. (b) Operators of vehicles used to transport children shall have the appropriate type of driver's license and be at least 18 years of age. (c) The number of persons in a vehicle used to transport children shall not exceed the manufacturer's recommended capacity nor the number of seat belts installed when the vehicle was manufactured. (d) Each child who is a passenger shall be properly secured in a child safety restraint system or seat belt as required by law. The child safety restraint system shall conform to Federal Motor Vehicle Safety Standards for child restraint systems. (e) When children are taken off site, there shall be: (i) A first aid kit; (ii) Emergency medical release forms on all children; (iii) A current and updated attendance record; and (iv) Adult supervision at all times.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 8

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed-exempt providers, including relatives, are not held to this standard.

-- Describe any variations based on the age of the children in care

NONE

-- Describe if relatives are exempt from this requirement

Licensed-exempt providers, including relatives, are not held to this standard.

10. Pediatric first aid and cardiopulmonary resuscitation (CPR) certification

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) AND the Child Care Purchase of Service rules define this area in terms of required training (pre-service and annual training requirements). In addition, all child care facilities shall have at least a basic first-aid kit or its equivalent on hand at all times. The first-aid kit shall be taken on field trips and outings. CPR and First Aid to be kept current at all times. The Wyoming Rules for Child Care Purchase of Service requires CPR and First Aid to be kept current at all time.

-- List all citations for these requirements, including those for licensed and license-exempt providers

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) AND the Child Care Purchase of Service rules

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

NONE

-- Describe any variations based on the age of the children in care

NONE

-- Describe if relatives are exempt from this requirement

Licensed-exempt relatives are not exempt from this standard.

11. Recognition and reporting of child abuse and neglect

-- Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define recognition and reporting of child abuse and neglect in terms of requirements of all staff: All Staff are required to report cases of suspected child abuse or neglect. A provider, director or their staff shall report immediately to the local Department office and local law enforcement any circumstances indicating that a child in care may have been subjected to abuse or neglect. AND Wyoming State Statute defines all persons as mandatory reporters.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 11(c) AND Wyoming State Statute 14-3-205(a).

-- Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

NONE

-- Describe any variations based on the age of the children in care

NONE

-- Describe if relatives are exempt from this requirement

License-exempt relatives are not exempt from this requirement.

b) Does the Lead Agency include any of the following optional standards?

☐ No, if no, skip to 5.2.3.

☑ Yes, if yes provide the information related to the optional standards addressed.

1. Nutrition

--Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define nutrition requirements: (a) Nutritionally balanced snacks, meals and appropriate portions for the needs and ages of children shall be provided; (i) Adequate fluids shall be provided and encouraged; and (ii) Special dietary needs and/or food allergies shall be posted in food preparation areas and in the area the child eats. (b) If a child is in attendance for five (5) or more hours, a meal shall be provided, unless a child arrives after lunchtime and an evening meal is not provided by the facility. In this case, a nutritious snack shall be provided. (c) Pasteurized milk shall be made available at all meals, unless written documentation is provided by the parent and is on file.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 18

--Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed-exempt providers, including relatives, are not held to this standard.

-- Describe any variations based on the age of the children in care.

NONE

--Describe if relatives are exempt from this requirement

Licensed-exempt providers, including relatives, are not held to this standard.

2. Access to physical activity

--Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define access to physical activity: (a) There shall be a minimum of 75 square feet of outdoor play space for each

child when ages of children are combined, except as provided in Section 15. and (c) This space shall be used at least one (1) time per day for at least 30 minutes when weather and environmental conditions do not pose a significant health or safety risk.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 16(a) & (c)

-Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed-exempt providers, including relatives, are not held to this standard.

-- Describe any variations based on the age of the children in care.

NONE

--Describe if relatives are exempt from this requirement

Licensed-exempt providers, including relatives, are not held to this standard.

3. Caring for children with special needs

--Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) define caring for children with special needs by requiring reasonable accommodations made for children with special needs based on the child's ability.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 2(g)

--Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed-exempt providers, including relatives, are not held to this standard.

-- Describe any variations based on the age of the children in care.

NONE

--Describe if relatives are exempt from this requirement

Licensed-exempt providers, including relatives, are not held to this standard.

4. Any other areas determined necessary to promote child development or to protect children's health and safety (98.44(b)(1)(iii)).

Describe:

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) require licensed providers to have a written discipline policy.

--Provide a brief summary of how this standard is defined (i.e., what is the standard, content covered, practices required, etc.)

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) require licensed providers to have a written discipline policy that shall not include any discipline that is in violation of applicable laws; outline the methods of guidance appropriate to the ages of the children enrolled; explicitly describe positive guidance, such as redirection, natural and logical consequences, modeling of positive behavior and other non-violent, non-abusive methods of discipline; and be included in orientation of all staff.

-- List all citations for these requirements, including those for licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 6(a)(i) through (iv)

--Describe any variations by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Licensed-exempt providers, including relatives, are not held to this standard.

-- Describe any variations based on the age of the children in care.

NONE

--Describe if relatives are exempt from this requirement

Licensed-exempt providers, including relatives, are not held to this standard.

5.2.3 Health and safety training for CCDF providers on required topics.

Lead Agencies are required to have minimum pre-service or orientation training requirements (to be completed within 3 months), as appropriate to the provider setting and the age of children served, that address the health and safety topics described in 5.2.2, and child development. Lead Agencies must also have ongoing training requirements on the health and safety topics for caregivers, teachers, and directors of children receiving CCDF funds (658E(c)(2)(I)(i); 98.44(b)(1)(iii)). The state/territory must describe its requirements for pre-service or orientation training and ongoing training. These trainings should be part of a broader systematic approach and progression of professional development (as described in section 6) within a state/territory. Lead Agencies have flexibility in determining the number of training hours to require, but they may consult with Caring for our Children Basics for best practices and the recommended time needed to address these training requirements.

Effective Date: 10/01/2018

Pre-Service or Orientation Training Requirements

a) Provide the minimum number of pre-service or orientation training hours on health and safety topics for caregivers, teachers, and directors required for the following:

1. Licensed child care centers:

The Department currently requires a six (6) hour pre-service orientation for all new providers, directors, and staff. This training meets the health and safety requirements as required by CCDF Re-authorization rules.

2. Licensed FCC homes:

The Department currently requires a six (6) hour pre-service orientation for all new providers, directors, and staff. This training meets the health and safety requirements as required by CCDF Re-authorization rules.

3. In-home care:

In-home care is exempt from licensure. However, if they are a CCDF licensed-exempt provider, the Department required a six (6) hour pre-service orientation. This training meets the health and safety pre-service requirements as required by CCDF Re-authorization rules.

4. Variations for exempt provider settings:

The Department currently requires a six (6) hour pre-service orientation for all new providers, directors, and staff. This training meets the health and safety requirements as required by CCDF Re-authorization rules.

b) Provide the length of time that providers have to complete trainings subsequent to being hired (must be 3 months or fewer)

The Department requires that all staff shall complete the pre-service and facility staff orientation training within 3 months of staff's hire date. Licensed-exempt providers, including relative providers, do not have to complete the required training prior to being left alone with children.

c) Explain any differences in pre-service or orientation training requirements based on the ages of the children served

NONE

d) Describe how the training is offered, including any variations in delivery (e.g. across standards, in rural areas, etc.) Note: There is no federal requirement on how a training must be delivered

The training is offered on line via Better Kid Care through the Department professional development Registry. Providers are also able to identify in-person training related to the topics which may be approved by the Registry staff to meet the requirement.

e) Identify below the pre-service or orientation training requirements for each topic (98.41(a)(1)(i through xi)).

1. Prevention and control of infectious diseases (including immunizations)

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 AND Wyoming Rules for Child Care Purchase of Service, Chapter 1, Section 14(a)(vi)

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

- [x] Yes
- [ ] No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

- [ ] Yes
- [x] No

Describe if relatives are exempt from this requirement

License-exempt relatives are not exempt from this requirement.

5.2.3e 2. Prevention of sudden infant death syndrome and the use of safe-sleep practices

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 AND Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(vi)

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF are allowed to care for children unsupervised?

- [x] Yes
- [ ] No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☐ Yes

☑ No

Describe if relatives are exempt from this requirement

License-exempt relatives are not exempt from this requirement.

5.2.3e 3. Administration of medication, consistent with standards for parental consent

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 AND Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(vi)

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☐ Yes

☑ No

Describe if relatives are exempt from this requirement

License-exempt relatives are not exempt from this requirement.

5.2.3e 4. Prevention and response to emergencies due to food and allergic reactions

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child

Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 AND

Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(vi)

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

- [x] Yes
- [ ] No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

- [ ] Yes
- [x] No

Describe if relatives are exempt from this requirement

License-exempt relatives are not exempt from this requirement.

5.2.3e 5. Building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

- [x] Yes
- [ ] No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

- [ ] Yes

☑ No

Describe if relatives are exempt from this requirement

License-exempt relatives are not exempt from this requirement.

5.2.3e 6. Prevention of shaken baby syndrome, abusive head trauma, and child maltreatment

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 AND Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(vi)

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☐ Yes

☑ No

Describe if relatives are exempt from this requirement

License-exempt relatives are not exempt from this requirement.

5.2.3e 7. Emergency preparedness and response planning for emergencies resulting from a natural disaster or a human-caused event

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 AND Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(vi)

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

- [x] Yes
- [ ] No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

- [ ] Yes
- [x] No

Describe if relatives are exempt from this requirement

License-exempt relatives are not exempt from this requirement.

5.2.3e 8. Handling and storage of hazardous materials and the appropriate disposal of bio contaminants

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

- [x] Yes
- [ ] No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

- [ ] Yes
- [x] No

Describe if relatives are exempt from this requirement

License-exempt relatives are exempt from this requirement.

5.2.3e 9. Appropriate precautions in transporting children (if applicable)

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 AND Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(vi)

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

- [x] Yes
- [ ] No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

- [ ] Yes
- [x] No

Describe if relatives are exempt from this requirement

License-exempt relatives are not exempt from this requirement.

5.2.3e 10. Pediatric first aid and CPR certification

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 AND Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(vi) AND Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(ix)(E)

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☐ Yes

☑ No

Describe if relatives are exempt from this requirement

License-exempt relatives are not exempt from this requirement.

5.2.3e 11. Recognition and reporting of child abuse and neglect

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 AND Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(vi)

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

☑ Yes

☐ No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☐ Yes

☑ No

Describe if relatives are exempt from this requirement

License-exempt relatives are not exempt from this requirement.

5.2.3e 12. Child development (98.44(b)(1)(iii))

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

- [x] Yes
- [ ] No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

- [ ] Yes
- [x] No

Describe if relatives are exempt from this requirement

License-exempt relatives are exempt from this requirement.

5.2.3e 13.

Describe other training requirements, such as nutrition, physical activities, caring for children with special needs, etc..

NONE

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

NONE

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in licensed CCDF programs are allowed to care for children unsupervised?

- [ ] Yes
- [ ] No

Does the state/territory require that this training topic be completed before caregivers, teachers, and directors in license-exempt CCDF programs are allowed to care for children unsupervised?

☐ Yes

☐ No

Describe if relatives are exempt from this requirement

Ongoing Training Requirements

5.2.4 Provide the minimum number of annual training hours on health and safety topics for caregivers, teachers, and directors required for the following.

Effective Date: 09-30-2019

a) Licensed child care centers:

The Department currently requires 16 hours annually of on-going training for all providers, directors and staff. This training meets the health and safety requirements as required by CCDF Re-authorization rules.

b) Licensed FCC homes:

The Department currently requires 16 hours annually of on-going training for all providers, directors and staff. This training meets the health and safety requirements as required by CCDF Re-authorization rules.

c) In-home care:

The Department's Child Care Purchase of Service rules and the Unlicensed Provider Registration Form (DFS 203 B) details the requirements regarding health and safety training for both pre-service and on-going. CCDF licensed-exempt are required to complete the health and safety training on an annual basis (8 hours/year).

d) Variations for exempt provider settings:

The Department requires 8 hours annually of on-going health and safety training for licensed-exempt non-relative providers.

5.2.5 Describe the ongoing health and safety training for CCDF providers by category of care (i.e., center, FCC, in-home) and licensing status (i.e., licensed, license-exempt).

Effective Date: 09-30-2019

1. Prevention and control of infectious diseases (including immunizations)

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 and the Department's Child Care Purchase of Service rules.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

- [x] Annually
- [ ] Other

Describe:

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

- [x] Annually
- [ ] Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

2. Prevention of sudden infant death syndrome and the use of safe-sleep practices

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child

Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 and the Department's Child Care Purchase of Service rules.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

- [x] Annually
- [ ] Other

Describe:

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

- [x] Annually
- [ ] Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

3. Administration of medication, consistent with standards for parental consent

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 and the Department's Child Care Purchase of Service rules.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

- [x] Annually
- [ ] Other

Describe:

-- How often does the state/territory require that this training topic be completed by

caregivers, teachers, and directors in licensed-exempt CCDF programs?

☑ Annually

☐ Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

4. Prevention and response to emergencies due to food and allergic reactions

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 and the Department's Child Care Purchase of Service rules.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

☑ Annually

☐ Other

Describe:

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

☑ Annually

☐ Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

5. Building and physical premises safety, including the identification of and protection from hazards, bodies of water, and vehicular traffic

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 and the Department's Child Care Purchase of Service rules.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

- [x] Annually
- [ ] Other

Describe:

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

- [x] Annually
- [ ] Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

6. Prevention of shaken baby syndrome, abusive head trauma, and child maltreatment

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 and the Department's Child Care Purchase of Service rules.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

- [x] Annually
- [ ] Other

Describe:

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

☑ Annually

☐ Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

7. Emergency preparedness and response planning for emergencies resulting from a natural disaster or a human-caused event

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 and the Department's Child Care Purchase of Service rules.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

☑ Annually

☐ Other

Describe:

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

☑ Annually

☐ Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

8. Handling and storage of hazardous materials and the appropriate disposal of bio-

contaminants

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 and the Department's Child Care Purchase of Service rules.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

- [x] Annually
- [ ] Other

Describe:

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

- [x] Annually
- [ ] Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

9. Appropriate precautions in transporting children (if applicable)

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 and the Department's Child Care Purchase of Service rules.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

- [x] Annually

☐ Other

Describe:

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

☑ Annually

☐ Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

10. Pediatric first aid and CPR certification

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 AND Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(ix)(E)

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

☐ Annually

☑ Other

Describe:

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) AND Wyoming Rules for Child Care Purchase of Service require current Pediatric first aid and CPR certification. Generally, a person's certification is 2 years.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

☐ Annually

☑ Other

Describe:

Wyoming Rules for Child Care Purchase of Service require current Pediatric first aid and CPR certification. Generally, a person's certification is 2 years.

11. Recognition and reporting of child abuse and neglect

-- Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 and the Department's Child Care Purchase of Service rules.

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

☑ Annually

☐ Other

Describe:

-- How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

☑ Annually

☐ Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

12. Child development (98.44(b)(1)(iii))

Provide the citation for this training requirement, including citations for both licensed and license-exempt providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 9 and the Department's Child Care Purchase of Service rules.

How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

- [x] Annually
- [ ] Other

Describe:

How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

- [x] Annually
- [ ] Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

13. Describe other requirements such as nutrition, physical activities, caring for children with special needs, etc..

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) and the Department's Child Care Purchase of Service rules require nutrition training as part of pre-service orientation and annually.

Provide the citation for other training requirements, including citations for both licensed and license-exempt providers

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC).The Department's Child Care Purchase of Service rules.

How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed CCDF programs?

- [x] Annually

☐ Other

Describe:

How often does the state/territory require that this training topic be completed by caregivers, teachers, and directors in licensed-exempt CCDF programs?

☑ Annually

☐ Other

Describe:

The Department's Child Care Purchase of Service rules requires annual ongoing training (8 hours) for license- exempt non-relative providers.

5.3 Monitoring and Enforcement Policies and Practices for CCDF Providers

5.3.1 Enforcement of licensing and health and safety requirements

Lead agencies must certify that procedures are in effect to ensure that child care providers caring for children receiving CCDF services comply with all applicable State and local health and safety requirements, including those described in 98.41 (98.42(a)). This may include, but is not limited to, any systems used to ensure that providers complete health and safety trainings, any documentation required to be maintained by child care providers or any other monitoring procedures to ensure compliance. Note: Inspection requirements are described starting in 5.3.2.

To certify, describe the procedures to ensure that CCDF providers comply with all applicable State and local health and safety requirements

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) require a pre-inspection of a facility prior to the issuance of a license. Child Care Licensing Rules require a minimum of one (1) unannounced and one (1) announced visit per year. The child care licensing staff verify, in the professional development Registry (STARS), that all federally required health and safety training is completed.

Effective Date: 10/01/2018

5.3.2 Inspections for licensed CCDF providers.

Lead agencies must require licensing inspectors to perform inspections-with no fewer than one pre-licensure inspection for compliance with health, safety, and fire standards-of each child care provider and facility in the state/territory. Licensing inspectors are required to perform no fewer than one annual, unannounced inspection of each licensed CCDF provider for compliance with all child care licensing standards; it shall include an inspection for compliance with health and safety (including, but not limited to, those requirements described in 98.41) and fire standards; inspectors may inspect for compliance with all three standards - health, safety, and fire - at the same time (658E(c)(2)(K)(i)(II); 98.16 (n); 98.42(b)(2)(i)). Certify by responding to the questions below to describe your state/territory's monitoring and enforcement procedures to ensure that licensed child care providers comply with licensing standards, including compliance with health and safety (including, but not limited to, those requirements described in 98.41) and fire standards.

Effective Date: 10/01/2018

a) Licensed CCDF center-based child care

1. Describe your state/territory's requirements for *pre-licensure inspections* of licensed child care center providers for compliance with health, safety, and fire standards

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 2, Section 2 (c) - All applications shall receive action from the Department within 30 days after being filed. Applications are considered filed when the Licenser has received a signed and dated application filled out in its entirety. The following items are required to be submitted at the time of application or within 30 days. If not received within 30 days the application shall be denied. Chapter 2, Section 2(d) - Inspections may include, but are not limited to: (i) Examination and assessment of the entire facility, equipment, and records for compliance with these rules; (ii) Measurement of available indoor and outdoor play space initially and/or with any change; (iii) Discussion of any licensing violations discovered and technical assistance as the result of inspection. The pre-inspections include verification of compliance of all child care licensing rules, including health and safety standards and fire standards.

2. Describe your state/territory's requirements for annual, unannounced inspections of licensed CCDF child care center providers

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) require a pre-inspection of a facility prior to the issuance of a license. Child Care Licensing Rules require a minimum of one (1) unannounced visit per year in addition to a renewal inspection.

3. Identify the frequency of unannounced inspections:

- [x] Once a year
- [ ] More than once a year

Describe:

4. Describe the monitoring procedures (including differential monitoring, if applicable) and how the inspections ensure that child care center providers comply with the applicable licensing standards, including health, safety, and fire standards.

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 2, Section 4(b) and (c) AND Child Care Licensing Policy, 402.1, Inspection Types and Time Frames require the following related to monitoring and inspections: A minimum of two (2) annual licensing inspections are required of all facilities. Additional licensing inspections, scheduled or unscheduled may be conducted during the licensing year. Inspections may include but are not limited to: Examination and assessment of the entire facility, equipment and records for compliance with these rules; Discussion of any licensing violations discovered and technical assistance as the result of inspection. Additional inspections would be completed based on violations or the need for additional TA. Annual monitoring and inspections of providers include all health and safety requirements as well as a fire inspection, food safety and sanitation inspection.

5. List the citation(s) for your state/territory's policies regarding inspections for licensed CCDF center providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 2, Section 4(b) and (c) AND Child Care Licensing Policy, 402.1, Inspection Types and Time Frames

b) Licensed CCDF family child care home

1. Describe your state/territory's requirements for *pre-licensure inspections* of licensed family child care providers for compliance with health, safety, and fire standards

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 2, Section 2 (c) - All applications shall receive action from the Department within 30 days after being filed. Applications are considered filed when the Licenser has received a signed and dated application filled out in its entirety. The following items are required to be submitted at the time of application or within 30 days. If not received within 30 days the application shall be denied. Chapter 2, Section 2(d) - Inspections may include, but are not limited to: (i) Examination and assessment of the entire facility, equipment, and records for compliance with these rules; (ii) Measurement of available indoor and outdoor play space initially and/or with any change; (iii) Discussion of any licensing violations discovered and technical assistance as the result of inspection. In addition, pre-licensure inspections include health and safety, fire and food safety and sanitation.

2. Describe your state/territory's requirements for annual, unannounced inspections of licensed CCDF family child care providers

. The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) require a pre-inspection of a facility prior to the issuance of a license. Child Care Licensing Rules require a minimum of one (1) unannounced visit per year in addition to a renewal inspection. The pre- inspections include verification of compliance of all child care licensing rules, including health and safety standards and fire standards.

3. Identify the frequency of unannounced inspections:

☑ Once a year

☐ More than once a year

Describe:

4. Describe the monitoring procedures (including differential monitoring, if applicable) and how the inspections ensure that CCDF family child care providers comply with the applicable licensing standards, including health, safety, and fire standards.

A minimum of one (1) annual licensing inspection is required of all facilities. Additional licensing inspections, scheduled or unscheduled may be conducted during the licensing year. Inspections may include but are not limited to: Examination and assessment of the entire facility, equipment and records for compliance with these rules; Discussion of any licensing violations discovered and technical assistance (TA) as the result of inspection. Additional inspections would be completed based on violations or the need for additional TA. Annual monitoring and inspections of providers include all health and safety requirements as well as a fire inspection, food safety and sanitation inspection.

5. List the citation(s) for your state/territory's policies regarding inspections for licensed CCDF family child care providers

Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 2, Section 4 (b) and (c) Child Care Licensing Policy, 402.1, Inspection Types and Time Frames

c) Licensed in-home CCDF child care

☑ N/A. In-home CCDF child care (care in the child's own home) is not licensed in the State/Territory. Skip to 5.3.2 (d).

1. Describe your state/territory's requirements for *pre-licensure inspections* of licensed in-home child care providers for compliance with health, safety, and fire standards

2. Describe your state/territory's requirements for annual, unannounced inspections of licensed CCDF in-home child providers

3. Identify the frequency of unannounced inspections:

☐ Once a year

☐ More than once a year

Describe:

4. Describe the monitoring procedures (including differential monitoring, if applicable) and how the inspections ensure that in-home CCDF child care providers comply with the applicable licensing standards, including health, safety, and fire standards.

5. List the citation(s) for your state/territory's policies regarding inspections for licensed in-home CCDF providers

d) List the entity(ies) in your state/territory that are responsible for conducting pre-licensure inspections and unannounced inspections of licensed CCDF providers

The Wyoming Department of Family Services (lead agency), the Wyoming Fire Marshall's Office and Wyoming Department of Agriculture conduct pre-licensure inspections, unannounced inspections and/or renewal inspections of all licensed child care providers in Wyoming, including both CCDF and non-CCDF.

5.3.3 Inspections for license-exempt CCDF providers

Lead Agencies must have policies and practices that require licensing inspectors (or qualified monitors designated by the Lead Agency) to perform an annual monitoring visit of each license-exempt CCDF provider for compliance with health, safety (including, but not limited to, those requirements described in 98.41), and fire standards (658E(c)(2)(K)(i)(IV); 98.42(b)(2)(ii)). Lead Agencies have the option to exempt relative providers (as described in section (658P(6)(B)) from this requirement. To certify, respond to the questions below to describe the policies and practices for the annual monitoring of:

Effective Date: 10/01/2018

a) License-exempt center-based CCDF providers, including if monitoring is announced or unannounced, occurs more frequently than once per year, and if differential monitoring is used

The Department's Child Care Purchase of Services Rules, Chapter 1 and the 203b form (Provider Registration Form) describe the annual monitoring visit requirements, which includes fire requirements: fire exits are clear and exit doors remain unlocked or have locks allowing all parties to safely exit. The Department runs a report for non-relative providers, including license-exempt center based CCDF provider, the verifiers (inspectors) contact the providers, schedules a time to meet in the home or the license-exempt center, to conduct the inspection and complete the checklist, which includes provider and child file reviews and health and safety inspections. Upon completion of the inspection, the provider is provided an assessment of compliance to the requirements

and a corrective action plan may be required to remedy any non- compliance issues. The verifiers enter the information into the electronic tracking system. The results will be available to parents and consumers by the deadline required in these rules. http://docs.google.com/a/wyo.gov/viewer?a=v&pidsites&srcidd3lvLmdvdnxkZnN3ZWJ8Z3g6 MTgyMjFiOTM3Y2Q4YjE0ZQ

Provide the citation(s) for this policy or procedure

The Department's Child Care Purchase of Services Rules, Chapter 1 and the 203b form (Provider Registration Form)

b) License-exempt family child care CCDF providers, including if monitoring is announced or unannounced, occurs more frequently than once per year, and if differential monitoring is used

The Department's Child Care Purchase of Services Rules, Chapter 1 and the 203b form (Provider Registration Form) describe the annual monitoring visit requirements, which includes fire requirements: fire exits are clear and exit doors remain unlocked or have locks allowing all parties to safely exit. The Department runs a report for non-relative providers, the verifiers (inspectors) contact the providers, schedules a time to meet in the home to conduct the inspection and complete the checklist, which includes provider and child file reviews and health and safety inspections. Upon completion of the inspection, the provider is provided an assessment of compliance to the requirements and a corrective action plan may be required to remedy any non- compliance issues. The verifiers enter the information into the electronic tracking system. The results will be available to parents and consumers by the deadline required in these rules. http://docs.google.com/a/wyo.gov/viewer?a=v&pidsites&srcidd3lvLmdvdnxkZnN3ZWJ8Z3g6 MTgyMjFiOTM3Y2Q4YjE0ZQ

Provide the citation(s) for this policy or procedure

The Department's Child Care Purchase of Services Rules, Chapter 1 and the 203b form (Provider Registration Form)

c) License-exempt in-home CCDF providers, including if monitoring is announced or unannounced, occurs more frequently than once per year, if relative care is exempt from monitoring, and if differential monitoring is used

The Department's Child Care Purchase of Services Rules, Chapter 1 and the 203b form

(Provider Registration Form) describe the annual monitoring visit requirements, which includes fire exits are clear and exit doors remain unlocked or have locks allowing all parties to safely exit. The Department runs a report for non-relative providers, the verifiers (inspectors) contact the providers, schedules a time to meet in the home to conduct the inspection and complete the checklist, which includes provider and child file reviews and health and safety inspections. Upon completion of the inspection, the provider is provided an assessment of compliance to the requirements and a corrective action plan may be required to remedy any non- compliance issues. The verifiers enter the information into the electronic tracking system. The results will be available to parents and consumers by the deadline required in these rules.
http://docs.google.com/a/wyo.gov/viewer?a=v&pidsites&srcidd3lvLmdvdnxkZnN3ZWJ8Z3g6 MTgyMjFiOTM3Y2Q4YjE0ZQ

Provide the citation(s) for this policy or procedure

The Department's Child Care Purchase of Services Rules, Chapter 1 and the 203b form (Provider Registration Form)

d) Lead Agencies have the option to develop alternate monitoring requirements for care provided in the child's home (98.42(b)(2)(iv)(B)). Does your state use alternate monitoring procedures for monitoring in-home care?

- [x] No
- [ ] Yes. If yes,

decsibe:

e) List the entity(ies) in your state/territory that are responsible for conducting inspections of license-exempt CCDF providers

The Department is responsible for conducting inspections of license-exempt CCDF providers.

5.3.4 Licensing inspectors.

Effective Date: 10/01/2018

Lead Agencies will have policies and practices that ensure that individuals who are hired as licensing inspectors (or qualified monitors designated by the Lead Agency) are qualified to inspect child care providers and facilities and have received health and safety training appropriate to the provider setting and age of the children served. Training shall include, but is not limited to, those requirements described in 98.41(a)(1) and all aspects of the State's licensure requirements (658E(c)(2)(K)(i)(I); 98.42(b)(1-2)).

a) To certify, describe how the Lead Agency ensures that licensing inspectors (or qualified monitors designated by the Lead Agency) are qualified to inspect child care facilities and providers and that those inspectors have received training on health and safety requirements that are appropriate to the age of the children in care and the type of provider setting (98.42(b)(1-2)).

The Department's Child Care Licensing hiring qualifications are established by the State's lead human resource agency, Administration and Information. The licenser position requires a minimum of a Bachelor's degree or combined experience and education will be considered. Priority given to those with a Bachelor's degree in early childhood, child development, social work, or criminal investigation. The child care licensers are required to complete a minimum of 16 training hours per year, which includes the federally required health and safety training. The training completed by a licenser should fall within the recommended National Standards as stated by Caring for Our Children. Through a program within the Department of Family Services, child care licensers are encouraged to take advantage of the assistance to achieve a higher education.

b) Provide the citation(s) for this policy or procedure

https://www.governmentjobs.com/careers/wyoming/classspecs/912626?keywords=inin%2008&pagetype=classSpecification In addition, the 16 hour training requirement is a goal in each child care licenser and supervisor's Performance Management annual review.

5.3.5 The states and territories shall have policies and practices that require the ratio of licensing inspectors to child care providers and facilities in the state/territory to be maintained at a level sufficient to enable the state/territory to conduct effective inspections of child care providers and facilities on a timely basis in accordance with federal, state, and local laws (658E(c)(2)(K)(i)(III); 98.42(b)(3)).

a) To certify, describe the state/territory policies and practices regarding the ratio of licensing inspectors to child care providers (i.e. number of inspectors per number of child care providers) and facilities in the state/territory and include how the ratio is sufficient to conduct effective inspections on a timely basis.

Currently, child care licensers maintain a ratio of 1:50 and in some cases 1:65. The licenser caseloads are evaluated on a regular basis taking into account the amount of travel for the territory. Child care licensers are assigned "County" territories.

b) Provide the policy citation and state/territory ratio of licensing inspectors

The Department underwent a legislative audit which recommended a child care licensing caseload ratio. The Department evaluates caseloads on a regular basis to ensure caseloads are evenly distributed across the unit. The instructions from the Wyoming Legislature, as a result of the legislative audit, is no in Department rule or policy.

5.3.6 States and territories have the option to exempt relatives (defined in CCDF regulations as grandparents, great-grandparents, siblings if living in a separate residence, aunts, and uncles (98.42(c)) from inspection requirements. Note: This exception only applies if the individual cares only for relative children. Does the state/territory exempt relatives from the inspection requirements listed in 5.3.3?

Effective Date: 10/01/2018

☑ Yes, relatives are exempt from all inspection requirements.

If the state/territory exempts relatives from all inspection requirements, describe how the state ensures the health and safety of children in relative care.

Wyoming requires legally exempt providers, including relatives, to be certified in first aid and infant/child CPR and to make toxic substances and weapons inaccessible to children. In addition, exempt providers are required to complete child abuse and neglect background checks for Wyoming and any other state they may have resided in in the past five (5) years; Sex Offender registry check for national, Wyoming and any other state they may have resided in in the past five (5) years; and national fingerprint checks.

☐ Yes, relatives are exempt from some inspection requirements.

If the state/territory exempts relatives from the inspection requirements, describe which inspection requirements do not apply to relative providers (including which relatives may be exempt) and how the State ensures the health and safety of children in relative care.

☐ No, relatives are not exempt from inspection requirements.

5.4 Criminal Background Checks

The CCDBG Act requires states and territories to have in effect requirements, policies and procedures to conduct criminal background checks for all child care staff members (including prospective staff members) of all child care programs that are 1) licensed, regulated, or registered under state/territory law; or, 2) all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers) (98.43(a)(1)(i)). Background check requirements apply to any staff member who is employed by a child care provider for compensation, including contract employees and self-employed individuals; whose activities involve the care or supervision of children; or who has unsupervised access to children (98.43(2)). For FCC homes, this requirement includes the caregiver and any other adults residing in the family child care home who are age 18 or older (98.43(2)(ii)(C)). This requirement does not apply to individuals who are related to all children for whom child care services are provided (98.43(2)(B)(ii)).

A criminal background check must include 8 specific components (98.43(2)(b)), which encompass 3 in-state checks, 2 national checks, and 3 inter-state checks

Components	In-State	National	Inter-State
1. Criminal registry or repository using fingerprints in the current state of residency	x		
2. Sex offender registry or repository check in the current state of residency	x		
3. Child abuse and neglect registry and database check in the current state of residency	x		
4. FBI fingerprint check		x	
5. National Crime Information Center (NCIC) National Sex Offender Registry (NSOR)		x	
6. Criminal registry or repository in any other state where the individual has resided in the past 5 years, with the use of fingerprints being optional			x
7. Sex offender registry or repository in any other state where the			x

individual has resided in the past 5 years			
8. Child abuse and neglect registry and database in any other state where the individual has resided in the past 5 years			x

In recognition of the significant challenges to implementing the Child Care and Development Fund (CCDF) background check require+J514ments, all States applied for and received extensions through September 30, 2018. The Office of Child Care (OCC)/Administration for Children and Families (ACF)/U. S. Department of Health and Human Services (HHS) is committed to granting additional waivers of up to 2 years, in one year increments (i.e., potentially through September 30, 2020) if significant milestones for background check requirements are met.

In order to receive these time-limited waivers, states and territories will demonstrate that the milestones are met by responding to questions 5.4.1 through 5.4.4 and then apply for the time-limited waiver by completing the questions in Appendix A: Background Check Waiver Request Form. By September 30, 2018, states and territories must have requirements, policies and procedures for four specific background check components, and must be conducting those checks for all new (prospective) child care staff, in accordance with 98.43 and 98.16(o):

--The national FBI fingerprint check; and,	
--The three in-state background check provisions for the current state of residency:	
	--state criminal registry or repository using fingerprints;
	--state sex offender registry or repository check;
	--state-based child abuse and neglect registry and database.

All four components are required in order for the milestone to be considered met.

Components	New (Prospective) Staff	Existing Staff
1. Criminal registry or repository using fingerprints in the current state of residency	Milestone/Prerequisite for Waiver	Possible Time Limited Waiver for current (existing) staff
2. Sex offender registry or repository check in the current state of residency	Milestone/Prerequisite for Waiver	Possible Time Limited Waiver for current (existing) staff
3. Child abuse and neglect registry and database check in the current state of residency	Milestone/Prerequisite for Waiver	Possible Time Limited Waiver for current (existing) staff
4. FBI fingerprint check	Milestone/Prerequisite for Waiver	Possible Time Limited Waiver for current (existing) staff
5. National Crime Information Center (NCIC) National Sex Offender Registry (NSOR)	Possible Time Limited Waiver for: --Establishing requirements and procedures and/or --Conducting checks on all new (prospective) staff and/or --Conducting checks on current (existing) staff	
6. Criminal registry or repository in any	Possible Time Limited Waiver for:	

other state where the individual has resided in the past 5 years, with the use of fingerprints being optional	--Establishing requirements and procedures and/or --Conducting checks on all new (prospective) staff and/or --Conducting checks on current (existing) staff
7. Sex offender registry or repository in any other state where the individual has resided in the past 5 years	Possible Time Limited Waiver for: --Establishing requirements and procedures and/or --Conducting checks on all new (prospective) staff and/or --Conducting checks on current (existing) staff
8. Child abuse and neglect registry and database in any other state where the individual has resided in the past 5 years	Possible Time Limited Waiver for: --Establishing requirements and procedures and/or --Conducting checks on all new (prospective) staff and/or --Conducting checks on current (existing) staff

Use the questions below to describe the status of the requirements, policies and procedures for background check requirements. These descriptions must provide sufficient information to demonstrate how the milestone prerequisites are being met and the status of the other components that are not part of the milestone. Lead Agencies have the opportunity to submit a waiver request in Appendix A: Background Check Waiver Request Form, for components not included in the milestones. Approval of these waiver requests will be subject to verification that the milestone components have been met as part of the CCDF Plan review and approval process.

In-state Background Check Requirements

5.4.1 In-State Criminal Registry or Repository Checks with Fingerprints Requirements (98.43(b)(3)(i)).

Note: A search of a general public facing judicial website does not satisfy this requirement. This check is required in addition to the national FBI criminal history check (5.4.4 below) to mitigate any gaps that may exist between the two sources.

Effective Date: 10/01/2018

a) Milestone #1 Prerequisite for New (Prospective) Child Care Staff: Describe the requirements, policies and procedures for the search of the in-state criminal registry or repository, with the use of fingerprints required in the state where the staff member resides.

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) requires a full fingerprint based national criminal history record background check before the provider, director, staff, household members, subsitutes, and volunteers assumber responsibility for the direct care of children, work in the facility or move into the Family Child Care Home or Family Child Care Center. In addition, the Wyoming Rules for Child Care Purchase of Service (Child Care Subsidy rules) requires a national criminal history check (fingerprint based) initially and every five (5) years for any one 18 years or older in the household or child care center (all legal exempt centers, providers, staff and household members). The Wyoming Division of Criminal Investigation conducts the fingerprint based national criminal history background checks for the Department. The fingerprint based national criminal history background check includes a Wyoming Criminal Registry check, a FBI criminal history check, and a NCIC National Sex Offender Registry check.

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center: Chapter 4, Section 3(a)(iv)

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Wyoming Rules for Child Care Purchase of Service (Child Care Subsidy rules) requires a national criminal history check (fingerprint based) initially and every five (5) years for any one 18 years or older in the household or child care center (all legal exempt centers, providers, staff and household members). The Wyoming Division of Criminal Investigation conducts the fingerprint based national criminal history background checks for the Department. The fingerprint based national criminal history background check includes a Wyoming Criminal Registry check, a FBI criminal history check, and a NCIC National Sex Offender Registry check.

The Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(xi)

b) Has the search of the in-state criminal registry or repository, with the use of fingerprints, been conducted for all current (existing) child care staff?

☑ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

NONE

☐ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the search of the state criminal registry or repository, using fingerprints for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

5.4.2 In-State Sex Offender Registry Requirements (98.43(b)(3)(B)(ii))..

Note: This check must be completed in addition to the national NCIC sex offender registry check (5.4.5 below) to mitigate any gaps that may exist between the two sources. Use of fingerprints is optional to conduct this check.

Effective Date: 09-30-2019

a) Milestone #2 Prerequisite for New (Prospective) Child Care Staff: Describe the requirements, policies and procedures for the search of the in-state sex offender registry.

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Department has implemented conducting in-state name based sex offender registry checks on all new providers, directors, staff, household members, substitutes and volunteersbefore the provider, director, their staff, household member, substitute or volunteer assume responsibility for the direct care of children, work in the facility or move

in the the Family Child Care Home or Family Child Care Center. The Wyoming Sex Offender Registry is a public website which does not require authorization from the person being checked. As such, the Department has been advised Wyoming Sex Offender Registry checks can be conducted.

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Department has implemented conducting in-state name based sex offender registry checks on all new license exempt providers, directors, staff, household members, before the provider, director, their staff, household members assume responsibility for the direct care of children, work in the facility, home or move into the household. The Wyoming Sex Offender Registry is a public website which does not require authorization from the person being checked. As such, the Department has been advised Wyoming Sex Offender Registry checks can be conducted.

b) Has the search of the in-state sex offender registry been conducted for all current (existing) child care staff?

☑ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

The Department has implemented conducting in-state name based sex offender registry checks on all existing license exempt providers, directors, staff, household members, before the provider, director, their staff, household members assume responsibility for the direct care of children, work in the facility, home or move into the household. The Wyoming Sex Offender Registry is a public website which does not require authorization from the person being checked. As such, the Department has been advised Wyoming Sex Offender Registry checks can be conducted.

☐ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the search of the state criminal registry or repository, using fingerprints for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)
-- Key challenges to fully implementing this requirements
-- Strategies used to address these challenges
Describe:

5.4.3 In-State Child Abuse and Neglect Registry Requirements (98.43(b)(3)(B)(iii)).

Note: This is a name-based search.

Effective Date: 10/01/2018

a) Milestone #3 Prerequisite for New (Prospective) Child Care Staff: Describe the requirements, policies and procedures for the search of the in-state child abuse and neglect registry.

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) requires an in-state name based child abuse/neglect Central Registry Check, which does not reveal any disqualifying information, before the provider, director, staff, household members, subsitutes, and volunteers assumber responsibility for the direct care of children, work in the facility or move into the Family Child Care Home or Family Child Care Center. In addition, the Rules require the in-state name based child abuse/neglect Central Registry Check be completed annually. The Central Registry is Wyoming's Child Abuse and Neglect registry.

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center: Chapter 4, Section 3(a)(iii)

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Wyoming Rules for Child Care Purchase of Service (Child Care Subsidy rules) requires an in-state name based child abuse/neglect Central Registry Check initially and annually for each adult household member for all license-exempt providers, which does not reveal any disqualifying information. The Central Registry is Wyoming's Child Abuse and Neglect registry.

The Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(xi)

b) Has the search of the in-state child abuse and neglect registry been conducted for all current (existing) child care staff?

☑ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

NONE

☐ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the search of the state child abuse and neglect registry for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

National Background Check Requirements

5.4.4 National FBI Criminal Fingerprint Search Requirements (98.43(b)(1)).

Note: The in-state (5.4.1 above) and the inter-state (5.4.6 below) criminal history check must be completed in addition to the FBI fingerprint check because there could be state crimes that do not appear in the national repository. Also note, that an FBI fingerprint check satisfies the requirement to perform an interstate check of another State's criminal history records repository if the responding state (where the child care staff member has resided within the past five years) participates in the National Fingerprint File program (CCDF-ACF-PIQ-2017-01).

Effective Date: 10/01/2018

a) Milestone #4 Prerequisite for New (Prospective) Child Care Staff. Describe the requirements, policies and procedures for the search of the National FBI fingerprint check.

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) requires a full fingerprint based national criminal history record background check, initially and every five (5) years, before the provider, director, staff, household members, subsitutes, and volunteers assumber responsibility for the direct care of children, work in the facility or move into the Family Child Care Home or Family Child Care Center. In addition, the Wyoming Rules for Child Care Purchase of Service (Child Care Subsidy rules) requires a national criminal history check (fingerprint based) initially and every five (5) years for any one 18 years or older in the household. The Wyoming Division of Criminal Investigation conducts the fingerprint based national criminal history background checks for the Department. The fingerprint based national criminal history background check includes a FBI criminal history check.

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 3(a)(iv)

The Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(xi)

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Wyoming Rules for Child Care Purchase of Service (Child Care Subsidy rules) requires a national criminal history check (fingerprint based) initially and every five (5) years for any one 18 years or older in the household or child care center (all license exempt providers, staff, and household members). The Wyoming Division of Criminal Investigation conducts the fingerprint based national criminal history background checks for the Department. The fingerprint based national criminal history background check includes a FBI criminal history check.

The Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(xi)

b) For all current (existing) child care staff, has the FBI criminal fingerprint check been conducted?

☑ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

NONE

☐ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the FBI fingerprint check for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

National Background Check Requirements

5.4.5 National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) Search Requirements (98.43(b)(2)).

Note: This is a name-based search. Searching general public facing sex offender registries does not satisfy this requirement. This national check must be required in addition to the in-state (5.4.2 above) or inter-state (5.4.7 below) sex offender registry check requirements. This check must be performed by law enforcement.

Effective Date: 10/01/2018

a) Has the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) check been put in place for all new (prospective) child care staff

☑ Yes. If yes,

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) requires a full fingerprint based national criminal history record background check before the provider, director, staff, household members, subsitutes, and volunteers assumber responsibility for the direct care of children, work in the facility or move into the Family Child Care Home or Family Child Care Center. In addition, the Wyoming Rules for Child Care Purchase of Service requires a national criminal history check (fingerprint based) initially and every five (5) years for any one 18 years or older in the household. The Wyoming Division of Criminal Investigation conducts the fingerprint based national criminal history background checks for the Department. The national criminal history background check conducted by the Wyoming Division of Criminal Investigation includes a name based NCIC National Sex Offender Registry check .

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC): Chapter 4, Section 3(a)(iv)

The Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(xi)

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Wyoming Rules for Child Care Purchase of Service requires a national criminal history check (fingerprint based) initially and every five (5) years for any one 18 years or older in the household or child care center (all license exempt providers, staff or household members). The Wyoming Division of Criminal Investigation conducts the fingerprint based national criminal history background checks for the Department. The fingerprint based national criminal history background check conducted by the Wyoming Division of Criminal Investigation includes a name based NCIC National Sex Offender Registry check.

The Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(xi)

☐ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) for new (prospective) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

b) Has the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) check been put in place for all current (existing) child care staff?

☑ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

NONE

☐ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) check for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

Inter-state Background Check Requirements

Checking a potential employee's history in any state other than that in which the provider's services are provided qualifies as an inter-state check, per the definition of required criminal background checks in 98.43(b)(3). For example, an inter-state check would include situations when child care staff members work in one state and live in another state. The statute and regulations require background checks in the state where the staff member resides and each state where the staff member resided during the previous 5 years. Background checks in the state where the staff member is employed may be advisable, but are not strictly required.

5.4.6 Interstate Criminal Registry or Repository Check Requirement (including in any other state where the individual has resided in the past 5 years). (98.43 (b)(3)(i)).

Note: It is optional to use a fingerprint to conduct this check. Searching a general public facing judicial website does not satisfy this requirement. This check must be completed in addition to the national FBI history check (5.4.4 above) to mitigate any gaps that may exist between the two sources (unless the responding state participates in the National Fingerprint File program).

Effective Date: 12-31-2020

a) Has the interstate criminal registry or repository check been put in place for all new (prospective) child care staff?

☐ Yes. If yes,

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the the interstate criminal registry or repository check for new (prospective) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

The Department has been working to define a process to complete interstate criminal registry or respository checks: internal meetings to determine capacity and fiscal impact; external consultation with the Wyoming Division of Criminal Investigation to determine capacity to facilitate interstate criminal registry or respository checks; and participated in technical assistance, which included background check webinar series and peer-to-peer learning opportunities, to identify processes that may be replicated from other states. As a result of the technical assistance opportunities, several questions have been submitted to the ACF-OCC Region 8 staff and we are awaiting response. The ACF-OCC reponse will directly impact the planning, development and implementation of this requirement. TCurrently the Wyoming Division of Criminal Investigation (DCI) is part of the Western Identification Network (WIN) with several other states. As part of DCI's comprehensive background check, the criminal registries of the WIN participating states are checked.

The Department's waiver request for the CCDF Plan for 2019 - 2021 has been approved. As a result of the COVID-19 pandemic, our ability to thoroughly develop an implementation plan for this requirement has been hampered - it has been very difficult to work internally with staff not available in the office as well as with other states who have been seriously impacted in regards to capacity. The Department continues to work to define a process to complete interstate criminal registry or repository checks and has been identifying state contacts for submission of requests as well as the internal process for receipt, submission, tracking and distribution of results. The Department's waiver approval is temporary until states have stabilized and returned to business as usual after the COVID-19 pandemic.

b) Has the interstate criminal registry or repository check been put in place for all current (existing) child care staff?

☐ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

☑ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the interstate criminal registry or repository check for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

The Department has been working to define a process to complete interstate criminal registry or respository checks: internal meetings to determine capacity and fiscal impact; external consultation with the Wyoming Division of Criminal Investigation (DCI) to determine capacity to facilitate interstate criminal registry or respository checks; and participated in technical assistance, which included background check webinar series

and peer-to-peer learning opportunities, to identify processes that may be replicated from other states. As a result of the technical assistance opportunities, several questions have been submitted to the ACF-OCC Region 8 staff and we are awaiting response. The ACF-OCC reponse will directly impact the planning, development and implementation of this requirement. Currently the Wyoming DCI is part of the Western Identification Network (WIN) with several other states. As part of DCI's comprehensive background check, the criminal registries of the WIN participating states are checked.

The Department's waiver request for the CCDF Plan for 2019 - 2021 has been approved. As a result of the COVID-19 pandemic, our ability to thoroughly develop an implementation plan for this requirement has been hampered - it has been very difficult to work internally with staff not available in the office as well as with other states who have been seriously impacted in regards to capacity. The Department continues to work to define a process to complete interstate criminal registry or repository checks and has been identifying state contacts for submission of requests as well as the internal process for receipt, submission, tracking and distribution of results. The Department's waiver approval is temporary until states have stabilized and returned to business as usual after the COVID-19 pandemic.

5.4.7 Interstate Sex Offender Registry or Repository Check Requirements (including in any state where the individual has resided in the past 5 years). (98.43 (b)(3)(ii)).

Note: It is optional to use a fingerprint to conduct this check. This check must be completed in addition to the National Crime Information Center (NCIC) National Sex Offender Registry (NSOR) (5.4.5 above) to mitigate any gaps that may exist between the two sources.

Effective Date: 09-30-2019

a) Has the interstate sex offender registry or repository check been put in place for all new (prospective) child care staff?

☑ Yes. If yes,

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Department is currently completing interstate (any state where the individual has resided in the past five (5) years) name based sex offender registry checks for all new and existing staff. The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) requires a child abuse/neglect Central Registry Check annually. As providers apply for renewal of their child care license, they submit Central Registry Checks for all staff. The Department's process then involves child care program staff, checking interstate sex offender registry checks for all staff based on the information on the Central Registry Check form, and providing the results to the provider for inclusion in the staff record. The Department implemented this process for new (prospective child care staff) in May 2018.

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Department is currently completing interstate (any sate where the individual has resided in the past five (5) years) name based sex offender registry checks for all new license exempt providers, staff and household members. The Wyoming Rules for Child Care purchase of Service requires a child abuse/neglect Central Registry Check annually. As providers apply to receive CCDF, they submit Central Registry Checks for all staff. The Department's process then involves child care program staff, checking interstate sex offender registry checks for all staff based on the information on the Central Registry Check form, and providing the results to the provider for inclusion in the staff record. The Department implemented this process for new providers, staff and household members in May 2018.

☐ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the interstate sex offender registry or repository check for new (prospective) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

b) Has the interstate sex offender registry or repository check been put in place for all current (existing) child care staff?

☑ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

The Department has completed interstate (any sate where the individual has resided in the past five (5) years) name based sex offender registry checks for all new license exempt providers, providers, directors, staff and household members. The Department's process involves child care program staff, checking interstate sex offender registry checks for all staff based on the information on the Central Registry Check form, and providing the results to the provider for inclusion in the staff record.

☐ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the interstate sex offender registry or repository check for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

5.4.8 Interstate Child Abuse and Neglect Check Registry Requirements (98.43 (b)(3)(iii)).

Note: This is a name-based search.

Effective Date: 10/01/2018

a) Has the interstate child abuse and neglect check been put in place for all new (prospective) child care staff?

☑ Yes. If yes,

i. Describe how these requirements, policies and procedures apply to all licensed, regulated, or registered child care providers, in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) requires a name based child abuse/neglect Central Registry Check, which does not reveal any disqualifying information, before the provider, director, staff, household members, subsitutes, and volunteers assumber responsibility for the direct care of children, work in the facility or move into the Family Child Care Home or Family Child Care Center.

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center: Chapter 4, Section 3(a)(iii)

ii. Describe how these requirements, policies and procedures apply to all other providers eligible to deliver CCDF services (e.g., license-exempt CCDF eligible providers), in accordance with 98.43(a)(1)(i) and 98.16(o). Describe and provide citations

The Wyoming Rules for Child Care Purchase of Service requires a name based child abuse/neglect background check initially and annually for all license-exempt providers (including child care centers) and each adult household member.

The Wyoming Rules for Child Care Purchase of Service: Chapter 1, Section 14(a)(xi)

☐ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the interstate child abuse and neglect check for new (prospective) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

b) Has the interstate child abuse and neglect check been put in place for all current (existing) child care staff?

☑ Yes

Describe, if applicable, any differences in the process for existing staff than what was described for new staff and provide citations.

NONE

☐ No. (Waiver request allowed. See Appendix A). Describe the status of conducting the interstate child abuse and neglect check for current (existing) child care staff including:

-- Efforts to date to complete the requirement for all existing child care staff in licensed, regulated or registered programs

-- Efforts to date to complete the requirement for all existing child care staff in other programs eligible to receive CCDF services (e.g. license-exempt CCDF eligible providers)

-- Key challenges to fully implementing this requirements

-- Strategies used to address these challenges

Describe:

Provisional Employment

The CCDF final rule states a child care provider must submit a request to the appropriate state/territory agency for a criminal background check for each child care staff member, including prospective staff members, prior to the date an individual becomes a child care staff member and at least once every 5 years thereafter (98.43(d)(1) and (2). A prospective child care staff member may not begin work until one of the following results have been returned as satisfactory: either the FBI fingerprint check or the search of the state/territory criminal registry or repository using fingerprints in the state/territory where the staff member resides. The child care staff member must be supervised at all times pending completion of all the background check components (98.43(d)(4)).

Note: In recognition of the concerns and feedback OCC received related to the provisional hire provision of the CCDF final rule, OCC will allow states and territories to request time-

limited waiver extensions for the provisional hire provision. State/territories may submit a waiver request to allow additional time to meet the requirements related to provisional hires (see Appendix A). A state/territory may receive a waiver from this requirement only when:

1. the state requires the provider to submit the background check requests before the staff person begins working; and
2. the staff member, pending the results of the elements of the background check, is supervised at all times by an individual who has completed the background check.

5.4.9 Describe the state/territory requirements related to prospective child care staff members using the checkboxes below. (Waiver request allowed. See Appendix A). Check all that apply.

Effective Date: 10/01/2018

☐ The state/territory allows prospective staff members to begin work on a provisional basis (if supervised at all times) after completing and receiving satisfactory results on either the FBI fingerprint check or a fingerprint check of the state/territory criminal registry or repository in the state where the child care staff member resides.

Describe and include a citation:

☑ The state/territory allows prospective staff members to begin work on a provisional basis (if supervised at all times) after the request has been submitted, but before receiving satisfactory results on either the FBI fingerprint check or a fingerprint check of the state/territory criminal registry or repository in the state where the child care staff member resides. Note: A waiver request is allowed for this provision (see Appendix A).

Describe and include a citation:

The Department considers requests for a Variance in circumstances where a provider needs new staff to begin work immedicately, only when the provider has submitted the request for a FBI criminal history record check AND have received the results of the prospective staff's child abuse and/or neglect Central Registry Check, which does not reveal any disqualifying information. The Variance requires the new staff is supervised at all times by a qualified staff and is time limited (generally 30 days).

The Wyoming Rules for Family Child Care Homes (FCCH), Family Child Care Centers (FCCC) and Child Care Centers: Chapter 2, Section 7(a)

☐ Other.

Describe:

5.4.10 The state/territory must conduct the background checks as quickly as possible and shall not exceed 45 days after the child care provider submitted the request. The state/territory shall provide the results of the background check in a statement that indicates whether the staff member is eligible or ineligible, without revealing specific disqualifying information. If the staff member is ineligible, the state/territory will provide information about each disqualifying crime to the staff member.

Effective Date: 10/01/2018

Describe the requirements, policies, and procedures in place to respond as expeditiously as possible to other states', territories', and tribes' requests for background check results to accommodate the 45-day timeframe, including any agencies/entities responsible for responding to requests from other states (98.43(a)(1)(iii)).

The Department has worked with Wyoming Division of Criminal Investigation (DCI) to ensure they understand the 45-day timeframe requirement. Th Wyoming DCI has an internal policy to conduct checks expeditiously and generally have checks complete in 30-45 days. In addition, the Department's Central Registry requires all requests for child abuse and/or neglect checks are completed in 10 days.

5.4.11 Child care staff members cannot be employed by a child care provider receiving CCDF subsidy funds if they refuse a background check, make materially false statements in connection with the background check, or are registered or required to be registered on the state or National Sex Offender Registry. Potential staff members also cannot be employed by a provider receiving CCDF funds if they have been convicted of: a felony consisting of murder, child abuse or neglect, crimes against children, spousal abuse, crimes involving rape or sexual assault, kidnapping, arson, physical assault or battery, or - subject to an individual review (at the state/territory's option)- a drug-related offense committed during the preceding 5 years; a violent misdemeanor committed as an adult against a child, including the following crimes - child abuse, child

endangerment, or sexual assault; or a misdemeanor involving child pornography (98.43(c)(1)).

Note: The Lead Agency may not publicly release the results of individual background checks. It may release aggregated data by crime as long as the data do not include personally identifiable information (98.43(e)(2)(iii)).

Effective Date: 10/01/2018

Does the state/territory disqualify child care staff members based on their conviction for other crimes not specifically listed in 98.43(c)(i)?

- [x] No
- [ ] Yes.

Describe other disqualifying crimes and provide citation:

5.4.12 The state/territory has a process for a child care staff member to appeal the the results of his or her background check to challenge the accuracy or completeness of the criminal background report, as detailed in 98.43(e)(3).

Effective Date: 10/01/2018

Describe how the Lead Agency ensures the privacy of background checks and provides opportunities for applicants to appeal the results of background checks. In addition, describe whether the state/territory has a review process for individuals disqualified due to a felony drug offense to determine if that individual is still eligible for employment (98.43(e)(2-4)).

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) provides that prospective employees, disqualified staff, or household members the opportunity to request a review of the accuracy and completeness of the criminal history to the Department within 10 days of the receipt of the disqualification notice. The Department has an appointed panel who shall review the evidence of the inaccuracy or incompleteness of the record and render a decision within 20 days of the receipt of the review request and verification. In addition, the prospective employee, disqualified staff, or household members with a felony drug conviction or conviction of misdemeanor physical assault, batter, or domestic violence

within the last five (5) years, may rquest a review, withi in 10 days of receipt of the disqualification notice, of whther the individual has been rehabilitated. The Department has an appointed panel who shall review the evidence of rehabilitation, determine if rehabilitation has occurred and provide notice to the provider or director.

5.4.13 The state/territory may not charge fees that exceed the actual costs of processing applications and administering a criminal background check (98.43(f)).

Effective Date: 10/01/2018

Describe how the state/territory ensures that fees charged for completing the background checks do not exceed the actual cost of processing and administration, regardless of whether they are conducted by the state/territory or a third-party vendor or contractor. Lead Agencies can report that no fees are charged if applicable (98.43(f)).

The Wyoming child abuse and/or neglect Central Registry check for licensed and licensed-exempt providers and other required individuals is free. The national FBI fingerprint background check fee is determined the Wyoming Division of Criminal Investigation and FBI, all fees are within the appropriate feed guidelines established by those agencies. The Wyoming Division of Criminal Investigation enforces the guidelines for feed charged by law enforcement agencies completing the fingerprint cards. This fee does not exceed the actual cost of conduction the background check.

5.4.14 Federal requirements do not address background check requirements for relative providers who receive CCDF; therefore, states have the flexibility to decide which background check requirements relative providers must meet, as defined by CCDF in 98.2 under eligible child care provider.

Note: This exception only applies if the individual cares only for relative children. Does the state/territory exempt relatives from background checks?

Effective Date: 10/01/2018

- [x] No, relatives are not exempt from background check requirements.
- [ ] Yes, relatives are exempt from all background check requirements.
- [ ] Yes, relatives are exempt from some background check requirements. If the state/territory exempts relatives from some background check requirements, describe which background check requirements do not apply to relative providers.

6 Recruit and Retain a Qualified and Effective Child Care Workforce

This section covers the state or territory framework for training, professional development, and post-secondary education (98.44(a)); provides a description of strategies used to strengthen the business practices of child care providers (98.16(z)); and addresses early learning and developmental guidelines.

States and territories are required to describe their framework for training, professional development, and post-secondary education for caregivers, teachers, and directors, including those working in school-age care (98.44(a)). This framework is part of a broader systematic approach building on health and safety training (as described in section 5) within a state/territory. States and territories must incorporate their knowledge and application of health and safety standards, early learning guidelines, responses to challenging behavior, and the engagement of families. States and territories are required to establish a progression of professional development opportunities to improve the knowledge and skills of CCDF providers (658E(c)(2)(G)). To the extent practicable, professional development should be appropriate to work with a population of children of different ages, English-language learners, children with disabilities, and Native Americans (98.44(b)(2)(iv)). Training and professional development is one of the options that states and territories have for investing their CCDF quality funds (658G(b)(1)).

6.1 Professional Development Framework

6.1.1 Each state or territory must describe their professional development framework for training, professional development, and post-secondary education for caregivers, teachers and directors, which is developed in consultation with the State Advisory Council on Early Childhood Education and Care or similar coordinating body. The framework should include these components: (1) professional standards and

competencies, (2) career pathways, (3) advisory structures, (4) articulation, (5) workforce information, and (6) financing (98.44(a)(3)). Flexibility is provided on the strategies, breadth, and depth with which states and territories will develop and implement their framework.

Effective Date: 10/01/2018

a) Describe how the state/territory's framework for training and professional development addresses the following required elements:

-- State/territory professional standards and competencies. Describe:

The Department's Rules for Certification of Family Child Care Home(FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC) requires professionals to take specific training for pre-service orientation and ongoing training. Federal and state requirements determine ongoing training. Providers are allowed to determine their own training plan. Providers, directors, and staff invest time and funding into completing training requirements which helps stabilize the workforce and provides guidance to enhance quality.

-- Career pathways. Describe:

Wyoming has a revised Career Ladder that encompasses changes to professional development. The Career Ladder has various levels to help providers move from one level to the next. As providers move up the Career Ladder they acquire more flexibility and discretion in the ways they can receive training credit. The Department and early childhood partners anticipate that flexibility will incentivize movement up the Career Ladder. Wyoming has communicated this revised Career Ladder with both providers and families alike. The Career Ladder allows providers on higher levels to acquire training credit beyond the face-to-face, online or book trainings. Credit can also be obtained by providing documentation of implementing ideas into their program, writing research articles and advocacy work.

-- Advisory structure. Describe:

The Department coordinates with the Wyoming Early Childhood State Advisory Council in the development, revision, and implementation of the professional development system or framework.

-- Articulation. Describe:

The University of Wyoming and the community colleges have degree programs in place and credit are shared between institutions. In addition, they offer some professional development outside of getting a college credit. Sheridan College, Casper College host professional development workshops. There is ongoing work to identify how college credit might be offered for the professional development workshops hosted by community colleges and other approved STARS trainers.

-- Workforce information. Describe:

Wyoming has 3 integrated systems in place (STARS training registry, Child Care case management and CCR&R) which collect workforce information on providers, directors and staff. Over the course of the next 3 years, the Department in Collaboration with the Wyoming Early Childhood State Advisory Council will begin to analyze the data available through the 3 integrated systems (STARS training registry, Child Care Licensing case management, and CCR&R) to identify gaps in professional development accessibility, affordability and quality.

-- Financing. Describe:

WY Quality Counts! provides scholarships and grants to providers to offset the cost of training and/or education travel.

b) The following are optional elements, or elements that should be implemented to the extent practicable, in the training and professional development framework.

☐ Continuing education unit trainings and credit-bearing professional development to the extent practicable

Describe:

☐ Engagement of training and professional development providers, including higher education, in aligning training and educational opportunities with the state/territory's framework

Describe:

☐ Other

Describe:

6.1.2 Describe how the state/territory developed its professional development framework in consultation with the State Advisory Council on Early Childhood Education and Care (if applicable) or similar coordinating body if there is no SAC that addresses the professional development, training, and education of child care providers and staff.

The Department coordinates with the Wyoming Early Childhood State Advisory Council in the development, revision, and implementation of the professional development system or framework. The Wyoming Early Childhood State Advisory Council members provide input on the newly revised Career Ladder. Additionally, the Wyoming Early Childhood State Advisory Council in collaboration with the Department, University of Wyoming, WY Kids First, other State agencies, child care providers, and public/private entities designed the early learning foundations and guidelines. These guidelines and foundations are now embedded into the pre-service orientation training.

Effective Date: 10/01/2018

6.1.3 Describe how the framework improves the quality, diversity, stability, and retention of caregivers, teachers, and directors (98.44(a)(7)).

The Department in collaboration with the Wyoming Early Childhood State Advisory Council, Wyoming STARS training registry and the University of Wyoming, developed the current professional development Career Ladder which identifies a progression of improvement of knowledge and skills of the child care workforce. The Career Ladder includes credentials and post-secondary degrees. The Career Ladder, coupled with Child Care Licensing's professional development requirements, helps build a responsive, well-qualified workforce in child care settings. Over the course of the next 3 years, the Department in Collaboration with the Wyoming Early Childhood State Advisory Council will begin to analyze the data available through the 3 integrated systems (STARS training registry, Child Care Licensing case management, and CCR&R) to identify gaps in professional development accessibility, affordability and quality.

6.2 Training and Professional Development Requirements

The Lead Agency must describe how its established health and safety requirements for pre-service or orientation training and ongoing professional development requirements--as described in Section 5 for caregivers, teachers, and directors in CCDF programs--align, to the extent practicable, with the state/territory professional development framework. These requirements must be designed to enable child care providers to promote the social, emotional, physical, and cognitive development of children and to improve the knowledge and skills of the child care workforce. Such requirements shall be applicable to child care providers caring for children receiving CCDF funds across the entire age span, from birth through age 12 (658E(c)(2)(G)). Ongoing training and professional development should be accessible and appropriate to the setting and age of the children served (98.44(b)(2)).

6.2.1 Describe how the state/territory incorporates the knowledge and application of its early learning and developmental guidelines (where applicable); its health and safety standards (as described in section 5); and social-emotional/behavioral and early childhood mental health intervention models, which can include positive behavior intervention and support models (as described in section 2) in the training and professional development framework (98.44(b)).

The Wyoming Rules for Certification of a Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) currently requires a six (6) hour pre-service orientation for all new providers, directors and staff. This training meets the health and safety requirements as required by CCDF Re-authorization rules. Staff shall also receive staff orientation by the facility which shall include policies, rules, and procedures. In addition, Pediatric First Aid and CPR is required to be current. Any staff person engaged in licensed child care 24 hours or more per month, providing direct care for children, and counted in staff:child ratios shall complete a minimum of 16 training credits annually, which shall include eight (8) credits of training in Early Learning Guidelines and Early Learning Foundations (in the first licensing year) and 8 credits training in the area of early learning, early childhood, and/or child development. Licensed providers are required to complete 16

hours of on-going training annually, the training must include the federally required health and safety topics and social-emotional development of children.

Effective Date: 10/01/2018

6.2.2 Describe how the state/territory's training and professional development are accessible to providers supported through Indian tribes or tribal organizations receiving CCDF funds (as applicable) (98.44(b)(2)(vi)).

All trainings that are state approved are placed on a training calendar accessible to all providers across the state, including providers from both Tribes. Surveys are conducted to analyze the training needs of providers across the state, including providers from both Tribes. Once specific trainings are identified to meet the needs, the Department works with STARS and other stakeholders to target trainings in areas across the state. Additionally, there are trainings offered around the state on a regular basis to meet required training subjects provided by state and local entities. There are approved web based training available on a regular basis. The training and professional development requirements are applicable to all providers across the state. The Department works with STARS and other stakeholders to identify specialized training opportunities addressing children with disabilities, Native Americans, and English language learners. In addition, the Department and other stakeholders (STARS, Parents As Teachers, Uplift, University of Wyoming, PIC/PEN, etc.) provide specialized training focusing on children of different age groups, including infant/toddler training. Training opportunities include face-to-face training as well as online training and books to ensure that the rural areas of Wyoming are covered.

Effective Date: 10/01/2018

6.2.3 States/territories are required to facilitate participation of child care providers with limited English proficiency and disabilities in the subsidy system (98.16 (dd)). Describe how the state/territory will recruit and facilitate the participation of providers:

a) with limited English proficiency

The Department staff works with translators, translator hotline, and the Latino Resource Center to assist with the recruitment of providers.

b) who have disabilities

The Department staff works with translators, translator hotline, and the Latino Resource Center to assist with the recruitment of providers.

6.2.4 Describe how the state/territory's training and professional development requirements are appropriate, to the extent practicable, for child care providers who care for children receiving child care subsidies, including children of different age groups (such as specialized credentials for providers who care for infants and/or school-age children); English-language learners; children with developmental delays and disabilities; and Native Americans, including Indians and Native Hawaiians (98.44(b)(2)(iii--iv)).

The training and professional development requirements are applicable to all providers across the state. The Department works with STARS and other stakeholders to identify specialized training opportunities addressing children with disabilities, Native Americans, and English language learners. In addition, the Department and other stakeholders (STARS, Parents As Teachers, Uplift, University of Wyoming, PIC/PEN, etc.) provide specialized training focusing on children of different age groups, including infant/toddler training. Training opportunities include face-to-face training as well as online training and books to ensure that the rural areas of Wyoming are covered.

Effective Date: 10/01/2018

6.2.5 The Lead Agency must provide training and technical assistance to providers and appropriate Lead Agency (or designated entity) staff on identifying and serving children and families experiencing homelessness (658E(c)(3)(B)(i)).

Effective Date: 10/01/2018

a) Describe the state/territory's training and TA efforts for providers in identifying and serving homeless children and their families (relates to question 3.2.2).

The Department, in collaboration with the Department of Education, McKinney-Vento Coordinator, provides statewide training and technical assistance to providers. The training is delivered at statewide conferences, provider meetings, provider and parent newsletters. The McKinney-Vento Coordinator provides technical assistance to individual providers and the Department on an as-needed basis.

b) Describe the state/territory's training and TA efforts for Lead Agency (or designated entity) staff in identifying and serving children and their families experiencing homelessness (connects to question 3.2.2).

The Department, in collaboration with the Department of Education, McKinney-Vento Coordinator, provides statewide training and technical assistance to Department staff. The training is delivered at statewide conferences, staff meetings. The McKinney-Vento Coordinator provides technical assistance the Department on an as-needed basis.

6.2.6 States and territories are required to describe effective internal controls that are in place to ensure program integrity and accountability (98.68(a)). Describe how the state/territory ensures that all providers for children receiving CCDF funds are informed and trained regarding CCDF requirements and integrity (98.68(a)(3)). Check all that apply

Effective Date: 10/01/2018

- ☐ Issue policy change notices
- ☐ Issue new policy manual
- ☑ Staff training

☑ Orientations

☑ Onsite training

☐ Online training

☑ Regular check-ins to monitor the implementation of CCDF policies

Describe the type of check-ins, including the frequency.

Following issuance of a license, the child care licensers conduct one (1) unannounced and one (1) announced visit per year. For license-exempt provider (excluding relatives), verifiers conduct an annual verification visit related to health and safety requirements.

☑ Other

Describe:

The Wyoming Rules for Certification of Family Child Care Homes (FCCH), Family Child Care Centers (FCCH) or Child Care Centers (CCC) incorporate the CCDF requirements for all licensed providers. Child care licensers conduct one (1) unannounced and one (1) announced visit each year to ensure compliance with all the licensing rules. Child care licensers also provide technical assistance and training to potential and new providers regarding the CCDF requirements and their incorporation into the licensing rules. The Wyoming Rules for Child Care Purchase of Service include CCDF requirements related to eligibility and health and safety. In addition, the Provider Registration Form (203b) has information for providers related to the CCDF requirements. Licensed-exempt providers have an annual in-home verification visit to check compliance with the CCDF health and safety requirements which are incorporated in the Rules for Child Care Purchase of Service. The Child Care Eligibility workers determine compliance with the requirements related to eligibility upon determination and renewal of eligibility.

6.2.7 Lead Agencies must develop and implement strategies to strengthen the business practices of child care providers to expand the supply and to improve the quality of child care services (98.16 (z)). Describe the state/territory's strategies to strengthen provider's business practices, which can include training and/or TA efforts.

Effective Date: 10/01/2018

a) Describe the strategies that the state/territory is developing and implementing for training and TA.

The Department collaborates with the Wyoming Department of Workforce Services and other public/private entities to provide business practice training to child care providers. The business practice training includes, but is not limited to, the following topics: record keeping; tax filing; budgeting for business; writing a business plan; retention of staff; customer service; grant writing; and marketing.

b) Check the topics addressed in the state/territory's strategies. Check all that apply.

- [x] Fiscal management
- [x] Budgeting
- [x] Recordkeeping
- [x] Hiring, developing, and retaining qualified staff
- [ ] Risk management
- [ ] Community relationships
- [x] Marketing and public relations
- [ ] Parent-provider communications, including who delivers the training, education, and/or technical assistance
- [ ] Other

Describe:

6.3 Early Learning and Developmental Guidelines

6.3.1 States and territories are required to develop, maintain, or implement early learning and developmental guidelines that are appropriate for children in a forward progression from birth to kindergarten entry (i.e., birth-to-three, three-to-five, birth-to-five), describing what children should know and be able to do and covering the essential domains of early childhood development. These early learning and developmental guidelines are to be used statewide and territory-wide by child care providers and in the development and implementation of training and professional development (658E(c)(2)(T)). The required essential domains for these guidelines are cognition, including language arts and mathematics; social, emotional, and physical development; and approaches toward learning (98.15(a)(9)). At the option of the state/territory, early learning and developmental guidelines for out-of-school time may be developed. Note: States and territories may use the quality set-aside, discussed in section 7, to improve on the

development or implementation of early learning and developmental guidelines.

Effective Date: 10/01/2018

a) Describe how the state/territory's early learning and developmental guidelines are research-based, developmentally appropriate, culturally and linguistically appropriate, and aligned with kindergarten entry

The Early Learning Foundations (3-5) and the Early Learning Guidelines (birth-3) were developed in previous years by the Wyoming Early Childhood Advisory Council and the Early Learning Guidelines Taskforce, which included members from the University of Wyoming and state community colleges, Wyoming Department of Education, Head Start, providers and other stakeholders. The Guidelines were developed first and subsequently the Foundations followed. The Early Learning Foundations are based on the revised Head Start child development and early learning framework, which are research-based, developmentally appropriate, culturally and liguistically appropriate and align with the Common Core curriculum. After the foundations were completed it was determined that the Guidelines needed to mimic the layout and design of the Foundations.

b) Describe how the state/territory's early learning and developmental guidelines are appropriate for all children from birth to kindergarten entry.

The Early Learning Foundations (3-5) and Early Learning Guidelines (birth-3) are research based and developmentally appropriate; within each age range, development is presented sequentially and are meant to provide a road map of what infants and toddlers are working on at a given stage and what caregivers can do to support growth or when to seek intervention if needed.

c) Verify by checking the domains included in the state/territory's early learning and developmental guidelines. Responses for "other" is optional

- [x] Cognition, including language arts and mathematics
- [x] Social development
- [x] Emotional development
- [x] Physical development
- [x] Approaches toward learning
- [ ] Other

Describe:

NA

d) Describe how the state/territory's early learning and developmental guidelines are implemented in consultation with the educational agency and the State Advisory Council or similar coordinating body.

The Early Learning Foundations (3-5) and the Early Learning Guidelines (birth-3) were developed in previous years by the Wyoming Early Childhood State Advisory Council and the Early Learning Guidelines Taskforce, which included members from the University of Wyoming and state community colleges, Wyoming Department of Education, Head Start, providers and other stakeholders.

e) Describe how the state/territory's early learning and developmental guidelines are updated and include the date first issued and/or the frequency of updates

The Early Learning Guidelines and Early Learning Foundations updates are infrequent and dependent on available resources. The Early Learning Guidelines were published in 2013 through the Governor's Early Childhood State Advisory Council replacing the original School Readiness Standards first published in 2000 through the Wyoming Department of Education; the Early Learning Foundations followed. The Early Learning Guidelines were updated in 2015 with some minor changes to the health domain and major changes to the formatting and "look and feel" to become more consistent with the Early Learning Foundations branding.

f) If applicable, discuss the state process for the adoption, implementation and continued improvement of state out-of-school time standards

NA

g) Provide the Web link to the state/territory's early learning and developmental guidelines.

http://wyqualitycounts.org/for-providers/early-learning-guidelines-and-foundations/

6.3.2 CCDF funds cannot be used to develop or implement an assessment for children that:

-- Will be the primary or sole basis to determine a child care provider ineligible to participate in

the CCDF,

-- Will be used as the primary or sole basis to provide a reward or sanction for an individual provider,

-- Will be used as the primary or sole method for assessing program effectiveness,

-- Will be used to deny children eligibility to participate in the CCDF (658E(c)(2)(T)(ii)(I); 98.15(a)(2)).

Describe how the state/territory's early learning and developmental guidelines are used.

In 2013, efforts to train on the Early Learning Guidelines and Early Learning Foundations began. In 2014, it became evident that Wyoming needed more than one (1) trainer across the State and the Early Learning Foundations and Guidelines Train the Trainer class began. Additionally, a college credit class was designed and implemented across the state (via electronic means). The Department in consultation with the Wyoming Early Childhood State Advisory Council and STARS, determined the Early Learning Guidelines and Foundations should be a required pre-service training for all licensed providers and staff. Consequently, the Department collaborated with the University of Wyoming and STARS to develop an introduction to the Early Learning Guidelines and Foundations for providers and staff. In addition, the pre-service requirement was incorporated into the Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC). Finally, the Department is working with the University of Wyoming, WY Kids First, and STARS to offer technical assistance, equip early care and education professionals to support and integrate the ELF/ELGs in their early learning environments and to encourage early learning professionals to share the ELG/ELFs with families through outreach and events.

Effective Date: 10/01/2018

7 Support Continuous Quality Improvement

Lead Agencies are required to reserve and use a portion of their Child Care and Development Fund program expenditures for activities designed to improve the quality of child care services and to increase parental options for and access to high-quality child care (98.53). The quality activities should be aligned with a statewide or territory-wide assessment of the state's or territory's need to carry out such services and care. States and territories are required to report on these quality improvement investments through CCDF in three ways:

1. In the Plan, states and territories will describe the types of activities supported by quality investments over the 3-year period (658G(b); 98.16(j)).

2. ACF will collect annual data on how much CCDF funding is spent on quality activities using the expenditure report (ACF-696). This report will be used to determine compliance with the required quality and infant and toddler spending requirements (658G(d)(1); 98.53(f)).

3. For each year of the Plan period, states and territories will submit a separate annual Quality Progress Report that will include a description of activities to be funded by quality expenditures and the measures used by the state/territory to evaluate its progress in improving the quality of child care programs and services within the state/territory (658G(d); 98.53(f)).

States and territories must fund efforts in at least one of the following 10 activities:

-- Supporting the training and professional development of the child care workforce

-- Improving on the development or implementation of early learning and developmental guidelines

-- Developing, implementing, or enhancing a tiered quality rating and improvement system for child care providers and services

-- Improving the supply and quality of child care programs and services for infants and toddlers

-- Establishing or expanding a statewide system of child care resource and referral services

-- Supporting compliance with state/territory requirements for licensing, inspection, monitoring, training, and health and safety (as described in section 5)

-- Evaluating the quality of child care programs in the state/territory, including evaluating how programs positively impact children

-- Supporting providers in the voluntary pursuit of accreditation

-- Supporting the development or adoption of high-quality program standards related to health, mental health, nutrition, physical activity, and physical development

-- Performing other activities to improve the quality of child care services, as long as outcome measures relating to improved provider preparedness, child safety, child well-being, or kindergarten entry are possible.

Throughout this Plan, states and territories will describe the types of quality improvement activities where CCDF investments are being made, including but not limited to, quality set-aside funds and will describe the measurable indicators of progress used to evaluate state/territory progress in improving the quality of child care services for each expenditure (98.53(f)) These activities can benefit infants and toddlers through school age populations.

This section covers the quality activities needs assessment and quality improvement activities and indicators of progress for each of the activities undertaken in the state or territory.

7.1 Quality Activities Needs Assessment for Child Care Services

7.1.1 Lead Agencies must invest in quality activities based on an assessment of the state/territory's needs to carry out those activities. Lead Agencies have the flexibility to design an assessment of their quality activities that best meet their needs, including how often they do the assessment. Describe your state/territory assessment process, including the frequency of assessment (658G(a)(1); 98.53(a)).

The Department has not conducted a formal assessment of the needs in the state to determine which quality activities to invest in. However, based on the CCDF Health and Safety requirements, the Department has determined that supporting compliance with state requirements for licensing, inspection, monitoring, training, and health and safety is the area of focus for investment. In addition, the Department regularly assesses information from child care licensers related to areas of non-compliance or violations to direct technical assistance and training; data from the Technical Assistance Coach; and Child Care

Resource and Referral to identify areas of focus for quality investments. . In addition, the Department utilizes CCDF discretionary funds to support the following quality activities: Supporting the training and professional development of the child care workforce; Developing, maintaining, or implementing early learning and developmental guidelines; Developing, implementing, or enhancing a tiered quality rating and improvement system; Improving the supply and quality of child care services for infants and toddlers; Facilitating compliance with state/territory requirements for inspection, monitoring, training, and health and safety standards.

Effective Date: 10/01/2018

7.1.2 Describe the findings of the assessment and if any overarching goals for quality improvement were identified.

The Department has not conducted a formal assessment of the needs in the state to determine which quality activities to invest in. However, the Department regularly assesses information from child care licensers related to areas of non-compliance or violations to direct technical assistance and training; data from the Technical Assistance Coach; and data from Child Care Resource and Referral. As an example, child care licensers experience non-compliance related to staff requirements at a high frequency. Based on that data, the Technical Assistance Coach developed training and technical assistance to address staff requirements; providing web and in person training to all licensed providers in the state. The Department also has data regarding providers experiencing some difficulty finding annual training to meet the annual training requirements. As a solution, training credits were issued for all licensed providers who participated in the staff requirements training. As a follow up to the training and technical assistance, child care licensers are reviewing all staff records at all licensed providers to ensure compliance with the Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), and Child Care Center (CCC). In addition, over the next 3 years, in collaboration with the Wyoming Early Childhood State Advisory Council, the Department will participate to develop and implement Quality Program Standards and update the Early Learning Guidelines and Early Learning Foundations.

7.2 Use of Quality Funds

7.2.1 Check the quality improvement activities in which the state/territory is investing

Effective Date: 10/01/2018

- [x] Supporting the training and professional development of the child care workforce If checked, respond to section 7.3 and indicate which funds will be used for this activity. Check all that apply.
  - [x] CCDF funds
  - [ ] Other funds

  Describe:

- [x] Developing, maintaining, or implementing early learning and developmental guidelines. If checked, respond to section 6.3 and indicate which funds will be used for this activity. Check all that apply.
  - [x] CCDF funds
  - [ ] Other funds

  Describe:

- [x] Developing, implementing, or enhancing a tiered quality rating and improvement system. If checked, respond to 7.4 and indicate which funds will be used for this activity. Check all that apply.
  - [x] CCDF funds
  - [ ] Other funds

  Describe:

- [x] Improving the supply and quality of child care services for infants and toddlers. If checked, respond to 7.5 and indicate which funds will be used for this activity. Check all that apply
  - [x] CCDF funds

☐ Other funds

Describe:

☐ Establishing or expanding a statewide system of CCR&R services, as discussed in 1.7. If checked, respond to 7.6 and indicate which funds will be used for this activity. Check all that apply.

☐ CCDF funds

☐ Other funds

Describe:

☑ Facilitating compliance with state/territory requirements for inspection, monitoring, training, and health and safety standards (as described in section 5). If checked, respond to 7.7 and indicate which funds will be used for this activity. Check all that apply.

☑ CCDF funds

☐ Other funds

Describe:

☐ Evaluating and assessing the quality and effectiveness of child care services within the state/territory. If checked, respond to 7.8 and indicate which funds will be used for this activity. Check all that apply.

☐ CCDF funds

☐ Other funds

Describe:

☐ Supporting accreditation. If checked, respond to 7.9 and indicate which funds will be used for this activity. Check all that apply.

☐ CCDF funds

☐ Other funds

Describe:

☐ Supporting state/territory or local efforts to develop high-quality program standards relating to health, mental health, nutrition, physical activity, and physical development. If checked, respond to 7.10 and indicate which funds will be used for this activity. Check all that apply.

☐ CCDF funds

☐ Other funds

Describe:

☐ Other activities determined by the state/territory to improve the quality of child care services and which measurement of outcomes related to improved provider preparedness, child safety, child well-being, or kindergarten entry is possible. If checked, respond to 7.11 and indicate which funds will be used for this activity. Check all that apply

☐ CCDF funds

☐ Other funds

Describe:

7.3 Supporting Training and Professional Development of the Child Care Workforce With CCDF Quality Funds

Lead Agencies can invest in the training, professional development, and post-secondary education of the child care workforce as part of a progression of professional development activities, such as those included at 98.44 in addition to the following (98.53(a)(1)).

7.3.1 Describe how the state/territory funds the training and professional development of the child care workforce

Effective Date: 10/01/2018

a) Check and describe which content is included in training and professional development activities and describe who or how an entity is funded to address this topic. Check all that apply.

☑ Promoting the social, emotional, physical, and cognitive development of children, including those efforts related to nutrition and physical activity, using scientifically based, developmentally appropriate, and age-appropriate strategies

Describe:

The Contractor who operates and manages the STARS system for early childhood professionals has coordinated the development and implementation of the Wyoming

Early Learning Guidelines and Early Learning Foundations, which address promotion of the social, emotional, physical, and cognitive development of children. The Wyoming Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC) requires that all new providers complete 8 training credits on the Wyoming Early Learning Guidelines and Early Learning Foundations within the first year of service. The Wyoming Early Learning Guidelines and Early Learning Foundations are based in four distinct areas or domains of child development (communication, sense of self and relationships, curious minds, strong and healthy bodies) and include benchmarks of what to look for as well as play activities to support growth. Parents and caregivers can implement the strategies outlined in the ELG and ELF to promote development and learning. This covers promoting the social, emotional, physical, and cognitive development of children.

☑ Implementing behavior management strategies, including positive behavior interventions and support models that promote positive social-emotional development and early childhood mental health and that reduce challenging behaviors, including a reduction in expulsions of preschool-age children from birth to age five for such behaviors. (See also section 2.5.)

Describe:

The Department, in conjunction with Wyoming Early Childhood Association, offered workshops on managing difficult behaviors at the Statewide Early Childhood conference in 2017 and continue to offer workshops throughout the state via the Department's Technical Assistance Coach. The training included identification of behavior management strategies that promote posititve social-emotional development. Additionally, on-sight assistance with identifying and addressing difficult behaviors is offered by the Department's Technical Assistance Coach. The Wyoming Early Learning Guidelines (ELG) and Early Learning Foundations (ELF) identify activities designed to promote positive social-emotional development. All licensed providers are required to participate in an ELG & ELF training as part of the pre-service requirements in the Wyoming child care licensing rules.

☑ Engaging parents and families in culturally and linguistically appropriate ways to expand their knowledge, skills, and capacity to become meaningful partners in supporting their children's positive development

Describe:

The Contractor who operates and manages the STARS system for early childhood professionals has coordinated the development and implementation of the Wyoming Early Learning Guidelines and Early Learning Foundations, which address engaging parents and families to become meaningful partners in supporting child development. The Wyoming Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) requires that all new providers complete 8 training credits on the Wyoming Early Learning Guidelines and Early Learning Foundations. In addition, WY QualityCounts! develops and distributes a monthly newsletter, to parents, providers, caregivers and consumers, with the foundation being the Wyoming Early Learning Guidelines and Early Learning Foundations. A domain is identified for the month and the newsletter is developed based to support parents, providers and caregivers to expand their knowledge about the particular child development domain and to also implement easy activities to promote positive development of the children.

☑ Implementing developmentally appropriate, culturally and linguistically responsive instruction, and evidence-based curricula and designing learning environments that are aligned with state/territory early learning and developmental standards.

Describe:

The Contractor who operates and manages the STARS system for early childhood professionals has coordinated the development and implementation of the Wyoming Early Learning Guidelines and Early Learning Foundations. The Wyoming Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC) requires that all new providers complete 8 training credits on the Wyoming Early Learning Guidelines and Early Learning Foundations. The Wyoming Early Learning Guidelines and Early Learning Foundations are based on the revised Head Start child development and early learning framework, which are research-based, developmentally appropriate, culturally and linguistically appropriate. The Department, the Wyoming STARS training registry, the University of Wyoming and other early childhood partners provide support to providers across the state on implementation of the ELG and ELF, including on-site coaching and mentoring.

☐ Providing onsite or accessible comprehensive services for children and developing community partnerships that promote families' access to services that support their children's learning and development

Describe:

☐ Using data to guide program evaluation to ensure continuous improvement

Describe:

☐ Caring for children of families in geographic areas with significant concentrations of poverty and unemployment

Describe:

☐ Caring for and supporting the development of children with disabilities and developmental delays

Describe:

☐ Supporting the positive development of school-age children

Describe:

☑ Other

Describe:

The Contractor who operates and manages the STARS system for early childhood professionals. The STARS deliverables include: approve and evaluate training materials and trainers for credit; coordination with libraries for clearinghouse materials and/or development of materials at the library; identification of training needs and development of subsequent training; and delivery of specific training. The STARS staff respond to all requests for identification of training available to address all areas including caring for children of families experiencing poverty and unemployment; and caring for and supporting the development of children with disabilities, etc. STARS is responsible for approval and evaluation of training materials identified or developed.

b) Check how the state/territory connects child care providers with available federal and state/territory financial aid or other resources to pursue post-secondary education

relevant for the early childhood and school-age workforce. Check all that apply

- ☐ Coaches, mentors, consultants, or other specialists available to support access to post-secondary training, including financial aid and academic counseling
- ☑ Statewide or territory-wide, coordinated, and easily accessible clearinghouse (i.e., an online calendar, a listing of opportunities) of relevant post-secondary education opportunities
- ☑ Financial awards, such as scholarships, grants, loans, or reimbursement for expenses, from the state/territory to complete post-secondary education
- ☐ Other

Describe:

7.3.2 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures

The Department works with the Wyoming STARS training registry review and approve all prospective training topics and trainers. In addition, evaluations are completed on every training by every participant and the results of the evaluations are analyzed. In addition, once trainings are entered in to the STARS training registry, providers and staff are automatically leveled on the Career Ladder. Over the course of the next 3 years, the Department in collaboration with the Wyoming Early Childhood State Advisory Council will begin to analyze the data available through the 3 integrated systems (STARS training registry, Child Care Licensing case management, and CCR&R) to identify gaps in professional development accessibility, affordability and quality of staff and programs.

Effective Date: 10/01/2018

7.4 Quality Rating and Improvement System (QRIS)

Lead Agencies may respond in this section based on other systems of quality improvement, even if not called a QRIS, as long as the other quality improvement system contains the elements of a QRIS. QRIS refers to a systematic framework for evaluating, improving and communicating the level of quality in early childhood programs and contains five key elements:

1. Program standards
2. Supports to programs to improve quality
3. Financial incentives and supports
4. Quality assurance and monitoring
5. Outreach and consumer education

7.4.1 Does your state/territory have a quality rating and improvement system or other system of quality improvement?

Effective Date: 10/01/2018

☐ No, but the state/territory is in the QRIS development phase. If no, skip to 7.5.1.

☑ No, the state/territory has no plans for QRIS development. If no, skip to 7.5.1.

☐ Yes, the state/territory has a QRIS operating statewide or territory-wide

Describe how the QRIS is administered (e.g., statewide or locally or through CCR&R entities) and any partners and provide a link, if available.

NA

☐ Yes, the state/territory has a QRIS initiative operating as a pilot-test in a few localities or only a few levels but does not have a fully operating initiative on a statewide or territory-wide basis.

Provide a link, if available.

☐ Yes, the state/territory has another system of quality improvement

If the response is yes to any of the above, describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its

progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures.

NA

7.4.2 QRIS participation

Effective Date: 10/01/2018

a) Are providers required to participate in the QRIS?

- ☐ Participation is voluntary
- ☐ Participation is mandatory for providers serving children receiving a subsidy. If checked, describe the relationship between QRIS participation and subsidy (e.g., minimum rating required, reimbursed at higher rates for achieving higher ratings, participation at any level).
- ☐ Participation is required for all providers.

b) Which types of settings or distinctive approaches to early childhood education and care participate in the state/territory's QRIS? Check all that apply

- ☐ Licensed child care centers
- ☐ Licensed family child care homes
- ☐ License-exempt providers
- ☐ Early Head Start programs
- ☐ Head Start programs
- ☐ State prekindergarten or preschool programs
- ☐ Local district-supported prekindergarten programs
- ☐ Programs serving infants and toddlers
- ☐ Programs serving school-age children
- ☐ Faith-based settings
- ☐ Tribally operated programs
- ☐ Other

Describe:

NA

7.4.3 Support and assess the quality of child care providers.

The Lead Agency may invest in the development, implementation, or enhancement of a tiered quality rating and improvement system for child care providers and services. Note: If a Lead Agency decides to invest CCDF quality dollars in a QRIS, that agency can use the funding to assist in meeting consumer education requirements (98.33). If the Lead Agency has a QRIS, respond to questions 7.4.3 through 7.4.6.

Do the state/territory's quality improvement standards align with or have reciprocity with any of the following standards?

Effective Date: 10/01/2018

- [x] No
- [ ] Yes. If yes, check the type of alignment, if any, between the state/territory's quality standards and other standards. Check all that apply.
  - [ ] Programs that meet state/territory preK standards are able to meet all or part of the quality improvement standards (e.g., content of the standards is the same, there is a reciprocal agreement between preK programs and the quality improvement system) .
  - [ ] Programs that meet federal Head Start Program Performance Standards are able to meet all or part of the quality improvement standards (e.g., content of the standards is the same, there is a reciprocal agreement between Head Start programs and the quality improvement system).
  - [ ] Programs that meet national accreditation standards are able to meet all or part of the quality improvement standards (e.g., content of the standards is the same, an alternative pathway exists to meeting the standards).
  - [ ] Programs that meet all or part of state/territory school-age quality standards.
  - [ ] Other.

  Describe:

7.4.4 Do the state/territory's quality standards build on its licensing requirements and other regulatory requirements?

Effective Date: 10/01/2018

- [x] No
- [ ] Yes. If yes, check any links between the state/territory's quality standards and licensing requirements
  - [ ] Requires that a provider meet basic licensing requirements to qualify for the base level of the QRIS.
  - [ ] Embeds licensing into the QRIS
  - [ ] State/territory license is a "rated" license
  - [ ] Other.

  Describe:

7.4.5 Does the state/territory provide financial incentives and other supports designed to expand the full diversity of child care options and help child care providers improve the quality of services that are provided through the QRIS

Effective Date: 10/01/2018

- [x] No
- [ ] Yes. If yes, check all that apply
  - [ ] One time grants, awards, or bonuses.
  - [ ] Ongoing or periodic quality stipends
  - [ ] Higher subsidy payments
  - [ ] Training or technical assistance related to QRIS.
  - [ ] Coaching/mentoring.
  - [ ] Scholarships, bonuses, or increased compensation for degrees/certificates
  - [ ] Materials and supplies
  - [ ] Priority access for other grants or programs
  - [ ] Tax credits (providers or parents)

☐ Payment of fees (e.g., licensing, accreditation)

☐ Other

Describe:

7.4.6 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures

The Department works with the Wyoming STARS training registry review and approve all prospective training topics and trainers. In addition, evaluations are completed on every training by every participant and the results of the evaluations are analyzed. In addition, once trainings are entered in to the STARS training registry, providers and staff are automatically leveled on the Career Ladder. Over the course of the next 3 years, the Department in collaboration with the Wyoming Early Childhood State Advisory Council will begin to analyze the data available through the 3 integrated systems (STARS training registry, Child Care Licensing case management, and CCR&R) to identify gaps in professional development accessibility, affordability and quality of staff and programs.

Effective Date: 10/01/2018

7.5 Improving the Supply and Quality of Child Care Programs and Services for Infants and Toddlers

Lead Agencies are encouraged to use the needs assessment to systematically review and improve the overall quality of care that infants and toddlers receive, the systems in place or needed to support and enhance the quality of infant and toddler providers, the capacity of the infant and toddler workforce to meet the unique needs of very young children, and the methods in place to increase the proportion of infants and toddlers in higher quality care, including any partnerships or coordination with Early Head Start and IDEA Part C programs. Lead Agencies are required to spend 3 percent of their total CCDF expenditures on activities to improve the supply and quality of their infant and toddler care. This is in addition to the

general quality set-aside requirement.

7.5.1 What activities are being implemented by the state/territory to improve the supply (see also section 4) and quality of child care programs and services for infants and toddlers? Check all that apply and describe

Effective Date: 10/01/2018

☑ Establishing or expanding high-quality community- or neighborhood-based family and child development centers. These centers can serve as resources to child care providers to improve the quality of early childhood services for infants and toddlers from low-income families and to improve eligible child care providers' capacity to offer high-quality, age-appropriate care to infants and toddlers from low-income families

Describe:

Wyoming is expanding the quality of child care programs and services for infants and toddlers through the Early Childhood Community Partnership Grants. These grant dollars are for community based programs to make certain Wyoming's children have the strong positive foundation they need to be successful in their first year of school and beyond. Just as school readiness is multifaceted, so too is the environment in which a child grows and develops. To effectively work so more children enter school ready to be successful, it is important to consider the family and community context in which they live and the services available to support their healthy growth and development. While no community is targeting the supply of infant and toddler care as a specific grant activity, the grants hope to build a network among early childhood stakeholders which may indirectly impact the supply of infant and toddler care. The Department is working along side the Department of Education to maximize the joint use of TANF funding in early childhood education. In addition, the Department is working with the University of Wyoming, WY Kids First, and Align to offer technical assistance, equip early care and education professionals to support and integrate the Early Learning Guidelines (ELGs) in their early learning environments and to encourage early learning professionals to share the Guidelines with families through outreach and events. These efforts are in coordination with the recipients of the Wyoming Early Childhood Community Partnership grants.

☐ Establishing or expanding the operation of community- or neighborhood-based family child care networks.

Describe:

☑ Providing training and professional development to enhance child care providers' ability to provide developmentally appropriate services for infants and toddlers

Describe:

The Department provides the Infant/Toddler Director Credential training. In addition, the Department and the Infant/Toddler Team in conjunction with STARS and other stakeholders are currently identifying additional options for providers to access to receive the Infant/Toddler Director Credential.

☐ Providing coaching, mentoring, and/or technical assistance on this age group's unique needs from statewide or territory-wide networks of qualified infant-toddler specialists

Describe:

☐ Coordinating with early intervention specialists who provide services for infants and toddlers with disabilities under Part C of the Individuals with Disabilities Education Act (20 U.S.C. 1431 et seq.).

Describe:

☐ Developing infant and toddler components within the state/territory's QRIS, including classroom inventories and assessments

Describe:

☑ Developing infant and toddler components within the state/territory's child care licensing regulations

Describe:

The Department's Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC) or Child Care Center (CCC) address infant and toddler specific components.

☑ Developing infant and toddler components within the early learning and developmental guidelines

Describe:

Wyoming has incorporated the early foundations and guidelines into the pre-service requirement for licensed and exempt child care providers. In addition, the Department is working with the University of Wyoming, WY Kids First, and Align to offer technical

assistance, equip early care and education professionals to support and integrate the ELF/ELGs in their early learning environments and to encourage early learning professionals to share the ELG/ELFs with families through outreach and events.

☐ Improving the ability of parents to access transparent and easy-to-understand consumer information about high-quality infant and toddler care that includes information on infant and toddler language, social-emotional, and both early literacy and numeracy cognitive development

Describe:

☑ Carrying out other activities determined by the state/territory to improve the quality of infant and toddler care provided within the state/territory and for which there is evidence that the activities will lead to improved infant and toddler health and safety, cognitive and physical development, and/or well-being

Describe:

Wyoming has changed the licensing training requirements to ensure that all early care and education professionals have the basic knowledge associated with quality care and education. Wyoming, including the Department, University of Wyoming, Wyoming Kids First, WY Quality Counts!, and other stakeholders, provide the Early Learning Guidelines and Foundations to child care providers. Wyoming works closely with other agencies to provide training geared toward infants and toddlers.

☐ Coordinating with child care health consultants.

Describe:

☐ Coordinating with mental health consultants.

Describe:

☐ Other

Describe:

7.5.2 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services for infants and toddlers within the state/territory and the data on the extent to which the state or territory has met these measures

The Department in collaboration with the University of Wyoming, WY Kids First, and Align to offer technical assistance, equip early care and education professionals to support and integrate the Early Learning Guidelines (ELGs) in their early learning environments and to encourage early learning professionals to share the Guidelines with families through outreach and events. The technical assistance and implementation is being tracked and monitored. In addition, the Department, in partnership with the Wyoming Early Childhood State Advisory Council is finalizing work on Quality Program Standards which align with the Early Learning Guidelines and Early Learning Foundations. This work will include development of a tool to assess implementation of the Quality Program Standards and guage the impact on quality in programs. This work is ongoing and will continue over the next 3 years. In addition, the Zero to Three (0-3) Assessment Checklist may be utilized to measure activities related to quality of child care program services. The Zero to Three (0-3) Assessment Checklist is currently being used to assess kindergarten readiness in many school districts across the state. The Wyoming Department of Education recommends use of the Assessment with local school districts. The Wyoming Department of Education monitors the use of the Assessment Checklist and monitors the progress.

Effective Date: 10/01/2018

7.6 Child Care Resource and Referral

A Lead Agency may expend funds to establish or expand a statewide system of child care resource and referral services (98.53(a)(5)). It can be coordinated, to the extent determined appropriate by the Lead Agency, by a statewide public or private non-profit, community-based, or regionally based lead child care resource and referral organization (658E(c)(3)(B)(iii)). This effort may include activities done by local or regional child care and

resource referral agencies, as discussed in section 1.7.

7.6.1 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures

Measurements used by Child Care Resource and Referral include data collection of resources disseminated out through the R&R program. Additionally, data is collected on the number of referrals given out to families and information regarding violations summaries for licensed facilities at the family's request. Families are also given information on choosing quality programs.

Effective Date: 10/01/2018

7.7 Facilitating Compliance With State Standards

7.7.1 What strategies does your state/territory fund with CCDF quality funds to facilitate child care providers' compliance with state/territory requirements for inspection, monitoring, training, and health and safety and with state/territory licensing standards? Describe:

The child care licensers provide technical assistance and training to programs to improve quality and compliance during each of the two (2) mandated annual facility inspections and/or visits. In addition, Child Care Licensing staff is available by phone or email to provide technical assistance on a regular basis to providers, parents, the community, partners and stakeholders. Child care licensing staff work with providers to identify areas which require additional guidance and technical assistance and utilize the provider newsletter and e-blasts to communicate areas of importance. The Department has created a full-time position to focus on provision of in-depth technical assistance to any provider in the State. The child care licensers may refer a provider for in-depth technical assistance or the provider may request assistance. The Technical Assistance Coach works with the provider in their facility on identified issues and follows up regarding operationalizing the new information. In

addition, the Wyoming STARS training registry has developed a comprehensive list of state and national training focused on the federally required health and safety topics as well as other state requirements for licensure, to help providers working towards compliance.

Effective Date: 10/01/2018

7.7.2 Does the state/territory provide financial assistance to support child care providers in complying with minimum health and safety requirements?

Effective Date: 10/01/2018

- [ ] No
- [x] Yes. If yes, which types of providers can access this financial assistance?
  - [x] Licensed CCDF providers
  - [x] Licensed non-CCDF providers
  - [ ] License-exempt CCDF providers
  - [ ] Other

  Describe:

7.7.3 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures

The Department uses measures relating to complaint and compliance history, number of training hours completed above the required training, implementation or delivery of knowledge and skills acquired in training, training and subsequent implementation of the ELG/ELFs, and technical assistance. Initially, implementation of the ELGs/ELFs will be measured anecdotally and with quantitative data. The Department continues to analyze data as a first step towards monitoring quality in lieu of a QRIS. In addition, the Department, in partnership with the Wyoming Early Childhood State Advisory Council is finalizing work on Quality Program Standards which align with the Early Learning Guidelines and Early

Learning Foundations. This work will include development of a tool to assess implementation of the Quality Program Standards and guage the impact on quality in programs. This work is ongoing and will continue over the next 3 years.

Effective Date: 10/01/2018

7.8 Evaluating and Assessing the Quality and Effectiveness of Child Care Programs and Services

7.8.1 Describe how the state/territory measures the quality and effectiveness of child care programs and services in both child care centers and family child care homes currently being offered, including any tools used to measure child, family, teacher, classroom, or provider improvements, and how the state/territory evaluates how those tools positively impact children

The Department uses measures relating to complaint and compliance history, number of training hours completed above the required training, implementation or delivery of knowledge and skills acquired in training, training and subsequent implementation of the ELG/ELFs, implementation of Quality Practices and technical assistance.The Department continues to analyze data as a first step towards monitoring quality in lieu of a QRIS Over the course of the next 3 years, the Department in collaboration with the University of Wyoming, WY Kids First, and Align to offer technical assistance, equip early care and education professionals to support and integrate the Early Learning Guidelines (ELGs) in their early learning environments and to encourage early learning professionals to share the Guidelines with families through outreach and events. The technical assistance and implementation is being tracked and monitored. In addition, the Department, in partnership with the Wyoming Early Childhood State Advisory Council is finalizing work on Quality Program Standards which align with the Early Learning Guidelines and Early Learning Foundations. This work will include development of a tool to assess implementation of the Quality Program Standards and guage the impact on quality in programs.

Effective Date: 10/01/2018

7.8.2 Describe the measureable indicators of progress relevant to this use of funds that the State/Territory will use to evaluate its progress in improving the quality of child care programs and services in child care centers and family child care homes within the state/territory and the data on the extent to which the state or territory has met these measures

The Department measures progress based on the volume and type of complaint and/or non-compliance of providers, before and after technical assistance and training have been delivered specific to the complaint or non-compliance issue. As an example, child care licensers experience non-compliance related to staff requirements at a high frequency. Based on that data, the Technical Assistance Coach developed training and technical assistance to address staff requirements; providing web and in person training to all licensed providers in the state. The Department also has data regarding providers experiencing some difficulty finding annual training to meet the annual training requirements. As a solution, training credits were issued for all licensed providers who participated in the staff requirements training. As a follow up to the training and technical assistance, child care licensers are reviewing all staff records at all licensed providers to ensure compliance with the Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), and Child Care Center (CCC).

Effective Date: 10/01/2018

7.9 Accreditation Support

7.9.1 Does the state/territory support child care providers in the voluntary pursuit of accreditation by a national accrediting body with demonstrated, valid, and reliable program standards of high quality?

Effective Date: 10/01/2018

☐ Yes, the state/territory has supports operating statewide or territory-wide for both child care centers and family child care homes

Describe the support efforts for all types of accreditation that the state/territory provides to child care centers and family child care homes to achieve accreditation

☐ Yes, the state/territory has supports operating statewide or territory-wide for child care centers only. Describe the support efforts for all types of accreditation that the state/territory provides to child care centers.

Describe:

☐ Yes, the state/territory has supports operating statewide or territory-wide for family child care homes only. Describe the support efforts for all types of accreditation that the state/territory provides to family child care

Describe:

☐ Yes, the state/territory has supports operating as a pilot-test or in a few localities but not statewide or territory-wide

☐ Focused on child care centers

Describe:

☐ Focused on family child care homes

Describe:

☐ No, but the state/territory is in the accreditation development phase

☐ Focused on child care centers

Describe:

☐ Focused on family child care homes

Describe:

☑ No, the state/territory has no plans for accreditation development

7.9.2 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures

NA

Effective Date: 10/01/2018

7.10 Program Standards

7.10.1 Describe how the state/territory supports state/territory or local efforts to develop or adopt high-quality program standards, including standards for infants and toddlers, preschoolers, and/or school-age children

The Wyoming Early Childhood State Advisory Council has taken the lead in Wyoming, with support from the Department, on developing the Wyoming Quality Program Standards for Early Childhood Settings. It is the intention of the Council to develop a release and implementation plan for utilization of the Quality Program Standards. The Wyoming Quality Program Standards for Early Childhood Settings are structured around domains and ages of children, including infants and toddlers and preschoolers. The Wyoming Afterschool Alliance has developed Quality Program Standards for school-age children.

Effective Date: 10/01/2018

7.10.2 Describe the measureable indicators of progress relevant to this use of funds that the state/territory will use to evaluate its progress in improving the quality of child care programs and services within the state/territory and the data on the extent to which the state or territory has met these measures

The Zero to Three (0-3) Assessment Checklist may be utilized to measure activities related to quality of child care program services. The Zero to Three (0-3) Assessment Checklist is currently being used to assess kindergarten readiness in many school districts across the state. The Wyoming Department of Education recommends use of the Assessment with local school districts. The Wyoming Department of Education monitors the use of the Assessment Checklist and monitors the progress. The Wyoming Early Childhood State Advisory Council has not finalized the Wyoming Quality Program Standards for Early Childhood Settings to ensure alignment with the Head Start Program Performance Standards. Consequently, the Council has not identified how the Standards will be implemented, what the measurable indicators will be, and how the indicators will be measured. It is the intention of the Wyoming Early Childhood State Advisory Council to finalize the Wyoming Quality Program Standards for Early Childhood Settings and develop a release and implementation plan for utilization of the Wyoming Quality Program Standards which may include being utilized by the Department's Technical Assistance Coach as a pre- and post-evaluation of programs who request technical assistance.

Effective Date: 10/01/2018

7.11 Early Learning and Development Guidelines and Other Quality Improvement Activities

7.11.1 If quality funds are used to develop, maintain, or implement early learning and development guidelines, describe the measureable indicators that will be used to evaluate the state/territory's progress in improving the quality of child care programs and services and the data on the extent to which the state/territory has met these measures (98.53(f)(3)).

Over the course of the next 3 years, the Department in collaboration with the University of Wyoming, WY Kids First, and Align to offer technical assistance, equip early care and education professionals to support and integrate the Early Learning Guidelines (ELGs) in their early learning environments and to encourage early learning professionals to share the Guidelines with families through outreach and events. The technical assistance and

implementation is being tracked and monitored. In addition, the Department, in partnership with the Wyoming Early Childhood State Advisory Council, is working to update both the Early Learning Guidelines and Early Learning Foundations. The Department and the Wyoming Early Childhood State Advisory Council is also finalizing work on Quality Program Standards which align with the Early Learning Guidelines and Early Learning Foundations. This work will include development of a tool to assess implementation of the Quality Program Standards and guage the impact on quality in programs.

Effective Date: 10/01/2018

7.11.2 List and describe any other activities that the state/territory provides to improve the quality of child care services for infants and toddlers, preschool-aged, and school-aged children, which may include consumer and provider education activities, and also describe the measureable indicators of progress for each activity relevant to this use of funds that the state/territory will use to evaluate its progress in improving provider preparedness, child safety, child well-being, or kindergarten entry and the data on the extent to which the state or territory has met these measures. Describe:

NA

Effective Date: 10/01/2018

8 Ensure Grantee Program Integrity and Accountability

Program integrity and accountability activities are integral to the effective administration of the CCDF program. Lead Agencies are required to describe in their Plan effective internal controls that ensure integrity and accountability while maintaining the continuity of services (98.16(cc)). These accountability measures should address reducing fraud, waste, and abuse, including program violations and administrative errors.

This section includes topics on internal controls to ensure integrity and accountability and

processes in place to investigate and recover fraudulent payments and to impose sanctions on clients or providers in response to fraud. Respondents should consider how fiscal controls, program integrity and accountability apply to:

-- Memorandums of understanding within the Lead Agency's various divisions that administer or carry out the various aspects of CCDF

-- MOU's, grants, or contracts to other state agencies that administer or carry out various aspects of CCDF

-- Grants or contracts to other organizations that administer or carry out various aspects of CCDF such as professional development and family engagement activities

-- Internal processes for conducting child care provider subsidy

8.1 Internal Controls and Accountability Measures To Help Ensure Program Integrity

8.1.1 Check and describe how the Lead Agency ensures that all its staff members and any staff members in other agencies who administer the CCDF program through MOUs, grants and contracts are informed and trained regarding program requirements and integrity. Check all that apply:

Effective Date: 10/01/2018

☑ Train on policy manual

Describe:

The Department has a specialized staff who is responsible for all training related to the child care assistance program policy. Training is delivered in person, on line webcam and via email.

☑ Train on policy change notices

Describe:

The Department has a specialized staff who is responsible for all training related to the child care assistance program policy. Training is delivered in person, on line webcam and via email.

☑ Ongoing monitoring and assessment of policy implementation

Describe:

The Department has established a quality assurance/trainer position whom is responsible for all quality assurance with child care assistance workers. The quality assurance/trainer review a minimum of 33 child care eligibility case files a month to ensure eligibility was determined correctly. In addition, the Department's child care assistance program supervisors review a minimum of three (3) cases per staff per month to ensure eligibility was determined correctly. The Department's child care assistance program manager is responsible for reviewing all findings from the child care eligibility supervisor and quality assurance/trainer reviews.

☐ Other

Describe:

8.1.2 Lead Agencies must ensure the integrity of the use of funds through sound fiscal management and must ensure that financial practices are in place (98.68 (a)(1)). Describe the processes in place for the Lead Agency to ensure sound fiscal management practices for all expenditures of CCDF funds. Check all that apply:

Effective Date: 10/01/2018

☑ Verifying and processing billing records to ensure timely payments to providers

Describe:

The Department's fiscal staff audit all child care invoices submitted by providers either monthly or bi-monthly. Following, the fiscal audit of the invoice, the information, a different fiscal staff enters the billing information into the child care payment system and payment is generated.

☑ Fiscal oversight of grants and contracts

Describe:

The Department has one (1) contract which expends CCDF funds. The contractor submits monthly invoices. The Department thoroughly reviews the itemized invoice to verify the activity described was delivered or is ongoing. The invoice is approved and submitted for payment. In addition, the Department conducts visits to monitor the

contractor on an every other month basis. There is frequent communication via telephone and "Google Hangouts" with the contractor and staff.

☐ Tracking systems to ensure reasonable and allowable costs

Describe:

NA

☐ Other

Describe:

NA

8.1.3 Check and describe the processes that the Lead Agency will use to identify risk in their CCDF program. Check all that apply:

Effective Date: 10/01/2018

☐ Conduct a risk assessment of policies and procedures

Describe:

☑ Establish checks and balances to ensure program integrity

Describe:

The Department has established a system of checks and balances to ensure program integrity for the child care assistance program. The child care assistance program invoice payment responsibilities are split between two (2) fiscal staff for verification and entry of the invoice.

☑ Use supervisory reviews to ensure accuracy in eligibility determination

Describe:

The Department has established a quality assurance/trainer position whom is responsible for all quality assurance with child care assistance workers. The quality assurance/trainer review a minimum of 33 child care eligibility case files a month to ensure eligibility was determined correctly. In addition, the Department's child care assistance program supervisors review a minimum of three (3) cases per staff per month

to ensure eligibility was determined correctly. The Department's child care assistance program manager is responsible for reviewing all findings from the child care eligibility supervisor and quality assurance/trainer reviews.

☐ Other

Describe:

8.1.4 Lead Agencies conduct a wide variety of activities to fight fraud and ensure program integrity. Lead Agencies are required to have processes in place to identify fraud and other program violations to ensure program integrity. Program violations can include both intentional and unintentional client and/or provider violations, as defined by the Lead Agency. These violations and errors, identified through the error-rate review process may result in payment or nonpayment (administrative) errors and may or may not be the result of fraud, based on the Lead Agency definition. Check and describe any activities that the Lead Agency conducts to ensure program integrity.

Effective Date: 10/01/2018

a) Check and describe all activities that the Lead Agency conducts to identify and prevent fraud or intentional program violations. Include in the description how each activity assists in the identification and prevention of fraud and intentional program violations. Include a description of the results of such activity.

☑ Share/match data from other programs (e.g., TANF program, Child and Adult Care Food Program, Food and Nutrition Service (FNS), Medicaid) or other databases (e.g., State Directory of New Hires, Social Security Administration, Public Assistance Reporting Information System (PARIS)).

Describe

The Department's eligibility system includes TANF, SNAP and child care assistance programs, which allows the Department to match eligibility information across programs. In addition, the child care assistance workers have access to the State directory of new hires and access to the Department's social security interface.

☐ Run system reports that flag errors (include types).

Describe:

NA

☑ Review enrollment documents and attendance or billing records

Describe:

The Department's fiscal staff audit all child care invoices submitted by providers either monthly or bi-monthly. Following, the fiscal audit of the invoice, the information, a different fiscal staff enters the billing information into the child care payment system and payment is generated

☑ Conduct supervisory staff reviews or quality assurance reviews.

Describe:

The Department has established a quality assurance/trainer position whom is responsible for all quality assurance with child care assistance workers. The quality assurance/trainer review a minimum of 33 child care eligibility case files a month to ensure eligibility was determined correctly. In addition, the Department's child care assistance program supervisors review a minimum of three (3) cases per staff per month to ensure eligibility was determined correctly. The Department's child care assistance program manager is responsible for reviewing all findings from the child care eligibility supervisor and quality assurance/trainer reviews.

☑ Audit provider records.

Describe:

The Department's child care licensing program monitors all licensed programs and conducts 2 visits per year following certification. A sampling of all providers records are reviewed at a visit to ensure compliance with the Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC). The Department's child care assistance program uses verifiers to conduct annual inspection of licensed-exempt non-relative providers to ensure compliance with the provider requirements as defined in the Rules for Child Care Purchase of Service.

☑ Train staff on policy and/or audits.

Describe:

The Department's child care licensing and child care assistance programs conduct

ongoing training with all staff that includes review of rules, policy and procedure. The training is provided monthly at a minimum or on an as need basis, and is conducted through email, Google Hang-Out, teleconference or in person.

☐ Other

Describe:

NA

b) Check and describe all activities the Lead Agency conducts to identify unintentional program violations. Include in the description how each activity assists in the identification and prevention of unintentional program violations. Include a description of the results of such activity.

☑ Share/match data from other programs (e.g., TANF program, CACFP, FNS, Medicaid) or other databases (e.g., State Directory of New Hires, Social Security Administration, PARIS).

Describe:

The Department's eligibility system includes TANF, SNAP and child care assistance programs, which allows the Department to match eligibility information across programs. In addition, the child care assistance workers have access to the State directory of new hires and access to the Department's social security interface.

☐ Run system reports that flag errors (include types).

Describe:

NA

☑ Review enrollment documents and attendance or billing records

Describe:

The Department's fiscal staff audit all child care invoices submitted by providers either monthly or bi-monthly. Following, the fiscal audit of the invoice, the information, a different fiscal staff enters the billing information into the child care payment system and payment is generated

☑ Conduct supervisory staff reviews or quality assurance reviews.

Describe:

The Department has established a quality assurance/trainer position whom is responsible for all quality assurance with child care assistance workers. The quality assurance/trainer review a minimum of 33 child care eligibility case files a month to ensure eligibility was determined correctly. In addition, the Department's child care assistance program supervisors review a minimum of three (3) cases per staff per month to ensure eligibility was determined correctly. The Department's child care assistance program manager is responsible for reviewing all findings from the child care eligibility supervisor and quality assurance/trainer reviews.

☑ Audit provider records.

Describe:

The Department's child care licensing program monitors all licensed programs and conducts 2 visits per year following certification. A sampling of all providers records are reviewed at a visit to ensure compliance with the Rules for Certification of Family Child Care Home (FCCH), Family Child Care Center (FCCC), or Child Care Center (CCC). The Department's child care assistance program uses verifiers to conduct annual inspection of licensed-exempt non-relative providers to ensure compliance with the provider requirements as defined in the Rules for Child Care Purchase of Service.

☑ Train staff on policy and/or audits.

Describe:

The Department's child care licensing and child care assistance programs conduct ongoing training with all staff that includes review of rules, policy and procedure. The training is provided monthly at a minimum or on an as need basis, and is conducted through email, Google Hang-Out, teleconference or in person.

☐ Other

Describe:

NA

c) Check and describe all activities the Lead Agency conducts to identify and prevent agency errors. Include in the description how each activity assists in the identification and prevention of agency errors.

☑ Share/match data from other programs (e.g., TANF program, CACFP, FNS, Medicaid) or other databases (e.g., State Directory of New Hires, Social Security Administration, PARIS).

Describe:

The Department's eligibility system includes TANF, SNAP and child care assistance programs, which allows the Department to match eligibility information across programs. In addition, the child care assistance workers have access to the State directory of new hires and access to the Department's social security interface.

☐ Run system reports that flag errors (include types).

Describe:

NA

☑ Review enrollment documents and attendance or billing records

Describe:

The Department's fiscal staff audit all child care invoices submitted by providers either monthly or bi-monthly. Following, the fiscal audit of the invoice, the information, a different fiscal staff enters the billing information into the child care payment system and payment is generated.

☑ Conduct supervisory staff reviews or quality assurance reviews.

Describe:

The Department has established a quality assurance/trainer position whom is responsible for all quality assurance with child care assistance workers. The quality assurance/trainer review a minimum of 33 child care eligibility case files a month to ensure eligibility was determined correctly. In addition, the Department's child care assistance program supervisors review a minimum of three (3) cases per staff per month to ensure eligibility was determined correctly. The Department's child care assistance program manager is responsible for reviewing all findings from the child care eligibility supervisor and quality assurance/trainer reviews.

☐ Audit provider records.

Describe:

NA

☑ Train staff on policy and/or audits.

Describe:

The Department's child care licensing and child care assistance programs conduct ongoing training with all staff that includes review of rules, policy and procedure. The training is provided monthly at a minimum or on an as need basis, and is conducted through email, Google Hang-Out, teleconference or in person.

☐ Other

Describe:

NA

8.1.5 The Lead Agency is required to identify and recover misspent funds as a result of fraud, and it has the option to recover any misspent funds as a result of errors.

Effective Date: 10/01/2018

a) Check and describe all activities that the Lead Agency uses to investigate and recover improper payments due to fraud. Include in the description how each activity assists in the investigation and recovery of improper payment due to fraud or intentional program violations. Include a description of the results of such activity. Activities can include, but are not limited to, the following:

☑ Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount

Describe:

The Department sets the misspent funds minimum dollar amount at $50.00. In instances where there are misspent funds over the minimum, cases are referred to the Department's Fraud and Recovery (aka Eligibility Integrity) unit for investigation and collection.

☑ Coordinate with and refer to the other state/territory agencies (e.g., state/territory collection agency, law enforcement agency).

Describe:

The Department's Fraud and Recovery unit makes all necessary referral based on their investigation after a child care assistance program case is referred.

☑ Recover through repayment plans.

Describe:

The Department's Fraud and Recovery unit may enter into a repayment agreement following the investigation and determination funds have been misspent

☐ Reduce payments in subsequent months.

Describe:

NA

☐ Recover through state/territory tax intercepts.

Describe:

NA

☐ Recover through other means.

Describe:

NA

☑ Establish a unit to investigate and collect improper payments and describe the composition of the unit below.

Describe:

The Department has established a Fraud and Recovery unit who are responsible for investigation and collection of all misspent funds from TANF, SNAP, Medicaid, and child care assistance. The unit is composed of a program manager/supervisor, two (2) collectors, (2) investigators and one (1) data analyst.

☑ Other

Describe:

If the client is found guilty of an intentional program violation through a disqualification hearing process, the client is sanctioned from receiving benefits for 12 months for the first violation, 24 months for a second violation and permanently for a third violation. The client has the opportunity to appeal the Department's decision through District Court.

b) Check any activities that the Lead Agency will use to investigate and recover improper payments due to unintentional program violations. Include in the description how each activity assists in the investigation and recovery of improper payments due to unintentional program violations. Include a description of the results of such activity. Activities can include, but are not limited to, the following:

☑ Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount

Describe:

The Department sets the improper payments minimum dollar amount at $50.00. In instances where there are improper payments due to administrative error over the minimum, cases are referred to the Department's Fraud and Recovery (aka Eligibility Integrity) unit for investigation and collection.

☑ Coordinate with and refer to the other state/territory agencies (e.g., state/territory collection agency, law enforcement agency).

Describe:

The Department's Fraud and Recovery unit makes all necessary referral based on their investigation after a child care assistance program case is referred.

☑ Recover through repayment plans.

Describe:

The Department's Fraud and Recovery unit may enter into a repayment agreement following the investigation and determination there was an improper payment.

☐ Reduce payments in subsequent months.

Describe:

☐ Recover through state/territory tax intercepts.

Describe:

☐ Recover through other means.

Describe:

☑ Establish a unit to investigate and collect improper payments and describe the composition of the unit below.

Describe:

The Department has established a Fraud and Recovery unit who are responsible for investigation and collection of all misspent funds from TANF, SNAP, Medicaid, and child care assistance. The unit is composed of a program manager/supervisor, two (2) collectors, two (2) investigators and one (1) data analyst.

☐ Other

Describe:

c) Check and describe all activities that the Lead Agency will use to investigate and recover improper payments due to agency errors. Include in the description how each activity assists in the investigation and recovery of improper payments due to administrative errors. Include a description of the results of such activity.

☑ Require recovery after a minimum dollar amount of an improper payment and identify the minimum dollar amount

Describe:

The Department sets the improper payments minimum dollar amount at $50.00. In instances where there are improper payments due to administrative error over the minimum, cases are referred to the Department's Fraud and Recovery (aka Eligibility Integrity) unit for investigation and collection.

☑ Coordinate with and refer to the other state/territory agencies (e.g., state/territory collection agency, law enforcement agency).

Describe:

The Department's Fraud and Recovery until makes all necessary referral based on their investigation after a child care assistance program case is referred.

☐ Recover through repayment plans.

Establish a unit to investigate and collect improper payments.

NA

☐ Reduce payments in subsequent months.

Describe:

NA

☐ Recover through state/territory tax intercepts.

Describe:

NA

☐ Recover through other means.

Describe:

☑ Establish a unit to investigate and collect improper payments and describe the composition of the unit below.

Describe:

The Department has established a Fraud and Recovery unity who are responsible for investigation and collection of all misspent funds from TANF, SNAP, Medicaid, and child care assistance. The unit is composed of a program manager/supervisory, two (2) collectors, two (2) investigators and one (1) data analyst.

☐ Other

Describe:

NA

8.1.6 What type of sanction will the Lead Agency place on clients and providers to help reduce improper payments due to program violations? Check and describe all that apply:

Effective Date: 10/01/2018

☑ Disqualify the client. If checked, describe this process, including a description of the appeal process for clients who are disqualified.

Describe:

If the client is found guilty of an intentional program violation through a disqualification hearing process, the client is sanctioned from receiving benefits for 12 months for the first violation, 24 months for a second violation and permanently for a third violation. The

client has the opportunity to appeal the Department's decision through District Court.

☐ Disqualify the provider. If checked, describe this process, including a description of the appeal process for providers who are disqualified.

Describe:

NA

☐ Prosecute criminally.

Describe:

NA

☐ Other.

Describe:

NA

Appendix A: Background Check Waiver Request Form

Lead Agencies may apply for a temporary waiver for certain background check requirements if milestone prerequisites have been fully implemented. These waivers will be considered "transitional and legislative waivers" to provide transitional relief from conflicting or duplicative requirements preventing implementation, or an extended period of time in order for the state/territory legislature to enact legislation to implement the provisions (98.19(b)(1)) These waivers are limited to a one-year period and may be extended for at most one additional year from the date of initial approval.

Approval of these waiver requests is subject to and contingent on OCC review and approval of responses in section 5 questions 5.4.1 -- 5.4.4 to confirm that the milestones are met. If milestone prerequisites are not met, the waiver request will not be approved. Approved waivers would begin October 1, 2018 through September 30, 2019. If approved, States and Territories will have the option to renew these waivers for one additional year as long as progress is demonstrated during the initial waiver period. Separate guidance will be issued later on the timeline and criteria for requesting the waiver renewal.

Overview of Background Check Implementation deadlines

Original deadline for implementation (658H(j)(1) of CCDBG Act): September 30, 2017

Initial one-year extension deadline (658H(j)(2) of CCDBG Act): September 30, 2018

One-year waiver deadline (45 CFR 98.19(b)(1)(i)): September 30, 2019

Waiver deadline one-year renewal (45 CFR 98.19(b)(1)(ii)): September 30, 2020

Waiver approval for new (prospective) staff, existing staff or staff hired provisionally until background checks are completed, are subject to and contingent upon the OCC review and approval of responses to 5.4.9 that demonstrate that the state/territory requires: (1) the provider to submit the background check request before the staff person begins working; and (2) pending the results of the background check, the staff person must be supervised at all times by an individual who has completed the background check.

To submit a background check waiver request, complete the form below.

Check and describe each background check provision for which the Lead Agency is requesting a time-limited waiver extension.

☑ **Appendix A.2:** In-state sex offender registry requirements for existing staff. (See related question at 5.4.2 (b))

Describe the provision from which the state/territory seeks relief.

The Department respectfully requests a waiver or extension to the requirements for completion of in-state sex offender registry checks for existing staff.

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

The waiver or extension of this provision will allow the Department additional time to complete the in-state sex offender registry checks for existing staff in a reasonable amount of time without the burden of having child care licensing staff required to help complete the task. The child care licensing staff shall be able to focus on their tasks related to child care licensing (monitoring, inspections, investigations, etc.).

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

The Department currently conducts a myriad of background checks on all providers, staff, and household members, including a national FBI fingerprint check, a Wyoming criminal registry check, a NCIC NSOR check, in-state and interstate child abuse and/or neglect checks and, for all prospective and some existing staff, in-state and interstate sex offender registry checks. It is the Department's position that because of these above mentioned background checks,the health, safety and well-being of children served will not be compromised as a result of this waiver or extension.

☑ **Appendix A.7:** Interstate criminal registry or repository check for new or prospective staff. (See related question at 5.4.6 (a))

Describe the provision from which the state/territory seeks relief.

The Department respectfully requests a waiver or extension to the requirements for extraordinary circumstances surrounding the COVID-19 pandemic, for completion of interstate criminal registry checks for new or prospective staff.

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

The waiver or extension, for extraordinary circumstances surrounding the COVID-19 pandemic, of this provision will allow the Department additional time to define the process to complete the interstate criminal registry checks for new or prospective staff in a reasonable amount. This will improve the delivery of child care services for children as child care program staff shall be able to continue to focus on their immediate responsibilities related to child care providers, parents, and other consumers. The COVID-19 pandemic has impacted our implementation of this requirement in many ways including: the Department's ability to coordinate and collaborate with state criminal entities in all the other states as many experienced the reduction in force focused on activities that were not essential; the Department's ability to collaborate with other states who have implemented this provision as many were working non-traditional hours, teleworking and were frequently difficult to connect with; the Department's ability to collaborate with program personnel to formalize the process for submission, follow-up and tracking of all out of state requests; and the Department's ability to develop the technical system for submission, follow-up and tracking of all out of state requests.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

The Department currently conducts a myriad of background checks on all providers, staff, and household members, including a national FBI fingerprint check, a Wyoming criminal registry check, a NCIC NSOR check, in-state and interstate child abuse and/or neglect checks and, for all prospective and some existing staff, in-state and interstate sex offender registry checks. It is the Department's position that because of these above mentioned background checks,the health, safety and well-being of children served will not be compromised as a result of this waiver or extension.

☑ **Appendix A.8:** Interstate criminal registry or repository check for existing staff. (See related question at 5.4.6 (b))

Describe the provision from which the state/territory seeks relief.

The Department respectfully requests a waiver or extension to the requirements for extraordinary circumstances surrounding the COVID-19 pandemic, for completion of interstate criminal registry checks for existing staff.

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

The waiver or extension, for extraordinary circumstances surrounding the COVID-19 pandemic, of this provision will allow the Department additional time to define the process to complete the interstate criminal registry checks for existing staff in a reasonable amount. This will improve the delivery of child care services for children as child care program staff shall be able to continue to focus on their immediate responsibilities related to child care providers, parents, and other consumers. The COVID-19 pandemic has impacted our implementation of this requirement in many ways including: the Department's ability to coordinate and collaborate with state criminal entities in all the other states as many experienced the reduction in force focused on activities that were not essential; the Department's ability to collaborate with other states who have implemented this provision as many were working non-traditional hours, teleworking and were frequently difficult to connect with; the Department's ability to collaborate with program personnel to formalize the process for submission, follow-up and tracking of all out of state requests; and the Department's ability to develop the technical system for submission, follow-up and tracking of all out of state requests.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

The Department currently conducts a myriad of background checks on all providers, staff, and household members, including a national FBI fingerprint check, a Wyoming criminal registry check, a NCIC NSOR check, in-state and interstate child abuse and/or neglect checks and, for all prospective and some existing staff, in-state and interstate sex offender registry checks. It is the Department's position that because of these above mentioned background checks,the health, safety and well-being of children served will not be compromised as a result of this waiver or extension.

☑ **Appendix A.10:** Interstate sex offender registry or repository check for existing staff. (See related question at 5.4.7 (b))

Describe the provision from which the state/territory seeks relief.

The Department respectfully requests a waiver or extension to the requirements for completion of interstate sex offender registry checks for existing staff.

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

The waiver or extension of this provision will allow the Department additional time to complete the interstate sex offender registry checks for existing staff in a reasonable amount of time. This will improve the delivery of child care services for children as child care program staff shall be able to continue to focus on their immediate responsibilities related to child care providers, parents, and other consumers.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

The Department currently conducts a myriad of background checks on all providers, staff, and household members, including a national FBI fingerprint check, a Wyoming criminal registry check, a NCIC NSOR check, in-state and interstate child abuse and/or neglect checks and, for all prospective and some existing staff, in-state and interstate sex offender registry checks. It is the Department's position that because of these above mentioned background checks,the health, safety and well-being of children served will not be compromised as a result of this waiver or extension.

☑ **Appendix A. 13:** New staff hired to work provisionally until background checks are completed. (See related question at 5.4.9)

Describe the provision from which the state/territory seeks relief.

The Department respectfully requests a waiver or extension to the requirements that all new staff shall have all background checks completed prior to working in the facility, directly supervising children and counted in ratios.

Describe how a waiver of the provision will, by itself, improve the delivery of child care services for children

The waiver or extension of this provision will allow the Department to respond to child care providers who find themselves in an urgent situation with adding new staff. In many circumstances, child care providers are faced with having to either close classrooms or close their doors when they have staff walk off the job and they are not able to complete the required background checks in a timely manner. This will improve the delivery of child care services for children as child care programs will be able to remain open, providing needed services to children and families.

Certify and describe how the health, safety, and well-being of children served through assistance received through CCDF will not be compromised as a result of the waiver.

The Department considers requests for a Variance in circumstances where a provider needs new staff to begin work immedicately, only when the provider has submitted the request for a FBI criminal history record check AND have received the results of the prospective staff's child abuse and/or neglect Central Registry Check, which does not reveal any disqualifying information. The Variance requires the new staff is supervised at all times by a qualified staff and is time limited (generally 30 days). It is the Department's position that because of the conditions placed on a Variance approval,the health, safety and well-being of children served will not be compromised as a result of this waiver or extension.